

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER		PAGE 1 OF 118	
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER 140L4326R0009
			6. SOLICITATION ISSUE DATE 04/02/2026
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Kevin Cochran	
		b. TELEPHONE NUMBER (No collect calls) (503) 808-6739	
9. ISSUED BY BLM OR-ST OFC PROC MGMT BR(OR952) 1220 SW 3rd Avenue, 12th Floor PORTLAND OR 97204		10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00% FOR: ☒ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED 113310 ☐ SERVICE-DISABLED ☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB) 500 ☐ VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ 8(A)	
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS		
13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)		13b. RATING	
14. METHOD OF SOLICITATION ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☒ REQUEST FOR PROPOSAL (RFP)		15. DELIVER TO See Schedule	
16. ADMINISTERED BY See Schedule		17a. CONTRACTOR/ OFFEROR CODE	
17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM	
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT
	ADMINISTERED BY: BLM OR-ST OFC PROC MGMT BR(OR952) 1220 SW 3rd Avenue, 12th Floor PORTLAND OR 97204 US Forestry stewardship IDIQ, Oregon Continued... (Use Reverse and/or Attach Additional Sheets as Necessary)		
25. ACCOUNTING AND APPROPRIATION DATA		26. TOTAL AWARD AMOUNT (For Government Use Only)	
27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. ADDENDA FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ☒ ARE ☐ ARE NOT ATTACHED		27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED	
28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED		29. AWARD OF CONTRACT: REFERENCE OFFER DATED. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:	
30a. SIGNATURE OF OFFEROR/CONTRACTOR		31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)	
30b. NAME AND TITLE OF SIGNER (Type or print)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print) Matthew Duane	31c. DATE SIGNED

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Period of Performance: 08/31/2026 to 08/30/2036				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED☐ INSPECTED☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

40. PAID BY

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42a. RECEIVED BY (Print)

42b. RECEIVED AT (Location)

42c. DATE RECEIVED (MM/DD/YYYY)

42d. TOTAL CONTAINERS

SECTION B – SERVICES AND PRICES

This requirement is for a 10 Year Multiple-Award Indefinite Delivery Indefinite Quantity (IDIQ) Contract for Firm Fixed Price Commercial Services to furnish all management, labor, supervision, equipment, materials, transportation, and incidental services necessary to implement integrated forest and juniper woodland stewardship activities across BLM-managed lands in Oregon.

The maximum value quantity of this contract is \$40,000,000.00. If separate awards, whether a Single-Award IDIQ or Multiple-Award IDIQs, are made for stewardship activities across BLM-managed lands in Oregon only, the maximum value for those contracts will not exceed \$40,000,000.00.

There will be a single minimum guarantee per contract. The minimum guarantee quantity per contract is \$2,500.00. This value represents the promise of the minimum quantity of work guaranteed under the contract. The minimum guarantee may be satisfied by one (1) task order or the cumulative value of multiple task orders and/or modifications. The minimum guarantee shall not to be misconstrued as a lump sum payment if the minimum guarantee is not satisfied.

BLM will evaluate an offer that can cover all areas more favorably. See Sections L and M for additional information.

SEE EXCEL SPREADSHEET ENTITLED “B08 PRICING SHEET”

(End of Section B)

SECTION C – STATEMENT OF WORK

STATEMENT OF OBJECTIVES

1.0 GENERAL

- 1.1 Description - Contractor shall furnish all necessary management, labor, supervision, equipment, materials, transportation, supplies, and incidental services to perform this requirement. A Stewardship project is designed to provide an integrated approach to stand management on forest stands and juniper woodlands of varying sizes and densities.
- 1.2 Objective - The objective of this project is to reach an end result that will:
- Reduce the risk of high intensity wildland fire to life, property, and natural resources on lands managed by the BLM.
 - Improve forests health through stand density reduction and reduction of hazardous fuel loads.
 - Treat fuels by promoting utilization of timber, biomass, and unmerchantable material.
 - Generate employment opportunities.
- 1.3 Location/Access - The project areas are located within the administrative boundaries of BLM. See attached vicinity map. Project area(s) are normally accessible by a standard pickup on forest roads. A four-wheel drive vehicle may be required. The Government assumes no liability to perform special road maintenance to keep roads open to the project areas.
- 1.4 Security of materials – The Contractor may leave their equipment at the work site. However, the Government is not responsible for the equipment if it should be lost, stolen, or damaged.
- 1.5 Boundaries - Unit boundaries are marked with ribbon or designated on PDF maps or similar mapping software. The project maps show reserve areas, some of the physical and topographical features of the units, as well as delineated areas within the units which require special treatment.
- 1.6 Fire Precautions – Contractor must follow all applicable laws and regulations regarding fire season and associated restrictions and requirements.
- 1.7 Unique Features of Project Area - Any unique feature specific to each unit will be listed on task order unit maps. Operations are subject to seasonal restrictions due to weather conditions, fire restrictions, and wildlife species. Seasonal restrictions and buffers are listed in the applicable National Environmental Policy Act (NEPA) documents, they will also be listed on individual task orders.

2.0 DEFINITIONS

Bankfull - the level of a stream when the channel is filled to the level of the floodplain.

Basal Area - The cross-sectional area of a tree measured at DBH. Basal area is usually expressed on a per acre basis which is the sum of the cross sectional areas of all the trees on an acre of land.

Bearing Tree – a tree used as a reference monument to locate a property corner.

Biomass - Any vegetative material that the Contractor removes that does not meet the Sawlog, clean chip, firewood, or post & pole definition below.

Brush - vegetation consisting of shrub species with single or multi-stems originating at or near ground level and not normally reaching 20 feet in height. Examples include but are not limited to: Canyon Live Oak, Vine Maple, Salmonberry, Hazel, Huckleberry, Thimbleberry, Manzanita, Ocean-spray, Ceanothus species, Silktassel, Sagebrush, Wild Rose, Ribes Species.

Clean chips- Wood chips of varying sizes created generally from bole wood and excluding needles and soil.

Conifer - An evergreen, cone-bearing tree, such as Douglas-fir, Western Red Cedar, Western White Pine, Incense Cedar, Western Hemlock, Ponderosa Pine, Sugar Pine, Grand Fir, White Fir, Noble Fir, Western Juniper, and Pacific Yew.

Cord - A stack of fuelwood which measures 4 x 4 x 8 ft. or 128 ft³, including wood, bark, and empty space within the stack.

Damaged Trees - Any Contractor-caused alteration or injury to the tree or root system which may cause death, loss of vigor, or will negatively affect growth, including, but not limited to, severance of the main stem or terminal leader, delimbing, scraping, debarking, or uprooting.

Deck - A stack of logs or the action of stacking logs.

Designated Skid Trail - A trail flagged by the Contractor prior to cutting and approved by the COR/PI to operate designated equipment on.

Diameter Breast Height (DBH) - The diameter of a tree measured at breast height, 4.5 feet above the ground on the uphill side.

End-Lining - Pulling or winching felled trees or slash by means of cable drawn out from the skidder or skidding vehicle in the following situations:

- Where the ground is too steep for mechanized equipment
- Where the ground is required to be protected from disturbance by heavy equipment
- Where a felled tree is in a group of trees and damage to the group would be excessive if the tree were removed by a skidder

Firewood - Wood that does not meet the Sawlog, Biomass, Clean Chip, or Post & Pole definitions described herein and/or that is transported off the site in lengths less than 8 feet long and intended for use as fuelwood. This material shall be priced in cords with volumes determined by the Government.

Hazardous trees - standing live or dead trees, with evidence of insect infestation, deterioration, or physical damage to the root system, trunk, or stem. The degree and direction of lean is also an important factor when determining if a tree is a hazard.

Hardwood Tree - A deciduous tree which usually has a single well-defined trunk and normally attains a height of greater than twenty (20) feet at maturity and has broad leaves. Examples include, but are not limited to, species such as Pacific madrone, chinquapin, tanoak, canyon live oak, big leaf maple, red alder and ash.

Hog Fuel- See Biomass - Any type of wood product that can be burned for fuel at pulp mill facilities to generate electricity but can't be classified as chips, shavings, bark, or sawdust.

Landings - A loading point where logs are collected preparatory to further transportation, loaded on trucks and also any other location that became a destination for yarded woody material.

Large woody debris - Portion of a tree that has fallen, or been cut and left in the woods. Usually refers to pieces at least 20 inches in diameter.

Leave Tree – Any tree marked for retention and/or described in this contract to be reserved from cutting. Additional leave trees may be specified on project maps.

Loading point - Any landing or other area in which logs and biomass material are capable of being loaded for transportation out of the project area.

Lop - Trim by cutting off branches, twigs, or stems.

Manual Work – Work that does not require the use of heavy equipment. Most work is performed by hand; some bid items may require light use of chainsaws, ATV's, or trucks.

Mechanical Work – Work will primarily require the use of heavy tracked or tired equipment.

Sawlog (Merchantable Timber) - The Minimum Material Specification is as follows (**these specifications can be adjusted on a per task order basis**):

Schedule of Minimum Material Specifications			
Species and Products	Length	Diameter (inside bark at small end)	Net Scale
Logs of all species	16 feet	6 inches	33 1/3% of gross volume of any log segment

Objectionable Material – Objectionable material is defined as debris or any foreign matter.

Offsite – Locations outside of the project area. Commonly referenced when referring to the hauling/transport of material from the project to a utilization center such as a mill or biomass plant.

Older junipers - Juniper that originated in the “pre-settlement” period, before 1870. It is assumed that these trees are growing on sites that they are adapted to, since they began growing there under “natural conditions” when natural processes (including lightning fires) determined vegetation patterns. Older junipers are usually found in rocky areas where vegetation is sparse and natural fire frequency is low. Some typical characteristics of older juniper are:

- Crown is flat, rounded, broad at top, or irregular (as opposed to the more pointed tops of younger trees)
- Spike top
- Numerous dead branches
- Branches covered with coarse, bright yellow-green lichen (Letharia, or wolf lichen)
- Large diameter lower branches
- Large diameter trunk relative to height
- Trunk has spirally-twisted bark, deep furrows
- Hollow trunk

It is rare for an older juniper to have all of the above features, but more commonly will have at least three or four. Also, older junipers are not always the largest trees; on drier, rocky sites, they can be short, stubby, gnarly trees.

Post & Pole - Wood sized approximately six inches in diameter and seven feet long used as a fence post and/or poles and does not meet the Sawlog definition. This material may be sold on a cord or ton basis as shown on the task order.

Preferred Species - The list of species in order of most desired to least desired in a given area. This information may be provided in a task order.

Project Area - The area identified on the task order for treatment using any of the items in this contract.

Reserve Area - An area where no activity is permitted.

Reserve Trees - Generally those trees designated by the Government to be left uncut. Each task order may include a specific description of reserve trees for that project.

Silviculture Summary Prescription (SSP) - Specific instructions provided with each task order for individual treatment units that summarize desirable leave trees and requirements for selecting the leave and/or reserve trees. The prescription is based on the overall composition and condition of the stand and is intended to be a guideline for achieving a desired stand condition. The Contractor shall use his/her silvicultural knowledge to identify and designate leave trees, desired species composition, and adjust to any conditions within the stand and notify the COR or PI of any conditions not addressed in the prescription. Designation can be by paint, description, or prescription. In some cases, a small area will be marked and cut to ensure the Contractor understands the specifications.

Slash – All woody material that has been cut, but not removed from the contract area during the primary removal operation. Typically includes brush, broken tops, limbs, cull logs, pieces of logs damaged reproduction, saplings, and poles which were caused as a result of felling and yarding operations. This includes old slash existing prior to timber sale entry.

Station- In reference to road construction/maintenance. A station is equal to 100 feet.

Stump - The lower end of a tree with roots attached remaining in the ground after the tree has been cut.

Submerchantable Material (Non-Sawlog) – Vegetative material that does not meet the definition of Merchantable Timber (Sawlog).

Timber - standing trees which are capable of being measured in board feet and cubic feet.

Trespass Trees - Any reserve trees which have been cut and/or removed from the woods.

Yarding – the conveyance of logs or trees or portions thereof, by ground based, cable, balloon, or helicopter yarding systems from the area of falling or cutting to the landing or loading point for removal. Yarding is generally accomplished using mechanical equipment.

3.0 **CONTRACTOR FURNISHED ITEMS**

The Contractor shall furnish all personnel, labor, supervision, equipment with qualified operators, transportation, supplies (other than Government furnished property), and incidentals required to finish the project.

3.1 **Crew Requirements (Manual and Mechanical Work)**

3.1.1 Crews must be kept together at all times, working as a crew under a supervisor rather than as individuals in separate areas. Approval must be given by the COR/PI if there is to be a significant change in crew personnel or working schedule. State Safety regulations require that crew members shall not work alone and that accessibility to emergency transportation is to be provided by the Contractor at all times.

3.2 Supervisor Requirements (Manual and Mechanical Work)

3.2.1 The project supervisor(s) shall be named in writing at the pre-work conference. This person shall be capable of speaking and reading English with proficiency to have mutually effective communications with the Contracting Officer's Representative and/or the Project Inspector (COR/PI). Any group of people without such an individual will not be considered a crew. One supervisor shall supervise no more than a maximum of nine crew members at any one time. The supervisor must actually perform in that capacity and at a minimum, effectively direct the crew by (1) making periodic inspections of the crew's work, (2) advising them as to deficient work, and (3) providing instructions for correcting such deficiencies. Any changes in supervisory designations must be submitted in writing to the COR/PI at least 24 hours prior to the change taking effect.

3.3 Equipment and Materials

Contractor will provide necessary equipment to perform tasks according to specifications.

3.3.1 The Contractor shall provide traffic control signs to provide for the safety of the general public along existing roadways in the project area.

3.3.2 The Contractor shall provide for erosion control which includes certified weed free straw, free from mold or other objectionable material.

3.4 Equipment

3.4.1 Harvest systems shall meet the following criteria:

- All log loading shall be done with boom type loaders.
- At least one yarding tractor or wheel- type equipment shall be equipped with an integral arch and winch system capable of lining logs at least one hundred (100) feet
- A rubber-tired or track-mounted skidder will be used in accordance with the following specifications: (1) The skidder shall be approved by the Contracting officer prior to ground-based yarding operations. (2) Yarding shall be done with one end of the log suspended. (3) The skidder shall be restricted to designated skid trails. Skid trails shall be clearly identified on the ground, twelve (12) feet or less in width and spaced at least one hundred fifty (150) feet apart. Designated skid trails, whether existing or newly proposed, shall be approved by the Contracting officer prior to the felling of timber.
- The feller-processor or feller-buncher shall be approved by the Contracting officer prior to the start of mechanized felling operations. Only purpose-built carriers with boom-mounted felling heads may be approved. The purpose-built carrier may be of the articulated, rubber-tired design or the zero tail swing, leveling, track-mounted design.
- A track-mounted log loader, or shovel yarding system, may be used in accordance with the following specifications: (1) The track-mounted log loader shall be approved by the Contracting officer prior to ground-based yarding operations. (2) The track-mounted log loader shall be restricted to designated skid trails and shall utilize the swing yarding method to the greatest extent

practicable. The designated skid trail network shall minimize both the amount of ground covered by the tractor treads and the number of passes over any single spot on the ground. Designated skid trails, whether existing or newly proposed, shall be approved by the Contracting officer prior to the felling of timber. (3) The track-mounted log loader shall be required to place logging slash in front of the machine's tracks prior to traveling designated skid trails in order to reduce soil compaction.

- A cut-to-length system may be used in accordance with the following specifications: (1) The harvester shall be required to cut off limbs and tops in front of the machine's tracks in order to reduce the potential for soil compaction. The harvester must have a lateral reach of twenty (20) feet or more, and the machine's lateral reach must be utilized as much as possible. (2) The forwarder shall operate only on designated skid trails approved by the Contracting officer. Forwarder trails shall be located on existing skid trails and/or the slash-covered areas traversed by the harvester. Forwarder trails shall be perpendicular to hill-slope contour lines as much as possible. Forwarder trails shall be located such that there are two harvester trails between forwarder trails, resulting in a spacing of at least one hundred (100) feet between forwarder trails. (3) Logs that are too large for the harvester/forwarder operation may be yarded with a rubber-tired or track-mounted skidder, or a track-mounted log loader approved by the Contracting officer, and as directed by the Contracting officer. The skidder shall operate on designated skid trails approved by the Contracting officer.
 - Yarding shall be done with a cable skyline system utilizing a mechanical slack-pulling carriage capable of maintaining a fixed position on the skyline while lateral yarding and having a lateral capability of seventy five (75) feet. The carriage must not move during in-haul. The system shall have the capability to yard in multi-span configuration. (b) Wherever possible, cable yarding corridors shall be perpendicular to hill-slope contour lines, parallel to each other and spaced at least one hundred fifty (150) feet apart to minimize damage to reserve trees. c) Cable yarding of logs shall be done under the canopy and with one end suspended. Lift trees and/or intermediate support trees shall be employed where necessary to meet this requirement. All logs shall be yarded away from or parallel to streams as shown on Exhibit A. (d) Prior to attaching any logging equipment to a reserve tree, the Contractor shall obtain written approval from the Contracting officer and shall take precautions to protect the tree from damage as directed in writing by the Contracting officer.
- 3.5 Equipment Operator - Experienced and qualified operators in the operation and maintenance of all contractor furnished equipment is considered essential. The Government reserves the right to require the Contractor, in writing, to remove from the project any operator who, in the opinion of the COR/PI is found to be inexperienced or operates the equipment in an unsafe manner. The Contractor shall provide a replacement operator within 24 hours.
- 3.5.1 Operating Permits (All Items) – The Contractor shall apply for and acquire all permits required to accomplish the work. State law requires a permit to operate power driven machinery. The Contractor shall obtain a permit from the Oregon State Department of Forestry (ODF) prior to operation of power driven machinery. This requirement also applies to chainsaws and brush cutters. The Government will obtain DSL and COE permits.
- 3.6 Work/Camp Sites (All Items) - Obtain written authorization from the Field Office prior to camping on BLM administered lands. Work camps can be established only in locations authorized by the COR/PI. Authorized camps and work sites shall be maintained in a sanitary and orderly condition by clearing the site(s) of all debris, refuse and garbage before leaving the area.

4.0 **MATERIALS FURNISHED by the GOVERNMENT**

As task orders are issued, the Government will provide the following as appropriate:

- 4.1 Project maps showing features, i.e. boundaries, reserve areas, riparian areas, unique features, leave tree preference, and unit payment acreage based on horizontal distance.
- 4.2 The Government will furnish a Certified Log Scaler who is either employed by the Government or is a Third Party Scaler who has been approved by the Government to scale Government logs.
- 4.3 Product Removal Permits (load tags).
- 4.4 Native grass seed for use in erosion control.
- 4.5 Gate keys to gain access to project units.

5.0 **COMMON TO MULTIPLE TASKS**

- 5.1 Before beginning operations on the contract area for the first time or after a shutdown of seven or more days, the Contractor shall notify the COR/PI in writing of the date they plan to begin operations.
- 5.2 Prior to the commencement of operations, the Contractor shall schedule a pre-work meeting with the COR/PI and obtain COR/PI written approval of an operations plan commensurate with the terms and conditions of the contract which shall include measures needed to assure protection of the environment and watershed.
- 5.3 Contractor shall conduct all operations in connection with this contract in compliance with the applicable provisions of Federal, State, and local safety, health, and sanitation laws, codes, and regulations. Contractor's operations shall facilitate the Government's safe and practical inspection of Contractor's operations and the Government's conduct of other official duties on contract area. Contractor has all responsibility for compliance with safety requirements for Contractor's employees, contractors and subcontractors, and the employees of any of them. Upon written notice from the Contracting Officer, the Contracting Officer may unilaterally modify the contract to be consistent with State or Federal safety requirements. Unless otherwise specified in writing, when operations are in progress adjacent to or on roads or specifically identified trails in the harvest unit area, Contractor shall furnish, install, and maintain all temporary traffic controls that provide the road or trail user with adequate warning of and protection from hazardous or potentially hazardous conditions associated with its operations. Contractor shall prepare a Traffic Control Plan, which the Contractor has determined is compliant with state and local safety and transportation standards no later than the pre-work meeting and prior to commencing operations. Traffic control devices shall be appropriate to current operating and/or weather conditions and shall be covered or removed when not needed. Flagmen and devices shall be as specified in state safety and transportation standards for logging roads, or the "Manual on Uniform Traffic Control Devices for Streets and Highways" published by the U.S. Department of Transportation – Federal Highway Administration. Included in the Traffic Control Plan, Contractor shall note traffic control device locations on a Contractor produced copy of the project map. Notwithstanding other provisions in the contract regarding wood product reserved from cutting, the Government authorizes the Contractor, their contractors, sub-contractors, or the employees of any of them, to immediately (without prior approval) fell any trees that they determine pose an imminent danger or imminent safety concern to its employees, the public, or Government employees, in accordance with applicable provisions of Federal, State, and local safety laws, codes, and regulations. Following the felling, the contractor will notify the Contracting Officer of the specific location and circumstance regarding the tree. If the Contracting Officer determines that the Contractor, their contractors, subcontractors, or employees of any of them, have used this authorization to fell trees that did not pose a

legitimate imminent danger or imminent safety concern, this will be considered trespass, and the Contractor shall be liable for damages.

5.4 Due to resource concerns, any harvest system that causes excessive soil compaction from repeated passes over the same area will not be allowed.

5.5 Seasonal restrictions may apply and will be detailed in individual task orders.

5.6 The contractor will be responsible for executing license agreements and paying necessary fees for the use of private roads associated with haul. These agreements and fees will be detailed within each task order.

5.7 These tasks are common to all logging operations

5.7.1 Selection Criteria - The Contractor shall use the selection criteria shown below in determining which trees are designated for retention and which are designated for cutting.

- Retain all snags (dead trees) except those which are designated for cutting and removal. Retain all pre-existing dead and down wood.
- Each task order will specify the trees to be cut and reserved.

5.7.2 **Logging Requirements**

5.7.3 The proposed location of skid roads, landings, and yarding corridors shall be clearly designated on the ground by the contractor and will be approved by the COR/PI prior to felling of timber. Existing locations will be utilized where possible.

5.7.4 The location of the tractor skid roads shall be clearly designated on the ground, spaced at approximately 150-foot intervals, and approved by the COR/PI, prior to felling of timber to be yarded over that skid road.

5.7.5 All trees designated for cutting shall be felled and pre-bunched on designated skid trails with a mechanical harvester. The mechanical harvester shall be capable of cutting up to a 20-inch DBH tree and have an arm capable of reaching at least 20 feet laterally. In lieu of falling all trees with a mechanical harvester, hand felling may be allowed in specific areas by the COR/PI. All trees designated for cutting that cannot be felled with a mechanical harvester shall be hand felled to the lead of designated skid trails to prevent damage to residual trees during yarding.

5.7.6 All trees designated for cutting shall be felled and whole tree yarded, except when excessive stand damage occurs as determined by the COR/PI. If excessive stand damage occurs, all logs shall be completely limbed, except the top log, and bucked into lengths determined by the COR/PI prior to being yarded.

5.7.7 Damage from mechanical cutting to reserved trees shall be as minimal as possible. Any merchantable reserve trees damaged from cutting shall not be removed unless authorized by the COR/PI. Damaged reserve trees (broken tops, damaged bark, excessive limb removal) may be approved by the COR/PI to be removed. If damage is determined to be excessive, the contractor may be charged up to triple stumpage. If excessive damage continues the operator will be shut down and appropriate measures will be taken.

5.7.8 The maximum height of a stump from a cut tree shall be no taller than 6 inches measured from the ground on the uphill side of the stump.

5.7.9 If extensive damage is occurring, as determined by the Contracting officer, timber designated for cutting shall be felled and yarded in two (2) stages. Falling and yarding of designated timber shall be completed for each stage prior to the felling and yarding of the next stage. Timber in the second (and subsequent) stage shall be felled into and yarded through openings created by prior logging.

- 5.7.10 Trees mechanically cut shall remain whole tree. Trees shall not be processed until they reach a landing point.
- 5.7.11 **Modification Volume**
- 5.7.12 If the need arises to cut, remove, and sell additional timber that was either reserved or not accounted for prior to operations, the following stipulations will be followed:
- 5.7.13 Additional timber that is obstructing needed skid roads, trees designated for cutting, cable yarding roads, hazardous to workers, needed for guyline, tailhold, and/or tieback trees, and severely damaged from the normal conduct of felling or yarding operations to meet all applicable State safety laws, codes or regulations. This timber must be cut or removed so that the contractor can continue active falling and yarding operations. The contractor will be authorized to cut and remove such additional timber provided, however, that:
- 5.7.14 Before cutting and removing any trees necessary to facilitate logging in units, the Contractor shall identify the location of the skid roads, yarding corridors, landings, and danger trees on the ground in a manner approved by the COR/PI at the pre-work conference and documented in the Logging Plan. Said Contractor identification of trees to be cut and removed does not constitute authority to proceed with cutting and removal.
- 5.7.15 All skid roads upon which timber is identified by the contractor to be cut and removed in accordance with this special provision must be necessary for the safe and expeditious removal of timber sold under this contract and shall be limited to the minimum width necessary for yarding of logs with a minimum of damage to reserve trees, however, unless otherwise approved in writing by the COR/PI, the width of each skid road shall be limited to 14 feet.
- 5.7.16 The Contractor may cut and remove additional timber after the COR/PI has approved the trees and designated them for removal. The volume and value of the timber that will be charged to the contractor for this additional timber will be determined by the COR/PI in accordance with Bureau of Land Management prescribed procedures.
- 5.7.17 If a tree or snag is determined by the contractor to be an imminent threat to safety, the contractor may immediately fall the tree without prior approval. Once the tree has been felled, the contractor must immediately contact the COR/PI and notify them of the action. The tree will be left where it lays and the cut end of the tree and stump shall be marked with a large "X", cut with a chainsaw, and the "X" will be painted with red paint. The felled tree cannot be removed until the COR/PI physically inspects it.
- 5.7.18 The Contractor agrees that sale of this additional timber shall be accomplished by a unilateral modification of the contract executed by the Contracting Officer.
- 5.7.19 This authorization for the Contractor to cut and remove additional timber prior to the execution of a modification may be withdrawn by the Contracting Officer if the COR/PI determines that the Contractor has cut and removed any tree not previously marked and approved for cutting by the COR/PI.
- 5.7.20 If authorization is withdrawn, the Contracting Officer shall issue a written notice to the Contractor that the sale of additional timber under this special provision is no longer approved. In this case, the Contractor shall inform the COR/PI at least one (1) working day prior to the need for cutting and removing any additional timber. The Contracting Officer may issue a written order to the Contractor to suspend, delay, or interrupt any or all contract work for the period of time deemed necessary and appropriate for the Government to safely measure and mark additional timber.

5.7.21 Treatment of Slash and Landing Piles:

- 5.7.22 All logging slash shall be removed to a landing location and piled unless specified by the COR/PI.
- 5.7.23 The Contractor shall cut all sprung or otherwise severely damaged trees between 1 and 6 inches DBH.
- 5.7.24 Contractor shall remove slash and debris from roadways and landings concurrently with yarding as directed by the Contracting officer.
- 5.7.25 Pile all slash located within one hundred (100) feet of landings and designated locations for placement of gross yarded material. Slash shall be piled with a grapple/shovel loader. Finished piles shall be tight and free of earth. No portion of any pile will be located under the crown of any live or other reserve trees. A four (4) foot wide, fuel free area shall be cleared around each pile. Cull logs at landings sixteen (16) inches in diameter and larger at the small end shall be used to block skid trails.
- 5.7.26 If directed by the COR/PI, upon completion of landing piling, the Contractor shall prepare the landing piles for burning by securely covering each pile with polyethylene plastic film a minimum of 6 millimeters thick and covering a 10 feet X 20 feet area. Pieces of burnable material shall be placed on top of the plastic to secure it from moving and to prevent it from blowing off during strong wind episodes. The Contractor is required to furnish the covering materials. The timing of this covering work shall be in accordance with instructions from the COR/PI. If the structure of the landing piles will not permit adequate consumption of piled debris by burning, the Contractor shall re-pile them at the direction of the COR/PI.

6.0 SPECIFIC TASKS – MECHANICAL LOGGING ACTIVITIES

- 6.0.1 The specific tasks listed below may be adjusted, reduced, or expanded at the task order level. Typically, task orders will have more detailed requirements and specificity than this document.

6.1 Item 1, Ground-Based Logging

- 6.1.1 This is ground-based logging to include the cutting, skidding, processing, decking, and trucking/hauling of Schedule B material. Ground-based logging typically occurs on slopes that are less than 35%. Material size and density will vary from task order to task order, units could contain only sawlog material, only non-sawlog material, or a mix of sawlog material and non-sawlog material. These treatments could be comparable to a “Commercial Treatment” or a “Pre-Commercial Treatment” depending on the specifics of the task order.
- 6.1.2 Cut, yard, and haul all material as designated by the task order.
- 6.1.3 Cut material shall be piled to facilitate utilization or burning as specified on the task order.
- 6.1.4 Upon completion of cutting and yarding, all slash shall be lopped and scattered to within 12 inches of the ground.
- 6.1.5 All sawlogs will be decked separately from submerchantable material immediately after processing.

6.2 Item 2, Cable/Tethered Logging

- 6.2.1 This is logging to include the cutting, yarding, processing, decking, and trucking/hauling of Schedule B material. Cable and/or tethered logging typically occurs on slopes that are greater than 35%. Material size and density will vary from task order to task order, units could contain only sawlog material, only non-sawlog material, or a mix of sawlog material and non-sawlog material. These treatments could be comparable to a “Commercial Treatment”, “Pre-Commercial Treatment”, or “Yarding Unmerchantable Material” depending on the specifics of the task order. In rare instances, a task order may specify or allow

logging to be completed by non-cable/tethered equipment (non-ground based, ground-based, helicopter), in these instances, specific slips will be added to the task order in order to cover the logging system requirements.

6.2.2 Cable yarding shall be done with a cable skyline system utilizing a mechanical slack-pulling carriage capable of maintaining a fixed position on the skyline while lateral yarding and having a lateral capability of seventy-five (75) feet. The carriage must not move during in-haul. The system shall have the capability to yard in multi-span configuration.

6.2.3 The leading end of all logs shall be suspended free of the ground during yarding. Lift trees and/or intermediate support trees shall be employed where necessary to meet this requirement.

6.2.4 All logs shall be yarded away from or parallel to streams.

6.2.5 Prior to attaching any logging equipment to a reserve tree, the Contractor shall obtain approval from the Contracting officer and shall take precautions to protect the tree from damage as directed by the Contracting officer.

6.2.6 All sawlogs will be decked separately from submerchantable material immediately after processing.

6.2.7 Cut, yard, and haul all material as designated by the task order.

6.2.8 Cut material shall be piled to facilitate utilization or burning as specified on the task order.

6.2.9 Upon completion of cutting and yarding, all slash shall be lopped and scattered to within 12 inches of the ground.

6.3 **Item 3, Mechanical Brushing (Mowing, Slashbusting)**

6.3.1 Mechanically mow or slashbust all slash, trees, and brush as defined in the task order. Mechanical brushing shall be accomplished with a wheeled or tracked machine with a powered mowing/slashbusting device. The resulting fuel bed shall be treated such that down woody debris are broken up and lowered to the litter layer without visible air spaces and within 6 inches of the ground. Brush fields as specified on each task order shall be mowed within six inches of the ground

6.3.2 Task orders will define any leave tree spacings or designations, reserve areas, and unique specifications.

6.3.3 Cut brush lodged in leave trees shall be dislodged or removed.

6.3.4 Cut brush shall be lopped, slashed and scattered so that resulting debris are no more than 12 inches deep.

6.3.5 All roads designated on the project map shall be kept free of cut brush concurrently with brushing.

6.3.6 Contractor shall protect from injury or damage all task order designated trees, trees that form the boundary of the project areas, and all bearing trees, corner posts and monuments within or adjacent to the project areas as designated by the task order.

6.4 **Item 4, Mechanical Cut and Pile**

6.4.1 This item describes mechanically cutting trees and piling them in the unit rather than skidding them to a landing. Cut and pile all trees except those designated for retention as specified in the task order.

6.4.2 If the trees are not designated for utilization, mechanically pile all cut trees into scattered piles. Piles shall adhere to dimensions and locations specified in the task order.

6.4.3 All live limbs shall be removed from any residual stumps to prevent any new growth from occurring from the stump.

6.4.4 The maximum height of a stump from a cut tree shall be no taller than 6 inches measured from the ground on the uphill side of the stump.

6.4.5 Piles shall not be located within 20 feet of, or beneath the crown of a live tree unless a different distance is specified by the COR/PI on a specific bid item.

6.5 Item 5, Mechanical Piling

6.5.1 This item is identical to Item 4, but it does not include cutting.

6.6 Item 6, Mechanical Grind/Chip and Haul

6.6.1 Contractor grinding/chipping and transport of woody debris will be paid for under these line items. Material will be processed in the woods and then hauled to an acceptable utilization center such as a biomass utilization center. Note that the hauling distance involved and any road maintenance fees on private roads should be figured into task order bids and will be paid by the contractor.

6.6.2 Woody debris removal will consist of utilization and offsite removal of >99% of the material. When complete, landings will be free of woody debris. Use of a tub grinder or similar machine capable of >99% utilization/removal will be required. All Schedule B items designated in the task order shall be hauled and removed offsite for utilization. Task orders will specify whether the bid item tonnage will be lump sum or scaled.

6.6.3 Any residual (<1%) material remaining on landing will be piled or spread as directed by the COR/PI.

6.6.4 No material processing shall be located on a surfaced (asphalt or graveled) road, within 150 feet of any stream, or beneath any power lines. The Contractor shall remove slash and debris from roadways (which includes roadside ditches) resulting from their logging or chipping operations.

6.7 Item 7-8, Blow-Down Tree Clearing

6.7.1 Remove and dispose of trees or limbs that have fallen on or directly adjacent to the roadway, and that are impeding traffic, impeding water flow in the ditch line, or impeding the line of sight. Trees or debris of any size that may create safety problems or diminish use of the road system shall be removed.

6.7.2 All materials removed remain the property of the government unless otherwise provided in the task order.

6.7.3 Task order will specify whether sawlogs shall be charged and hauled offsite or shall be bucked to specified lengths and placed on BLM lands at approved decking areas. Volume of logs will be determined by the BLM and charged as per Schedule B if applicable.

6.7.4 Limb and cut to length fallen timber.

6.7.5 Logs not meeting utilization standards shall be left outside of the roadway limits unless removal is otherwise required. Position these logs away from trees, positioned so they will not roll and are not on top of one another.

6.7.6 Cut unmarked materials and any remaining trunks from marked materials at the toe of the fill and 2 feet above the top of cut slope.

- 6.7.7 Do not leave woody debris and slash in ditches, drainage channels, traveled way, shoulders, or turnouts. Accumulations of debris may be required to be hauled to previously approved waste areas. Scatter materials that are not required to be hauled down slope from the roadbed, and avoid drainage ways or accumulations at the base of conifer trees.
- 6.7.8 Bid item 7 will be calculated by “each” tree removed. Each tree will be marked and tallied by the contractor as directed by the COR or will have been marked and tallied by the government to facilitate the “each” designation.
- 6.7.9 Bid item 8 will be calculated by the mile rather than “each”. Fallen trees would be cleared/removed by a piece of equipment traveling down a continuous stretch of road and disposing of the material as designated by the task order.

6.8 Item 9 and 10, Individual Tree Cut and Remove

- 6.8.1 This item concerns the cutting and removal of individual trees that have been designated by the government for cutting and removal. An example could be individually marked or designated standing trees that are leaning over a roadway or campsite. Cut and remove designated material as specified. Bid item includes the falling of the tree and the removal/hauling of the tree off-site for utilization. Falling may be accomplished via chainsaw or machine, removal of material will necessitate appropriate equipment. Contractor would be charged cost of tree volume as per Schedule B.
- 6.8.2 Bid item 9 will be calculated by “each” tree removed. Each tree will be marked and tallied by the contractor as directed by the COR or will have been marked and tallied by the government to facilitate the “each” designation.
- 6.8.3 Bid item 10 will be calculated by the mile rather than “each”. Trees would be felled and removed by a piece of equipment traveling down a continuous stretch of road and disposing of the material as designated by the task order.

6.9 Item 11, Individual Tree Cut and Leave

- 6.9.1 This item concerns the cutting and leaving of individual trees that have been designated by the government for cutting. An example could be individually flagged or designated standing trees that are leaning over a roadway or campsite. Bid item would be paid per tree and includes the falling of the tree. Falling may be accomplished via chainsaw or machine, movement of material may necessitate appropriate equipment.
- 6.9.2 If the tree is felled near a road, all tree material will be moved from the road prism. Do not leave woody debris and slash in ditches, drainage channels, traveled way, shoulders, or turnouts. Place and scatter the moved materials down slope from the roadbed and avoid drainage ways or accumulations at the base of conifer trees.

6.10 Item 12, Manual Thinning

- 6.10.1 A chainsaw will be used to cut and lop trees as designated in the task order.
- 6.10.2 The COR/PI may identify additional individual reserve trees located in irregular clumps or patches.
- 6.10.3 The task order will specify how to utilize or pile the cut material using appropriate bid items. If the material is not utilized or hand piled, the stem of all cut trees shall be severed into 4-foot lengths or smaller and limbed. All slash shall be lopped and scattered to within 12 inches of the ground. The maximum height of a stump from a cut tree shall be no taller than 6 inches measured from the ground on the uphill side of the stump.

6.11 Item 13, Manual Hand Piling

- 6.11.1 Hand pile all slash 1 inch to 10 inches in diameter.
- 6.11.2 Piles shall range between 5 feet by 5 feet and 30 feet by 30 feet as specified by the task order.
- 6.11.3 Piles shall not be located within 20 feet of, or beneath the crown of a live tree.
- 6.11.4 All piles shall be covered with a minimum 6 foot by 6 foot piece of 4-mil thickness black polyethylene plastic. Hand piles shall be covered such that at least 90 percent of the piles surface area shall be covered.

6.12 Item 14, Manual Brushing

- 6.12.1 The work consists of manually brushing with a chainsaw. Brush density ranges from light to very dense. Specifics will be detailed in the task order and may differ from the below stipulations.
- 6.12.2 The Contractor's performance shall not cause injury or removal of any conifer species existing on the units. This is not a thinning operation, and conifer trees are all considered "leave trees" on manual brushing units unless specified by the task order.
- 6.12.3 Cut all competitive brush within a 5-foot radius or leaning into the 5-foot radius of each conifer leave tree.
- 6.12.4 Competitive brush shall be completely severed from the stumps unless otherwise specified herein.
- 6.12.5 Competitive brush shall be cut down to a height not to exceed six inches from ground level, measured on the uphill side.
- 6.12.6 Cut brush lodged in leave trees shall be dislodged or removed.
- 6.12.7 Cut brush shall be lopped, slashed and scattered so that the resulting debris are no more than 12 inches deep unless hand piling is included in the task order.
- 6.12.8 All roads designated on the task order map shall be kept free of cut brush concurrently with brushing.
- 6.12.9 Leave islands of brush will be identified by the COR/PI and described either by acres or a percentage of the total acreage.
- 6.12.10 Contractor shall protect from injury or damage all marked trees that form the boundary of the project areas, and all bearing trees, corner posts and monuments within or adjacent to the project areas as shown on the task order maps.

6.13 Item 15, Snag Creation – Climb and Top

- 6.13.1 Task order will define snag selection criteria.
- 6.13.1 This work will require manual tree climbing and topping of trees with a chainsaw.

6.14 Item 16, Snag Creation - Tree Girdling

- 6.14.1 Task order will define selection criteria
- 6.14.2 Snags shall be created by girdling live, green trees at three and one-half (3½) feet above the root collar; girdling will generally consist of removing a four (4) inch band of bark and completely severing the cambial tissue around the bole of the tree, without cutting into the sapwood more than one and one-half (1½) inches.

7.0 SPECIFIC TASKS – ROAD AND ROAD VEGETATION ACTIVITIES

7.0.1 Item 17, Grading Road Surface and Shoulders

- 7.0.2 The Contractor shall grade/blade road surface of native or aggregate surfaces to facilitate traffic. Banks shall not be undercut. Back blading with tractors or similar equipment will be allowed only around landings and other areas when approved by the COR/PI. Provide proper drainage. Blading shall be on the road surface and includes shaping the crown or slope of the traveled way, turnouts, berms, shoulders and reshaping water bars and/or drainage dips in accordance with this specification. Water and/or Compaction are required when shown on the road listing. Road shoulders are a part of this requirement when maintaining native and/or aggregate surfaces. The COR/PI may require surface course material that is graded/placed outside the traveled way to be recovered.
- 7.0.3 This work will conform to the lines, grades, dimensions, and typical cross sections shown on the Exhibit C13, C14, and C15 located in Section C of this contract.
- 7.0.4 Where trash or debris is on the road surface, remove debris prior to blading so debris is not mixed into potholes or surfacing materials.
- 7.0.5 Blade and shape the existing traveled way and shoulders, including turnouts, unless otherwise ordered.
- 7.0.6 Blading shall produce a surface which is uniform, consistent to grade, and crowned or cross-sloped as indicated by the character of the existing surface, to at least 1/4 inch per 1 foot of width, but not more than 3/4 inch per 1 foot of width (2% to 6 %).
- 7.0.7 Thoroughly loosen surfacing material to no less than 2 inches depth or 1” below the bottom depth of potholes or washboards whichever is greater.
- 7.0.8 Scarification to facilitate cutting to below the bottom of potholes or corrugations will be considered incidental to blading. Do not scarify deep enough to cause contamination of the surfacing material. Contaminated material created by the contractor shall be removed by the contractor and replaced with approved material at no additional cost to the government.
- 7.0.9 When water application is included; apply water during blading when sufficient moisture is not present to prevent segregation of surface materials.
- 7.0.10 Blading when excessive moisture is on the surface that causes runoff of materials and surface water is prohibited.
- 7.0.11 Shape existing native rock or aggregate surfaced drainage dips to divert surface runoff to existing outlet devices, ditches, and discharge location.
- 7.0.12 Establish a blading pattern, which provides a uniform driving surface, retains the surfacing on the roadbed, and provides a thorough mixing of the materials within the completed surface width. Remove any oversized material (greater than the largest surfacing material dimension) from the road surface or shoulders and place outside the roadbed. Oversized material may be scattered off the roadbed if there is free drainage and material does not contain road grade rock. If oversized material does not meet the above criteria to be left, the oversized material must be removed and transported to an approved waste area.

Shape and compact the traveled way and shoulders using one of the following methods:

Method A – Compact the aggregate by operating spreading and hauling equipment over the full width of each layer of aggregate.

Method B – Moisten or dry the aggregate to uniform moisture content suitable for compaction. Operate rollers over the full width of each layer until visual displacement ceases, making no fewer than three complete passes. (A pass is defined as a single complete coverage of the surface).

Method C – Ensure that materials produced by pit-run and grid rolling are visually moist and compacted using operating compaction equipment over the full width of each layer until visual displacement ceases.

- 7.0.13 Roads will be measured on centerline miles to the nearest tenth for single lane roads. Double lane miles must be at least 22 feet wide and will be counted as two single lane roads. Roads must be identified as double lane.

- 7.0.14 Watering- This work shall consist of furnishing and applying water required for the finishing and reconditioning of existing roadbeds, laying dust, dust abatement during active haul, or for other uses in accordance with these specifications.

Water, when needed for compaction or laying dust, shall be applied at the locations, in the amounts, and during the hours as directed by the COR. Amounts of water to be provided will be the minimum needed to properly execute the compaction requirements in conformance with these specifications, and for laying dust during work periods.

Water trucks used in this work shall be equipped with a distributing device of ample capacity and of such design as to ensure uniform application of water on the roadbed.

Water required under these specifications shall be obtained at a location designated by the COR. Use of the water source is subject to applicable State water regulations.

7.1 Item 18, Road Maintenance (grading, ditching, culvert cleaning, brushing)

- 7.1.1 This bid item is the same as Bid Item 17, with additional culvert cleaning, ditch maintenance, and brushing as described below and detailed in Exhibit C5.
- 7.1.2 Culvert Cleaning
- 7.1.3 Drainage culvert and structure maintenance including cross drains: Maintain the uninterrupted flow of water through existing culverts or drainage structures. This work consists of cleaning and reconditioning culverts and other drainage structures.
- 7.1.4 Clean culvert inlets, catch basins and inlet ditches within five feet of the culvert/structure. Ditches and catch basin slopes shall be shaped in a manner to prevent raveling.
- 7.1.5 Culvert outlets will be cleaned to facilitate unobstructed drainage. Scour pockets and slope degradation will be repaired.
- 7.1.6 Material will be removed as necessary to ensure loose material does not fall within the five-foot area of the culvert /structure. The ditch line adjacent to the culvert inlet will be cleaned to match the existing ditch line.
- 7.1.7 Damaged culverts shall be repaired to provide for original drainage capacity of the culvert size. Damage due to Contractor negligence shall be repaired at contractor's expense. Repair will be inspected and shall be approved by the COR/PI.
- 7.1.8 Small amounts (2 cubic yards or less) of debris and vegetation may be removed and placed beyond the outside shoulder when authorized. Loose material shall not be placed so it could enter into streambeds or cause steep side slopes to fail.

- 7.1.9 Large quantities (2 cubic yards or more) of material removed may require hauling to specified waste disposal area.
- 7.1.10 Hydraulic flushing of drainage structures is not allowed unless authorized by the COR/PI. If drainage structure is damaged due to hydraulic flushing action, contractor will be responsible for replacing the culvert.
- 7.1.11 Contractor shall be responsible for replacement or repair of any drainage structure damaged by Contractor operations.
- 7.1.12 Ditch Maintenance
- 7.1.13 The Contractor shall provide for maintenance of various types of ditches and/or waterways. The work provides for removal of slough, silt, slash and other debris from drainage ditches to provide for unobstructed water flow in the ditch. Drainage ditch maintenance is limited to materials contained within the ditch below the elevation of the adjacent edge of the traveled way or shoulder.
- 7.1.14 Clean and shape ditch as needed to protect the traveled way, ditch, back slope or fill slopes.
- 7.1.15 Maintain ditches by removing rock, soil, wood, and other materials while retaining low growing vegetation cover where required or possible.
- 7.1.16 Maintained ditches shall function to meet the intent of the original design.
- 7.1.17 Undercutting back slopes during removal operations is not permitted.
- 7.1.18 Suitable material (as defined by Federal Highway Projects (FP-14)) up to 4 inches in greatest dimension removed from the ditches may be blended into existing native road surface and shoulder. Non-suitable material shall be hauled and disposed of in an approved location.
- 7.1.19 Do not blend material from ditch-cleaning operations into, nor blade across aggregate-surfaced roads or bituminous-surfaced roads. On natural surface roads, ditch material (non-vegetation materials) may be bladed across the surface and the ditch materials may be used for road fill or repair.
- 7.1.20 Remove excess materials temporarily stored on the ditch slope or edge of the shoulder daily.
- 7.1.21 Shape leadoff ditches to drain away from the traveled way.
- 7.1.22 Road Brushing - See Bid Item 23.
- 7.2 **Item 19, Spot Rocking with Contractor supplied rock**
- 7.2.1 Place specified surface aggregate rock materials in locations as designated in the task order. This rock will be purchased by the contractor from a local private quarry and then hauled, placed, spread, and compacted by the operator. The surface aggregate shall meet the specification shown in Table C.7.2.3 below. This aggregate shall be used to repair surface failures and areas of depleted surface depth, excluding damages covered by this contract. The aggregate shall be furnished, hauled, placed, and spread, by use of dump trucks, water trucks, motor patrol grader, roller or similar equipment in accordance with BLM construction standard Manual Section 9113 for Roads. Each task order will list the amount and location of the aggregate.
- 7.2.2 This work will conform to the lines, grades, dimensions, and typical cross sections shown on the Exhibit C13, C14, and C15 located in Section C of this contract.
- 7.2.3 Sub-base, Base, and Surface Course Aggregate.

(a) Furnish hard, durable particles or fragments of crushed stone, crushed slag, or crushed gravel conforming the following:

- (1) Los Angeles abrasion, AASHTO T 96 50% max.
- (2) Sodium sulfate soundness loss (5 cycles), 12% max. AASHTO T 104
- (3) Durability index (coarse), AASHTO T 210 35 min.
- (4) Durability index (fine), AASHTO T 210 35 min.
- (5) Fractured faces, ASTM D 5821 50% min.
- (6) Free from organic matter and lumps or balls of clay.

Do not use material that breaks up when alternately frozen and thawed, or when moistened to the point of being wet and then dried. Obtain the aggregate gradation by crushing, screening, and blending processes as necessary. Fine aggregate, material passing the No. 4 sieve, shall consist of natural or crushed sand and fine mineral particles. Crushed rock material shall consist of hard durable rock fragments conforming to the following gradation requirement:

(b) Sub base or base aggregate. In addition to (a) above, conform to the following:

- (1) Gradation Table C.7.2.3
- (2) Liquid limit, 25 max.

Table C.7.2.3

Percentage by mass passing designated mesh sieves AASHTO T 11 & T 27 GRADATION

() The value in the parentheses is the allowable deviation ($\pm$) from the target values.

Sieve Designation	A (Sub base)	B (Sub base)	C (base)	D (base)	E (base)	F (base)
3 IN.	100(1)					
2½ IN.	-	100 (1)				
2 IN.	90-95(1)	97-100 (1)	100 (1)			
1½ IN.	-	-	-	100 (1)		
1 IN.	45-75 (6)	65-79 (6)	80-100 (6)	-	100 (1)	
¾ IN.	-	-	64-94 (6)	60-95	86-100 (6)	100 (1)
½ IN.	-	45-59 (7)	-	-	-	-
3/8 IN.	-	-	40-69 (6)		51-82 (6)	62-90 (6)
No. 4	15-45(7)	28-42 (6)	31-54 (6)	30-55	36-64 (6)	36-74 (6)
No. 8	-	-	-	-	-	-
No. 10	-	-	-	-	-	-
No. 30	-	-	-	11-27		-
No. 40	5-25 (5)	9-17 (4)	-	-	12-26 (4)	12-26 (4)
No. 200	2-15(3)	4-8 (3)	4-7 (3)	3-15	4-7 (3)	4-7 (3)

7.2.4 Aggregate Surface Course Crushed Rock Material Specifications shall consist of hard durable rock fragments conforming to the following gradation requirements:

- (c) Surface course aggregate. In addition to above, conform to the following:
- (1) Gradation and plasticity index, AASHTO T 27 & T 11 Table C.7.2.4
 - (2) Liquid limit, 3 to 35 max. Do not furnish material that contains asbestos fibers.

Table C.7.2.4 Target Value Ranges for
Surface Course Gradation and Plasticity Index

Sieve Size	Percent by Mass Passing Designated Sieve (AASHTO T 27 & T 11)
1 inch	100 (1)
3/4 inch	97- 100 (1)
No. 4	41 - 71 (7)
No. 40	12 - 28 (5)
No. 200	9 - 16 (4)
Plasticity index	8 (4)

() The value in the parentheses is the allowable deviation ($\pm$) from the target values.

- 7.2.5 Crushed Aggregate. Furnish hard, durable particles or fragments of crushed stone or gravel conforming to the size and quality requirements for crushed aggregate material normally used locally in the construction and maintenance of highways by Federal or State agencies. Furnish crushed aggregate with a size of $\frac{3}{4}$ "-3" as determined by AASHTO T 27 and T 11. Furnish crushed aggregate uniformly graded from coarse to fine and free of organic matter, lumps or balls of clay, and other deleterious matter.
- 7.2.6 Each layer of crushed rock material shall be thoroughly mixed on the roadbed by alternately blading, to full depth, until a uniform mixture has been obtained. The mixture shall then be spread to full width. When completed, the spreading shall produce a surface which is smooth and presents uniform shoulder lines.
- 7.2.7 Crushed rock material conforming to the requirements of these specifications shall be placed on the approved roadbed. Compacted layers shall not exceed 4 inches in depth. Irregularities or depressions that develop during compaction of the top layer shall be corrected by loosening the material at these places and then adding or removing crushed rock material until the surface is smooth and uniform.
- 7.2.8 Each layer of crushed rock material placed, processed, and shaped as specified shall be moistened or dried to uniform moisture content suitable for maximum compaction and compacted to full width by compacting equipment. Minimum compaction shall be 1 hour of continuous compacting for each 150 cubic yards or fraction thereof, of crushed rock material placed per layer.
- 7.2.9 Distribute and apply water required for compaction of the existing road and parking area maintenance work and new crushed aggregate base course as required.
- 7.2.10 Water shall be clean and free from deleterious materials which would cause road damage.
- 7.2.11 Provide necessary pumping equipment and water trucks. Water trucks shall be equipped with a pressure pump and spray bar of adequate capacity and design to ensure uniform application of water in the amounts designated.
- 7.2.12 Water shall be applied in such a manner to ensure uniform moisture content.

7.2.13 Compaction: The amount of water added or applied shall be sufficient to obtain a relative compaction so that the road surface is smooth overall.

7.2.14 Water dry material to prevent dust.

7.2.15 Seasonal Maintenance

- a. The Contractor shall perform preventive maintenance at the end of each Contractor's hauling season and during non-hauling periods which occur between other operations on the contract area. This includes cross ditching, removing ruts or other surface irregularities and all other requirements specified.
- b. The Contractor shall be responsible for performing post storm inspections and maintenance during the wet season to minimize erosion and potential road or watershed damage.
- c. Road damage that occurs outside of normal operating season (October 15th to June 1st) or road damage caused by Contractor activities shall be repaired at no cost to the Government.

7.2.16 Final Maintenance

- a. The Contractor shall complete final maintenance and/or damage repairs on all roads used under terms of this contract within 30 calendar days of written notification. This work shall include any maintenance as required by task order and/or damage repairs.
- b. The COR/PI may grant acceptance of Contractor's maintenance responsibility in part where certain individual roads or road segments are no longer of any use to the Contractor's remaining removal operations. Request for partial acceptance must be submitted in writing by the Contractor to the COR/PI.
- c. The Contractor shall perform final road maintenance only when weather or soil moisture conditions are suitable for normal maintenance equipment operations as determined by the COR/PI.
- d. If final maintenance is delayed, the Contractor will be notified by the COR/PI when soil moisture and equipment conditions are suitable. The Contractor shall then be required to complete final maintenance within 5 days of notification.

7.3 **Item 20, Spot Rocking with BLM supplied rock**

7.3.1 This item is the same as Item 14, the only difference being that the contractor does not have to purchase the rock from a private quarry or entity. The rock will be sourced from BLM owned stockpiles. The contractor will need to load and haul the rock from the BLM owned stockpile(s) (as well as place, spread, and compact the rock as described in Item 19), but the contractor will not need to purchase said rock.

7.4 **Item 21, Temporary/Primitive Road Building**

7.4.1 Temporary roads are dirt in surfacing and typically short in distance (< 0.25 miles), the work is simple and accomplished using a dozer and grader. Temporary roads are generally built for one or two seasons of use for limited traffic and require that any temporary road built be designed with the goal of reestablishing vegetative cover on the roadway and adjacent disturbed area within ten years after the termination of the contract. Task Orders will include information regarding the need to restore temporary roads and the surrounding areas, this work will be included in the cost of this bid item.

- 7.4.2 The contract shall require out sloping, removal of culverts and ditches, and building water bars or cross ditches after the road is no longer needed.
- 7.4.3 Temporary roads to be constructed shall be 12 feet wide, with a minimum amount of disturbance, natural (dirt) surface, drained by dips at logical locations, and completely blocked with a dirt mound, cull logs (36" or larger dia.), or large rocks (Three man or larger) at or near beginning of construction, by November 1st of each year of use. All ditches shall be v-bottom with 2:1 slopes unless specified in field by COR/PI. The Contractor shall maintain all roads specified within the task order. See Standard Cross Section attachment to Section C.
- 7.4.4 Turnouts: Turnouts are best located on points, in gullies, or ravines. Construct where indicated by locator but adjust to take advantage of points and ravines. Keep in mind that turnouts should be intervisible on steep, single lane segments. See Standard Cross Section in Section C. Standard turnout is 10 feet wide and 50 feet in length with tapered transitions of 25 feet on each end.
- 7.4.5 Fords: Fords are generally selected but can also be constructed, but sometimes some improvements are required to minimize damage to the stream channel. A ford is a shallow place with good footing where a river or stream may be crossed by wading or inside a vehicle. A ford is mostly a natural or enhanced low water crossing with minimal disturbance, that allows crossing a river or stream when water is low (reference seasonal crossing information provided by the COR/PI). A ford is an inexpensive form of river-crossing that may become impassable after heavy rain or during flood conditions. A ford is therefore normally only suitable for very minor roads. Hardened Fords can be hardened large rock or poured concrete and require appropriate design and specification when specified. Fords will be designed and identified according to natural features.
- 7.4.6 Grade Dips: Grade dips are sections of the primitive road where a shorter piece, generally not over 8 to 10 feet, has been built with a grade slightly adverse to the prevailing grade of the route segment. This prevents the flowing water from passing that point. The primitive road is steeply out sloped at the lowest point in the dip to divert the water from the travel way. Grade dips are the most satisfactory when they are built in the original construction and the designed grade allows for the adverse section to be built in a cut section. See below and Water Bars, Dips and Trenches in Section C.
- 7.4.7 Water Bars: See Exhibit D7 in Section C. When constructing water bars, take advantage of natural breaks in the ground surface, which will provide good drainage with minimal disturbance. The COR/PI will have the discretion to authorize construction variances based on site and soil conditions.
- 7.4.8 Erosion Control. Erosion control is an important consideration on steep slopes. When steep cut slopes or embankments are constructed in erosive soils, methods to control erosion shall be employed and approved by the COR/PI. Erosion control can be permanent (rock, fabrics, grids, concrete) or temporary (straw mats, hay bales, brush piles or plantings). And are required when a project remains active over the winter.
- 7.4.9 Maintain the cross section of existing dirt or graveled roads to the existing geometric standards.
- 7.4.10 Blade and shape the road surface and shoulders with a motor patrol grader.
- 7.5 **Item 22, Culvert Installation/Removal**
- 7.5.1 Standard Culverts required are 24" x 40", but Task Order requirements may require variations in diameter and/or length and shall be inspected and approved by the COR/PI. Culverts over 48 inches are out of scope of this requirement. This work may include removal and disposal of existing culverts, bed preparation, installation, backfill and compaction for new culverts of the size and length specified. Culverts removed become the property of the Contractor unless otherwise specified. Disposal shall be at an approved facility

and at the expense of the Contractor. Downspout or flume installation may be required in association with culvert installation specifications.

7.5.2 This work will conform to the lines, grades, dimensions, and typical cross sections shown on the Exhibit C9-1, C9-2, C10, and C11 located in Section C of this contract.

7.5.3 Size of replacement pipe to be installed will be determined by the Government. All culverts installed shall meet the requirements of the "Standard Specifications For Construction of Roads and Bridges on Federal Highway Projects (FP-14)".

7.5.4 Cover over the pipe will be a minimum of 12 inches at the inlet.

7.5.5 Skew angle and grade will be determined on site prior to installation.

7.5.6 Install down spouts at locations identified by the government prior to installation.

7.5.7 Place riprap or other material under down spout culvert outlet to prevent erosion when required.

7.5.8 Permits are required to place culverts in live streams. Contractors are required to obtain and comply with all permits. Allowable work periods for in-stream culvert replacement may be restricted and are shown on the Internet <https://nrimp.dfw.state.or.us/nrimp/default.aspx?pn=guidelineTimingTables> If the culvert replacement is on a fish bearing stream it may be covered by the USFS-BLM Regional General Permit, there are pre and post project reporting requirements from BLM. If a project is not covered by that the contractor may have to apply for a joint Section 401 permit with the Department of State Land and Army Corps of Engineers.

7.6 **Item 23, Road Brushing**

7.6.1 This work shall consist of the removal of vegetation from the road prism-variable distance, and inside curves in accordance with these specifications and conforming to the lines, grades, dimensions, and typical cross sections shown on the Exhibit C6 located in Section C of this contract.

7.6.2 This may involve removing logs from the road in order to access portions of the road/clear the road. Follow specs for Item 7-8 in this case or as specified by the task order.

7.7.3 Roadside brushing may be performed mechanically with self-powered, self-propelled equipment and or manually with hand tools, including chain saws.

7.7.4 Vegetation cut manually and or mechanically less than 7 inches in diameter at DBH shall be cut to a maximum height of 4 inches above the ground surface (unless otherwise approved by the COR) or above obstructions such as rocks or stumps on cut and fill slopes and all limbs below the 4-inch area will be severed from the trunk.

7.7.5 Vegetation shall be cut and removed from the roadbed between the outside shoulder(s) and the ditch centerline and such vegetation shall be cut to a maximum height of 4 inches above the ground and running surface. Limbs below the 4-inch area will be severed from the trunk. Sharp pointed ends will not be permitted. Cuts shall be parallel to the ground line or running surface.

7.7.6 Trees in excess of 7 inches in diameter at DBH shall be limbed, so that no limbs extend into the treated area or over the roadbed to a height of 14 feet above the subgrade of the roadway on cut and fill slopes, within the road prism-variable distance. Limbs shall be cut to within 1 inch of the trunk to produce a smooth vertical face. Removal of trees larger than 7 inches in diameter for sight distance or safety may be directed by the COR/PI.

- 7.7.7 Inside curves shall be brushed out for a sight distance of 200 feet chord distance. Overhanging limbs and vegetation in excess of 1 foot in height, shall be cut within these areas.
- 7.7.8 Self-propelled equipment shall not be permitted on cut and fill slopes or in ditches.
- 7.7.9 Debris resulting from this operation shall be scattered downslope from the roadway. Debris shall not be allowed to accumulate in concentrations. Debris in excess of 6 foot in length and 2 inches in diameter shall not be allowed to remain on cut slope, ditches, roadways or water courses, or as directed by the COR/PI.
- 7.7.10 Sections of roadway to have vegetation removed will be marked at start and stop points with pieces of red ribbon.
- 7.7.11 Mechanical brush cutters shall not be operated when there are people or occupied vehicles within 400 feet of the immediate operating area.
- 7.7.12 Traffic warning sign shall be required at each end of the work area. Signs shall meet the requirement of the Manual on Uniform Traffic Control Devices (MUTCD).
- 7.8 **Item 24, Road Full Decommission**
- 7.8.1 Full decommission of roads to include barriers, water bars, decompaction, and seeding. See Exhibit D8 in Section C.
- 7.9 **Item 25, Barricade Road (Natural Barriers)**
- 7.9.1 Placement of barricades at designated locations. Barricade can be mounds of rock, trenches across entire width of roadway, logs and or natural barricades and shall be determined and specified by the government and approved by the COR/PI. See Exhibit D7 and D9 in Section C
- 7.10 **Item 26, Slide Removal**
- 7.10.1 The Contractor shall remove slides and slough from ditches and rights-of-way on system roads as required by this contract. These would be simple slides that could be partially blocking a road to a unit. Work may consist of grading, loading, hauling, and placing of slide, slough, or excess materials such as rock, soil, vegetation, and other materials to designated disposal sites.
- 7.10.2 Remove, end haul, and dispose of excess materials generated by slide and or back slope sloughing.
- 7.10.3 Slide and slough materials to be removed includes materials in the area extending approximately 6 feet vertically above the road surface and that area extending not more than 3 feet down slope from the roadbed. When materials in one location exceed the above dimensions, a determination will be made by the COR/PI on how to proceed.
- 7.10.4 Disposal of small amounts of material in the immediate work area may be allowed when it is practical to blend materials with the surrounding area. Material shall not be piled or stacked on the roadside, ditches, or culverts.
- 7.10.5 Hauling slide or slough material may be required in some areas. When required, material must be moved to an approved waste area. Upon finishing the hauling, the waste area shall be smoothed and the finished surface shall be shaped to drain.
- 7.10.6 Materials temporarily stored on the ditch slope or edge of the shoulder must be removed at the end of each shift (daily).

7.10.7 Reshape the slope, (which generated the slough or slide material) as nearly as practical, to its original condition by equipment operating from road surface. Reshape roadside ditches in slide area to original condition or grade slope to conditions in accordance with BLM manual or as designated by the COR/PI. Also see Drainage Ditch Maintenance.

7.10.8 Slumps may be filled by compacting suitable selected materials into roadway depressions. Compact the aggregate by operating spreading and hauling equipment over the full width of each layer of aggregate. Place all materials in disposal sites by one or more of the following methods below:

Method 1 - Side Casting and End Dumping. Material may be placed by side casting or end dumping. Where materials include large rocks, provide a solid fill by working smaller pieces and fines into voids. Shape the finished surfaces to drain.

Method 2 - Layer Placement. Step or roughen surfaces on which materials are to be placed prior to placing any material. Place materials in horizontal layers approximately no more than 12 inches thick. Compact each layer by operating hauling and spreading equipment over the full width of each layer.

7.10.9 Repair any damage to existing aggregate or pavement surfaces upon COR/PI Approval. COR/PI Inspection is required.

7.11 **Item 27, Snow Plowing**

7.11.1 Snow plowing shall adhere to the following requirements:

- a. Removal of snow may be done by a rubber-tired grader or front end loader. A 4" layer of compacted snow shall be left on the road surface.
- b. Snow must be removed to the width of the graded road or 14 feet to provide for safe operating room (with adequate turnouts), snow storage and to adequately drain the road surface.
- c. The contractor shall be liable for reimbursement to the BLM for repairs to the road resulting from damage caused by its snow removal operations. The BLM reserves the right to suspend snow removal when evidence of damage to the road surface is noted.
- d. We do not guarantee that logging trucks or equipment will be able to operate once snow is removed.
- e. The contractor must secure permission in writing from the owner of the road if it is not BLM owned.
- f. The contractor must post warning signs within 500 ft of either end of the plowed area.
- g. Provisions shall be made to adequately drain the road surface. Holes shall be punched through the snowbank at periodic intervals maximum five hundred (500) feet to allow for snow melt to drain off the road surface.
- h. The COR/PI reserves the right to suspend snow removal operations when evidence of damage to the road surface is occurring from either plowing or hauling.
- i. Knock down and shape plow berms to accommodate snowmobile traffic.

ROAD DRAWINGS

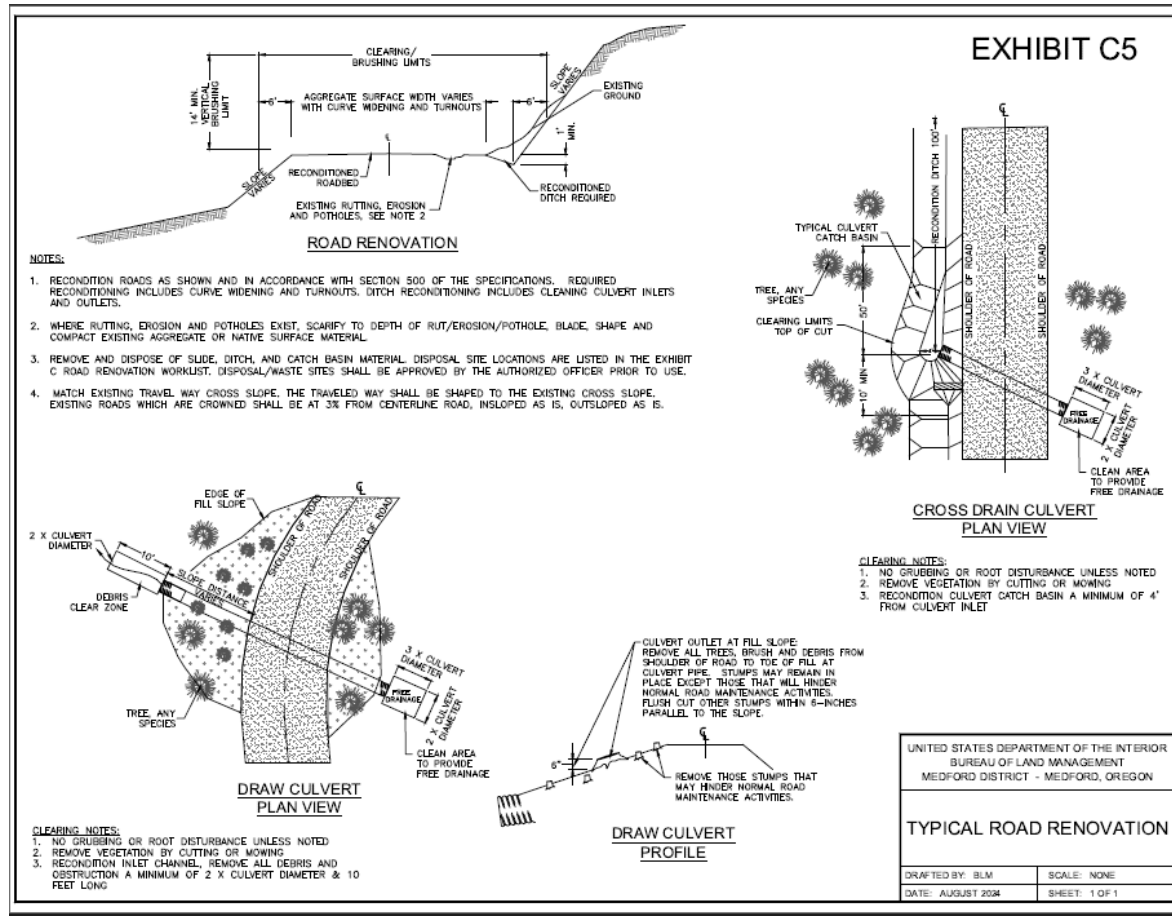
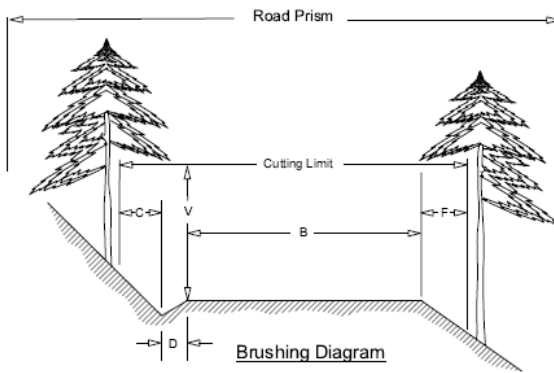


EXHIBIT C6



$$\text{Cutting Limit} = C + D + B + F$$

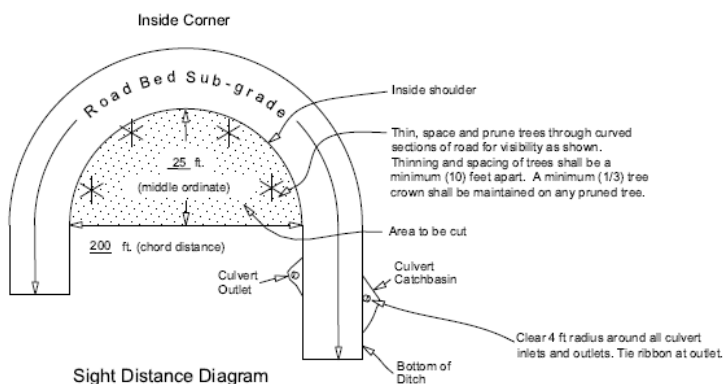
B = Road Bed Subgrade (includes turnouts)
Cut all vegetation to maximum height of 1" flush with the running surface.

C = 6 ft - Distance to be brushed on cut slope beyond centerline of ditch. Cut all vegetation to maximum height of 4".

D = Centerline of ditch to inside shoulder. Cut all vegetation to maximum height of 1".

F = 6 ft - Distance to be brushed on fill slope beyond outside shoulder
Cut all vegetation to maximum height of 4".

V = 14 ft - Height of vertical cutting limit



Sight Distance Diagram

UNITED STATES DEPARTMENT OF THE INTERIOR
BUREAU OF LAND MANAGEMENT
MEDFORD DISTRICT - MEDFORD, OREGON

TYPICAL ROADSIDE BRUSHING DETAIL

DRAFTED BY: BLM SCALE: NONE
DATE: AUGUST 2024 SHEET: 1 OF 1

revised 08/2010

All distances shown are horizontal except for V

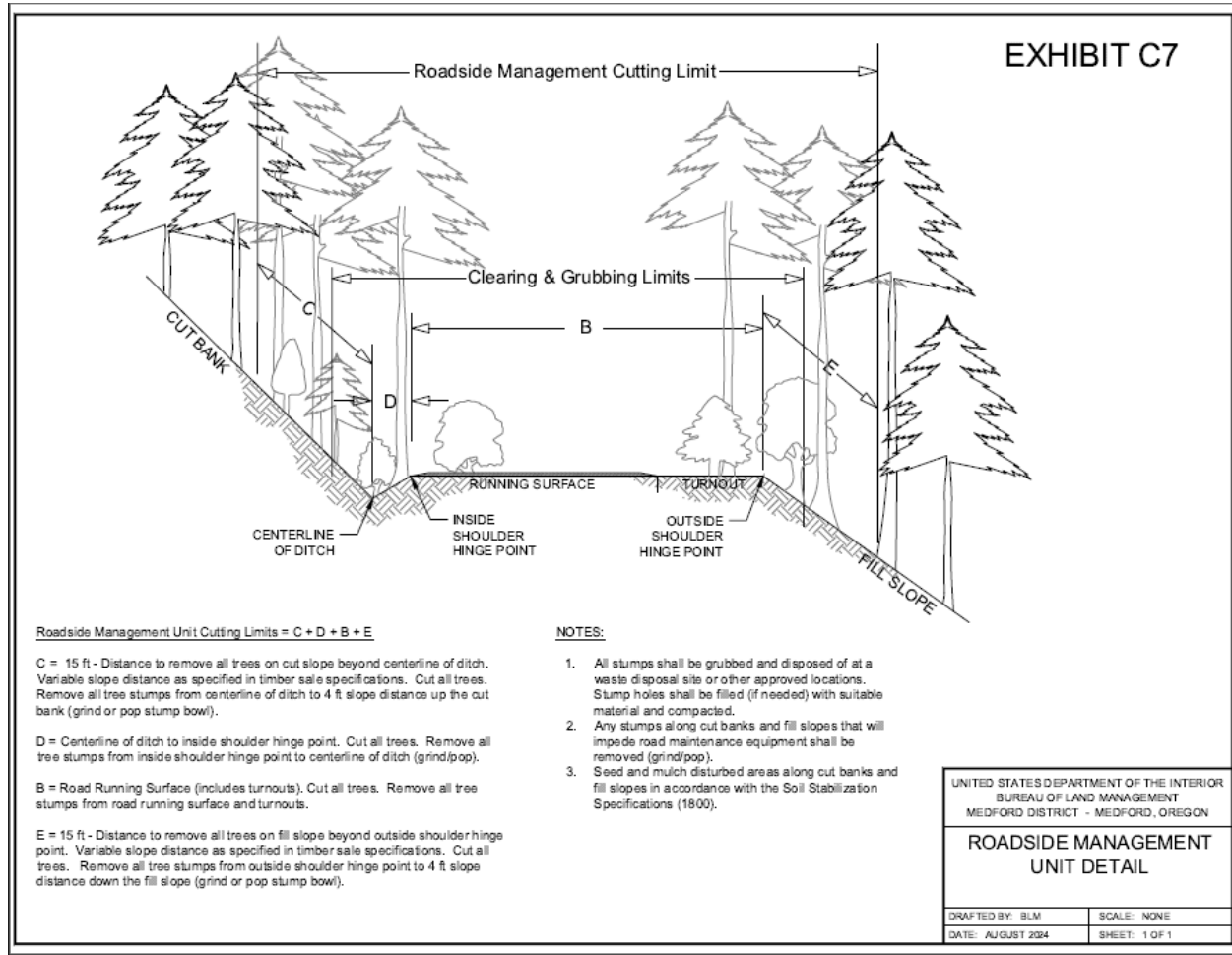
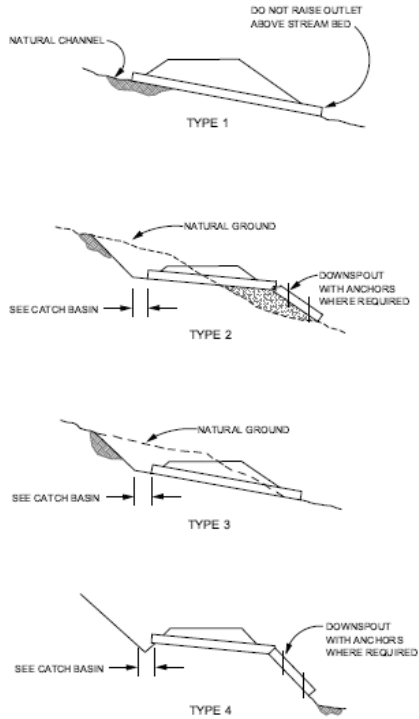
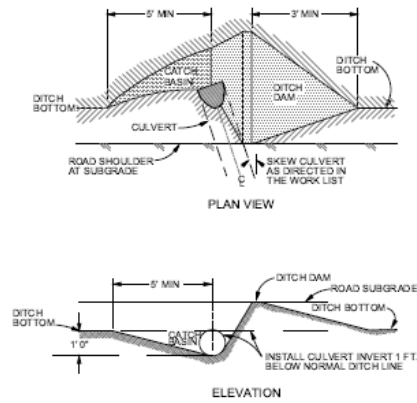


EXHIBIT C9-1

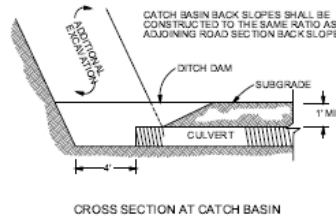
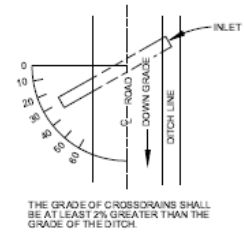
CULVERT INSTALLATION TYPES



CATCH BASIN



SKREW DIAGRAM



UNITED STATES DEPARTMENT OF THE INTERIOR
BUREAU OF LAND MANAGEMENT
MEDFORD DISTRICT - MEDFORD, OREGON

CULVERT INSTALLATION DETAILS

DRAFTED BY: BLM	SCALE: NONE
DATE: AUGUST 2024	SHEET: 1 OF 2

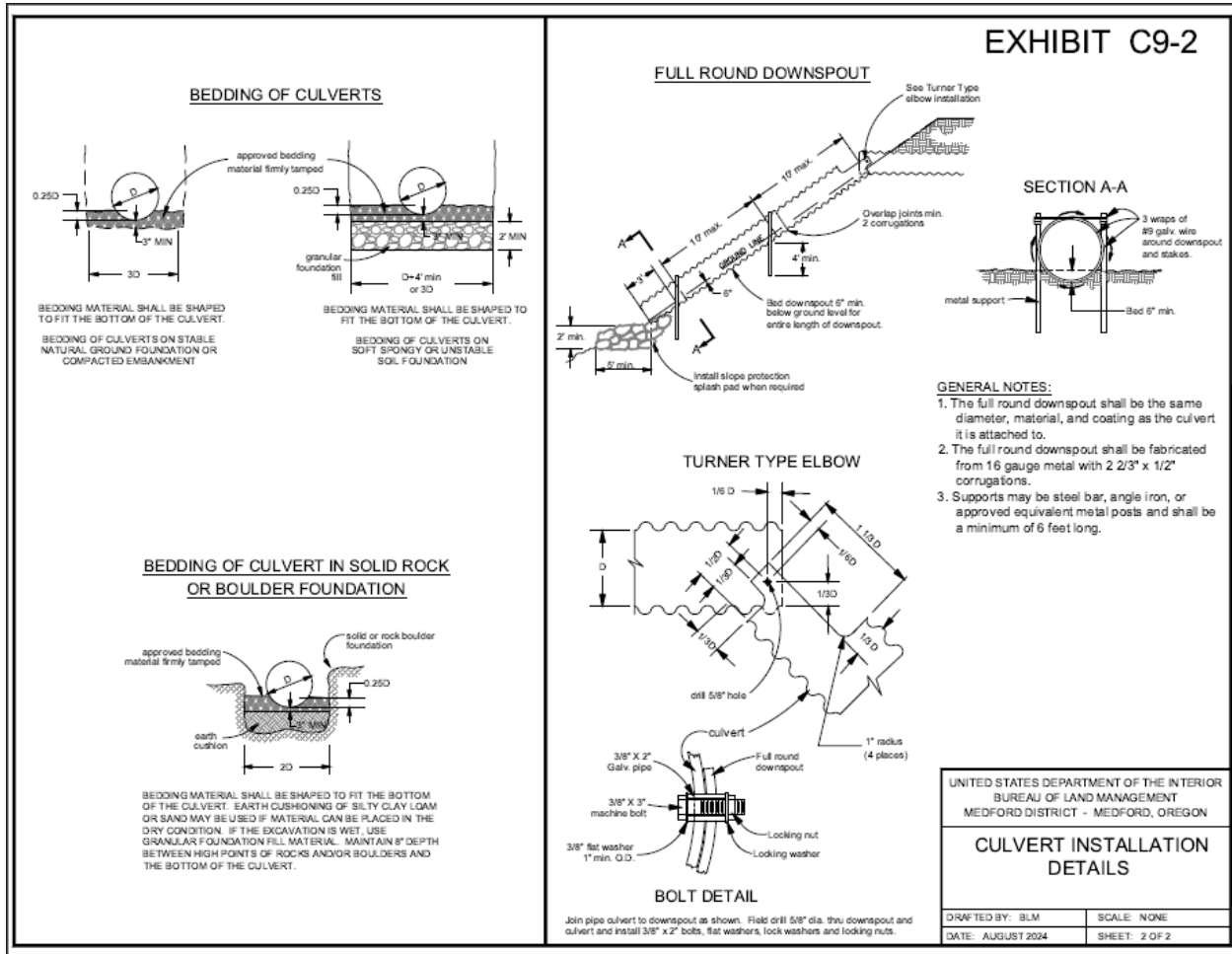
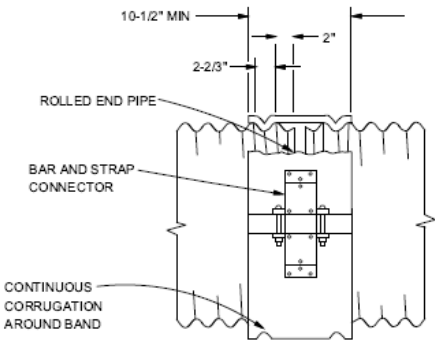


EXHIBIT C10

CSP "HUGGER" COUPLER BANDS



STANDARD CONSTRUCTION IS A ONE PIECE BAND FOR 12" THRU 48" PIPES AND A TWO PIECE BAND FOR 54" PIPES AND ABOVE

THE HUGGER COUPLER BAND OR AN APPROVED EQUIVALENT COUPLER BAND SHALL BE MADE OF THE SAME MATERIAL AND FINISH AS THE PIPES JOINED. THE COUPLER BANDS SHALL BE A MINIMUM OF 10-1/2 INCHES WIDE AND BE 16 GAUGE OR HEAVIER. THE BAND SHALL BE DESIGNED TO BE DRAWN TOGETHER WITH A MINIMUM OF TWO (2) 1/2 INCH BOLTS THROUGH USE OF A BAR AND STRAP SUITABLY WELDED TO THE BAND. THE BAND SHALL ENGAGE AND MESH WITH THE SECOND ANNULER CORRUGATION INWARD FROM THE END OF EACH OF THE CONDUIT SECTIONS JOINED.

WHEN DESIGNATED ON THE PLANS OR IN THE SPECIAL PROVISIONS, GASKETS SHALL BE INSTALLED WHEN THE "HUGGER" TYPE, OR AN APPROVED EQUIVALENT COUPLER BAND IS INSTALLED ON SPILLWAY, OVERSIDE OR DOWN DRAINS.

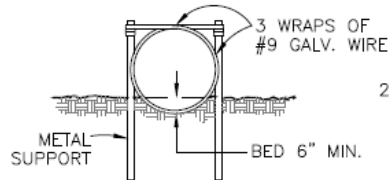
UNITED STATES DEPARTMENT OF THE INTERIOR BUREAU OF LAND MANAGEMENT MEDFORD DISTRICT - MEDFORD, OREGON	
CULVERT BAND DETAIL	
DRAFTED BY: BLM	SCALE: NONE
DATE: AUGUST 2024	SHEET: 1 OF 1

EXHIBIT C11

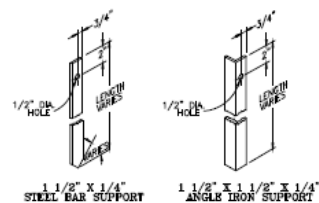
FULL ROUND DOWNSPOUT

NOTES:

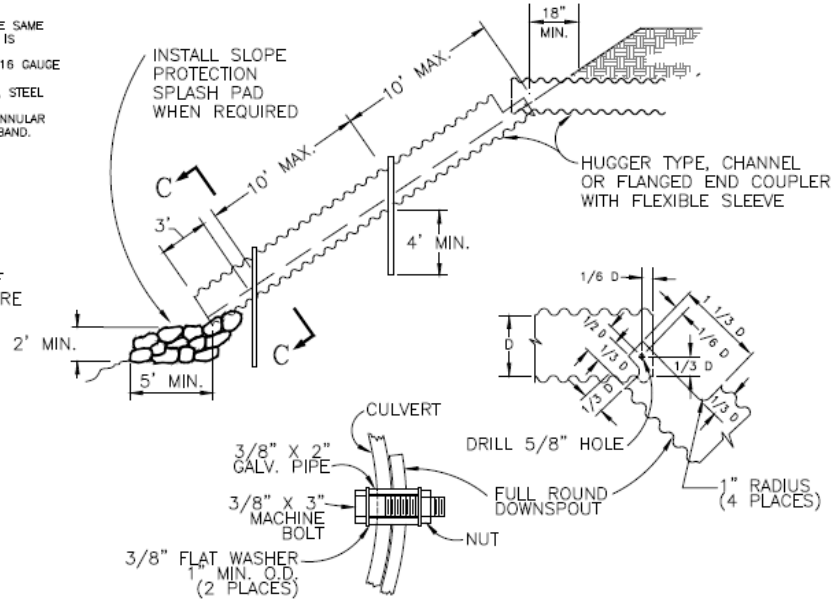
1. THE ELBOW AND SPILLWAY SECTION SHALL BE OF THE SAME DIAMETER, MATERIAL AND COATING AS THE CULVERT IT IS ATTACHED TO.
2. THE SPILLWAY SECTION SHALL BE FABRICATED FROM 16 GAUGE METAL WITH 2 2/3" X 1 1/2" CORRUGATIONS.
3. SUPPORTS MAY BE COMMERCIAL STEEL FENCE POSTS, STEEL BAR, ANGLE IRON OR EQUIVALENT METAL POSTS.
4. CONNECTION BETWEEN HELICALLY CORRUGATED AND ANNULAR PIPE SHALL REQUIRE A SPECIAL ADAPTER COUPLING BAND.



SECTION C-C



METAL SUPPORT DETAIL



TURNER TYPE ELBOW
(ALTERNATE ELBOW)

GENERAL NOTES

1. THE LENGTH OF THE DOWNSPOUT SHALL BE DETERMINED AT THE TIME OF INSTALLATION.
2. FABRICATION AND INSTALLATION OF ALL GALVANIZED STEEL DOWNSPOUTS SHALL CONFORM TO AASHTO M228, ALUMINUM ALLOY TO AASHTO M198, ALUMINIZED TYPE 1 TO AASHTO M199.
3. ALL STEEL NUTS, BOLTS AND WASHERS SHALL BE GALVANIZED. (ASTM A307, A153)
4. SLOPE PROTECTION SPLASH PADS, WHEN REQUIRED, SHALL BE A MIN. 2' WIDE X 5' LONG X 2' DEEP. INDIVIDUAL ROCKS SHALL BE 10\"/>
- 5. SLOPE PROTECTION SPLASH PADS SHALL EXTEND TO UNDISTURBED GROUND.

UNITED STATES DEPARTMENT OF THE INTERIOR
BUREAU OF LAND MANAGEMENT
MEDFORD DISTRICT - MEDFORD, OREGON

DOWNSPOUT INSTALLATION DETAILS

DRAFTED BY: BLM	SCALE: NONE
DATE: AUGUST 2024	SHEET: 1 OF 1

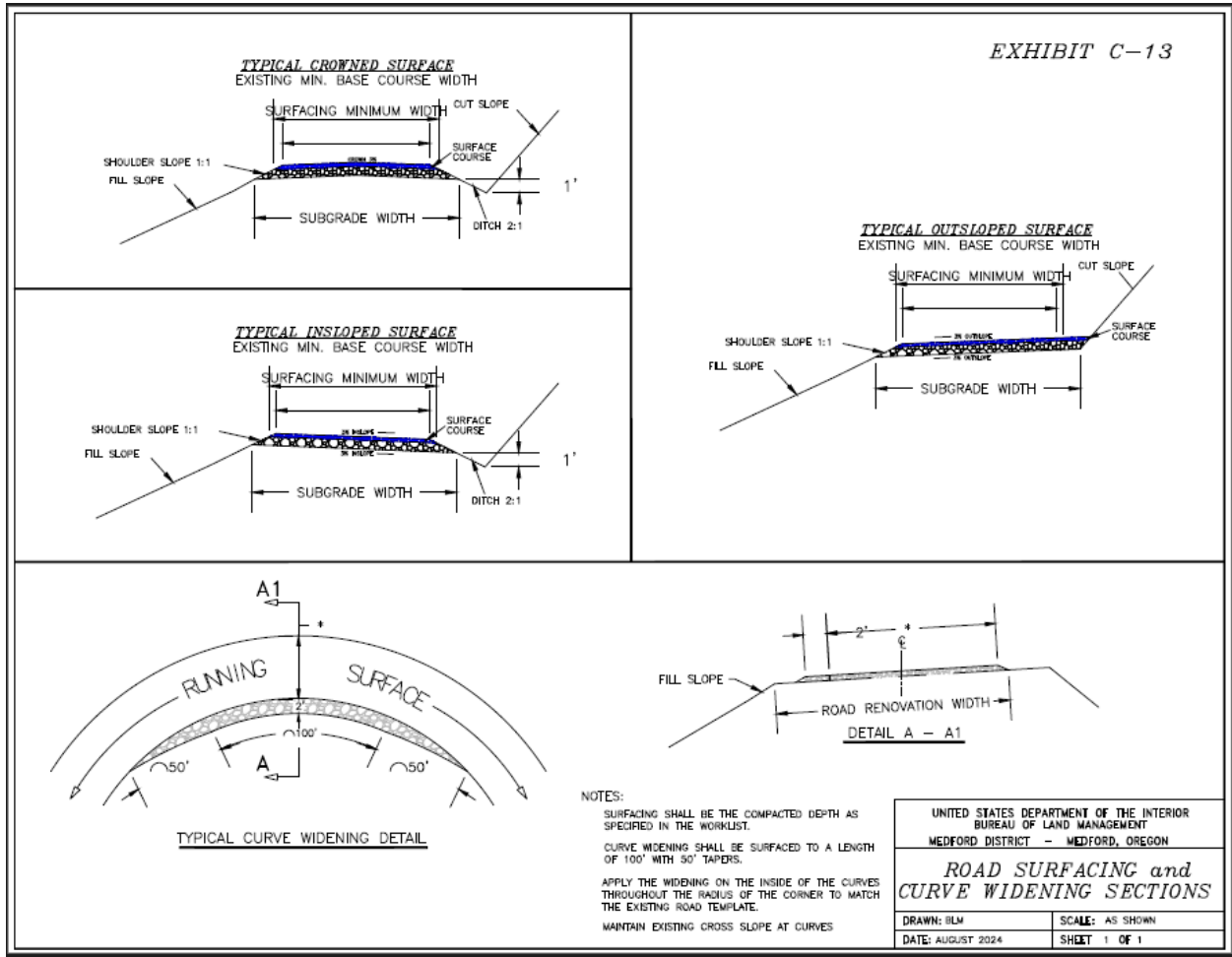
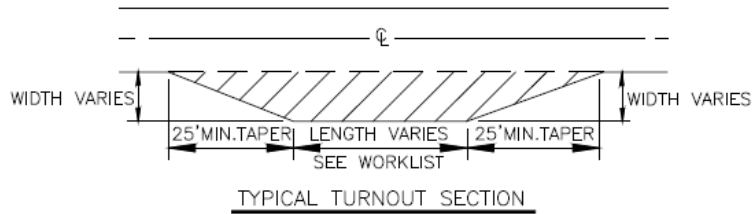
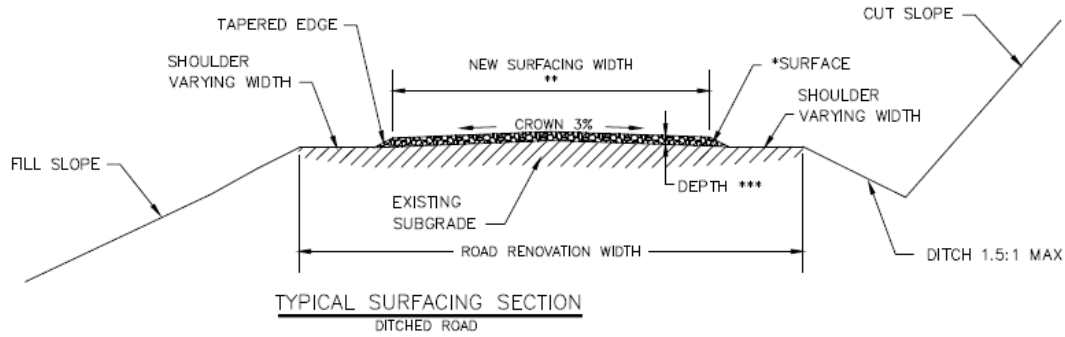


EXHIBIT C-14

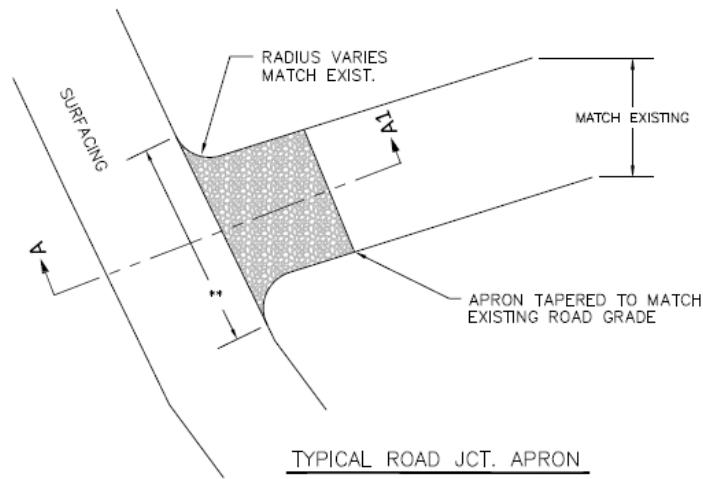
NOTES:

SURFACING WIDTH EDGES SHALL BE TAPERED TO SUBGRADE. TAPERS SHALL BE SMOOTH AND TRANSITION TO SUBGRADE AS TO NOT CAUSE A SUDDEN DROP OR STEEP EDGE.



UNITED STATES DEPARTMENT OF THE INTERIOR BUREAU OF LAND MANAGEMENT MEDFORD DISTRICT - MEDFORD, OREGON	
TYPICAL TURNOUT SECTION	
DRAWN: BLM	SCALE: AS SHOWN
DATE: AUGUST 2024	SHEET 1 OF 1

EXHIBIT C-15



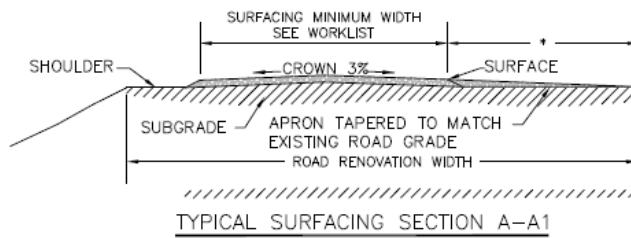
NOTES:

APRONS SHALL BE PLACED AT THE JUNCTIONS SPECIFIED IN THE WORK LIST.

TAPER DEPTH TO MATCH EXISTING ROAD GRADE.

*APRON LENGTHS VARY. EACH APRON SHALL BE CONSTRUCTED WITH 10 CUBIC YARDS OF COMPACTED, IN-PLACE AGGREGATE.

**JUNCTION WIDTHS VARY; MATCH EXISTING.

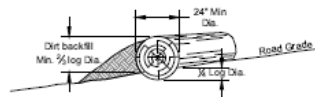


UNITED STATES DEPARTMENT OF THE INTERIOR BUREAU OF LAND MANAGEMENT MEDFORD DISTRICT - MEDFORD, OREGON	
ROAD JUNCTION SURFACING APRON SECTION	
DRAWN: BLM	SCALE: AS SHOWN
DATE: AUGUST 2024	SHEET 1 OF 1

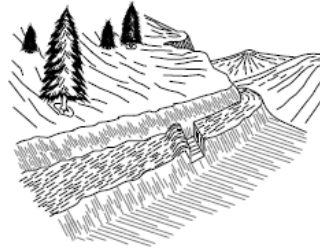
EXHIBIT D7



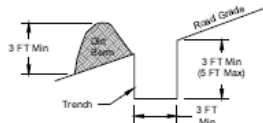
LOG BARRICADE



1. Log barricade shall be constructed as shown above.
2. Exact location is listed in Decommissioning Work List.
3. All barricades shall be skewed 30 degrees.
4. The log length shall extend from the cut bank to the fill slope.
5. The minimum small end diameter of the log barricade shall be 24".



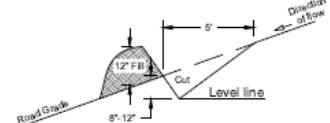
TRENCH BARRICADE



1. Trench barricade shall be constructed as shown above.
2. Exact location is listed in the Decommissioning Work List.
3. All barricades shall be skewed as needed to drain.
4. Trench barricade length shall extend from the cut bank to the fill slope or to a point sufficient to prohibit the crossing of motor vehicle traffic.

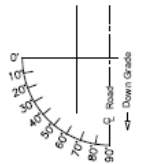


WATER BAR



1. Water bars shall be constructed as shown above.
2. Exact location will be flagged by the Authorized Officer prior to construction.
3. All water bars shall be skewed 30 degrees.
4. Upon completion of skidding logs, for the logging season, each skid road will have cross drainage constructed as shown above.

SKEW DIAGRAM



WATER BAR SPACING* BY EROSION CLASS^A

ROAD GRADE	HIGH	MODERATE	LOW
%	FEET	FEET	FEET
2-5	200	300	400
6-10	150	200	300
11-15	100	150	200
16-20	75	100	150
21-35	50	75	100
35+	50	50	50

* Spacing is determined by slope distance and is the maximum allowed for the grade.

^A The erosion classes include the following rock types:
High: Granite, sandstone, andesite porphyry, glacial or alluvial deposits, soft matrix conglomerate, volcanic ash, and pyroclastics.
Moderate: Basalt, andesite, quartzite, hard matrix conglomerate, and rhyolite.
Low: Metasediments, metavolcanics, and hard shale.

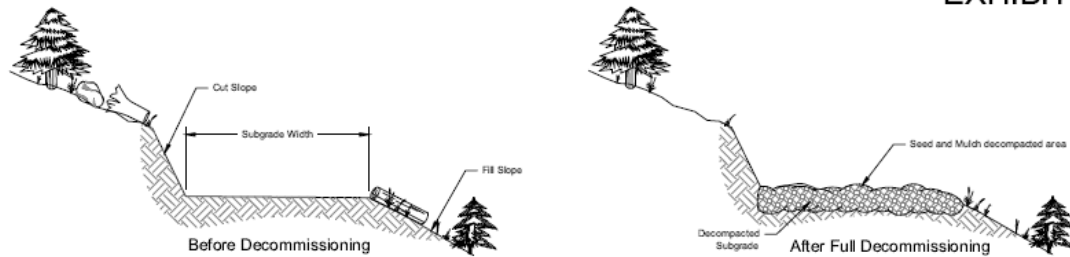
**ALWAYS
THINK
SAFETY**

UNITED STATES DEPARTMENT OF THE INTERIOR
BUREAU OF LAND MANAGEMENT
MEDFORD DISTRICT - MEDFORD, OREGON

BARRICADE AND WATER BAR DETAILS

DRAFTED BY: BLM SCALE: NONE
DATE: AUGUST 2024 SHEET: 1 OF 1

EXHIBIT D8



Typical Full Decommission

Notes:

1. The Purchaser shall barricade and decompact the temp route subgrade. Barricades shall be constructed as shown in Exhibit D7 Barricade and Water Bar Details.
2. Ditch lines at intersecting existing roads will be restored to their original shape.
3. Road surface shall be decompact for its entire length using mechanical equipment. Decompact road surface to a depth of 8 to 12 inches. Where it is determined by the Authorized Officer that decompaction may cause unacceptable damage to the root systems of residual trees along a majority of the temp route, decompaction may be intermittent, or scarification may be used instead. Decompacked areas shall be seed and mulched upon completion.
4. All temporary culverts (if any) shall be removed from temp routes entirely. Excavated culvert trenches shall be left open to drain and have side slopes laid back to $1\frac{1}{2}:1$. Where draw culverts are removed, the grade of the channel shall be restored to match existing stream grade. Culverts not designated as salvage for the Government shall become the property of the Contractor. The Contractor shall be responsible for legally disposing of material.
5. See Section 1800 for Seeding and Mulching Specifications.



Typical Culvert Removal - Before



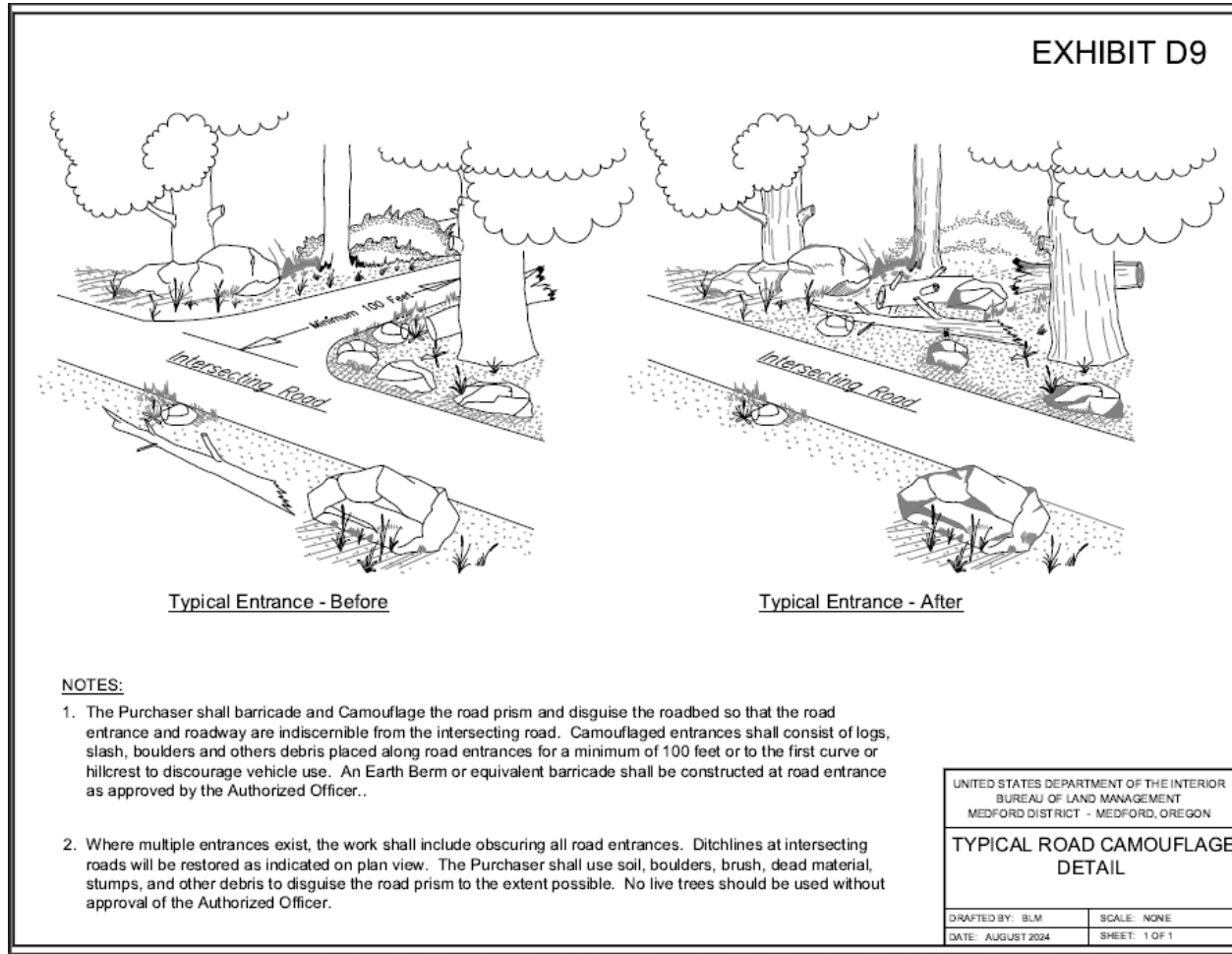
Typical Culvert Removal - After

ALWAYS
THINK
SAFETY

UNITED STATES DEPARTMENT OF THE INTERIOR
BUREAU OF LAND MANAGEMENT
MEDFORD DISTRICT - MEDFORD, OREGON

DECOMPACTION AND CULVERT REMOVAL DETAILS

DRAFTED BY: BLM	SCALE: NONE
DATE: AUGUST 2024	SHEET: 1 OF 1



8.0 SCHEDULE B, COMMERCIAL MATERIAL REMOVAL

- 8.1 No commercial volume may be cut or removed without the accumulation of Stewardship credits, payment protection, or required payment has been made. The volumes and values of Schedule B material will offset the price of service items.
- 8.1.1 All bearing trees or any tree blazed or tagged to mark the line of any Government survey, or trees with reference tags, orange paint, orange flagging or posters identifying BLM projects shall not be cut or damaged.
- 8.1.2 Hazardous trees that are within the road prism of haul roads shall be felled and removed. No unmarked trees or snags shall be felled unless considered to be a safety hazard (OSHA requirements) to landings, riggings or work areas or needed for a yarding corridor. Removal of hazardous trees will be approved by the Government.
- 8.1.3 Contractor transport of wood products will be required under these line items. Note that the hauling distance involved and any road maintenance fees on private roads should be figured into task order bids and will be paid by the contractor.
- 8.2 Protection of Improvements – The Contractor shall be held liable and is responsible for any damages caused by their personnel and/or equipment to any existing improvements. Repairs to these improvements

shall be at the Contractor's expense, at no additional cost to the Government, and shall be accomplished in a timely manner. Examples of improvements include:

- Posted survey monuments and bearing trees.
- Gates
- Culverts
- Road surfaces such as asphalt (Contractor and COR/PI shall review roads and their condition prior to work and determine necessary repairs at the conclusion of the project.)

8.3 Value of Materials - The prices for Schedule B items 28-33 are the value of the material.

8.4 Product Volume Determination

8.4.1 For biomass/hog fuel and clean chips, all material will be measured by green ton weight. These products may be sold as lumpsum or by weight scale. If these products are sold as weight scale, contractor will use load tags and will obtain scale receipts that will be submitted by the Contractor for payment verification. Refer to Exhibit A for specific weight scale requirements. Each task order will specify unit of measure and volume determination procedures.

8.4.2 For firewood and post & poles, material will be sold by tons or cords. These products may be sold as lumpsum or by weight scale. If these products are sold as weight scale, contractor will use load tags and will obtain scale receipts that will be submitted by the Contractor for payment verification. Refer to Exhibit A for specific weight scale requirements. Each task order will specify unit of measure and volume determination procedures.

8.4.3 For sawlogs, material will be sold by tons or thousand boardfeet (MBF). These products may be sold as lumpsum, weight scale, or log scale. If these products are sold as weight scale, contractor will use load tags and will obtain scale receipts that will be submitted by the Contractor for payment verification. If these products are sold as log scale, contractor will use load tags and will obtain scale receipts that will be submitted for payment; third party log scaling services or BLM cruisers will determine volume of saw log material in accordance with Exhibit A. Each task order will specify unit of measure and volume determination procedures.

8.4.4 The Government will determine the appropriate unit of measurement and volume determination process. Refer to Exhibit A for specific scale requirements.

8.5 **Log Branding**

8.5.1 The Contractor shall brand clearly and legibly one end of all logs with a scaling diameter (small end inside bark) of over 10 inches, prior to the removal of timber from the contract area. All loads of 11 logs or more will have a minimum of 10 logs clearly and legibly branded on one end regardless of the diameter of the logs. All logs will be branded on loads of 10 logs or less. One end of all branded logs to be processed domestically will be marked with a 3 square inch spot of highway yellow paint. The Contractor will stop trucks for accountability monitoring at mutually agreed upon locations when notified by the COR/PI.

8.5.2 If multiple trailers (mule trains) are used, each bunked load shall be considered an individual load, and these guidelines will apply to each bunked load. If a flatbed stake trailer is used, each bundle will be treated as a separate load.

- 8.5.3 The Contractor may be required to brand and paint all logs. Any increased costs for log branding and painting shall be the responsibility of the Contractor.
- 8.5.4 All permits shall be completed and attached to the load prior to removal from the immediate vicinity where loading is done. The permit shall remain attached until the load is decked at the delivery point.
- 8.5.5 Contractor vehicles shall stop when requested by the Government to verify products in transit.

11.0 **SURVEILLANCE PLAN**

- 11.1 The Government will inspect completed units as a basis for acceptance and payments and provide recommendations to improve work quality while work is in progress. The Contractor is responsible for providing quality control to assure that work complies with the contract specifications.
- 11.2 Schedule A Items -if random/sample inspections indicate that a formal inspection is necessary, then Government inspections will be made on a series of 1/50 acre plots (16.7' radius) located at predetermined intervals across each work unit. Sufficient plots will be taken to obtain at least a one percent (1%) sample of the treated area. Inspection plots will not be taken in the reserve areas.
- 11.3 In the event that random/sample inspections is not sufficient, plots will determine the Work Quality Percentage (WQP) earned by the Contractor. Work must meet a minimum Acceptable Quality Level (AQL), described below, to receive 100% payment.

12.0 Items 0001-0033

- 12.2.1 Inspections will be made on 100% of work performed.
- 12.2.2 The WQP will be determined according to a pass/fail system based on the work being completed according to specifications.

13.0 **ACCEPTANCE**

- 13.1 Satisfactory Work –WQP is determined by a pass/fail system. For those items evaluated as pass/fail, the minimum AQL is 100%.
- 13.2 Unsatisfactory Work
 - 13.2.1 Based on inspection results, if the WQP does not meet or exceed the minimum AQL, the CO will immediately notify the Contractor in writing and instruct the Contractor to improve the quality of the work. If the quality of the work is not raised to acceptable level after written notification, the CO may issue a suspend work order to resolve the problem, during which time contract time will continue to run.
 - 13.2.2 If unsatisfactorily logging and insufficiently treated slash are the main reasons for the unsatisfactory work quality, the Contractor shall rework areas designated by the Government until satisfactory work quality is obtained.
 - 13.2.3 Re-inspection – When units fall below the minimum AQL for that item, rework may be required. In such cases, the Contractor shall rework the designated area, at their expense, for re-inspection by the Government.
 - 13.2.4 If the reworked units fail to meet the minimum AQL again, the COR/PI may require the Contractor to rework the unit a second time. If the COR/PI elects to accept the work after the first rework, the Contractor will be paid based on the actual WQP of the first rework. If the Contractor is required to rework the unit a

second time, the Contractor will be charged for the Government's inspection costs for the second re-inspection.

13.2.5 Continued failure to meet the minimum AQL, may be grounds to terminate for default.

14 **Log Export Restriction**

14.1 All timber sold to the Contractor under the terms of the contract, except exempted species, is restricted from export from the United States in the form of unprocessed timber and is prohibited from being used as a substitute for exported private timber. For the purpose of this contract, unprocessed timber is defined as (1) any logs except those of utility grade or below, such as sawlogs, peeler logs, and pulp logs; (2) cants or squares to be subsequently remanufactured exceeding eight and three-quarters inches in thickness; (3) split or round bolts or other roundwood not processed to standards and specifications suitable for end-product uses; or (4) western redcedar lumber which does not meet lumber of American Lumber Standards Grades of Number 3 dimension or better, or Pacific Lumber Inspection Bureau R-List Grades of Number 3 Common or better.

Thus, timber manufactured into the following will be considered processed: 1) Lumber or construction timbers, except western redcedar, meeting current American Lumber Standards Grades or Pacific Lumber

Inspection Bureau Export R or N list grades, sawn on four sides, not intended for remanufacture; (2) Lumber, construction timbers, or cants for remanufacture, except western redcedar, meeting current American Lumber Standards Grades or Pacific Lumber Inspection Bureau Export R or N list clear grades, sawn on four sides, not to exceed twelve inches in thickness; (3) Lumber, construction timbers, or cants for remanufacture, except western redcedar, that do not meet the grades referred to in sub-clause 2 and are sawn on four sides, with wane less than ¼ of any face, not exceeding 8¾ inches in thickness; (4) Chips, pulp, or pulp products; (5) Veneer or plywood; (6) Poles, posts, or piling cut or treated with preservatives for use as such; (7) Shakes or shingles; (8) Aspen or other pulpwood bolts, not exceeding 100 inches in length, exported for processing into pulp; (9) Pulp logs, cull logs, and incidental volumes of grade 3 and 4 sawlogs processed at domestic pulpmills, domestic chip plants, or other domestic operations for the primary purpose of conversion of the logs into chips, or to the extent that a small quantity of such logs are processed, into other products at domestic processing facilities.

No person or affiliates of such person who acquires unprocessed Federal timber may export such timber or sell, trade, exchange, or otherwise convey such timber to any other person for the purpose of exporting such timber from the United States; and no person may purchase from any other person unprocessed Federal timber if such person would be prohibited from purchasing such timber directly from a department or agency of the United States because such person has, during the preceding 24-month period, exported unprocessed timber originating from private lands in the contiguous 48 states west of the 100th meridian. 1. Date of last export sale. Volume of timber contained in last export sale.

In the event the Contractor elects to sell any or all of the timber sold under this contract in the form of unprocessed timber, the Contractor shall require each party buying, exchanging, or receiving such timber to execute an "Export Determination" (Form 5450-17). The original of such determination shall be filed with the Contracting officer.

Prior to the termination of this contract, the Contractor shall submit to the Contracting officer a "Log Scale and Disposition of Timber Removed Report" (Form 5460-15) which shall be executed by the Contractor. In addition, the Contractor is required under the terms of this contract to retain for a three-year period from the date of termination of the contract the records of all sales or transfer of logs involving wood products from the sale for inspection and use of the Government.

In the event of the Contractor's noncompliance with this subsection of the contract, the Contracting officer may take appropriate action. In addition, the Contractor may be declared ineligible to receive future awards of Government wood product sales.

15.0 PASSAGE OF TITLE AND RISK OF LOSS

15.1 Inspection of Commercial Volume and Disclaimer of Warranty

- a. The Contractor warrants that this contract is accepted and executed on the basis of its examination and inspection of the commercial volume material to be removed under this contract and its opinion of the value thereof.
- b. Government expressly disclaims any warranty of fitness of the commercial volume for any purpose; all commercial volume to be removed hereunder is accepted as is without any warranty of merchantability by Government. Any warranty as to the quantity or quality of the commercial volume to be removed hereunder is expressly disclaimed by the Government. Refund to or recovery by the Contractor for failure of passage of title to any commercial volume to be removed hereunder shall not exceed the value of such commercial volume computed at prices per unit for species involved as set forth in Schedule B.

15.2 Passage of Title and Risk of Loss

Title to commercial volume to be removed under this contract shall remain in Government and shall not pass to the Contractor until such commercial volume has an equal value earned in the form of Stewardship Credits and removed from the contract area. Unless cut commercial volume is to be removed under this contract risk of loss shall be borne by the Contractor after the commercial volume is cut; Provided, however, that if loss results from a fire which was not caused by the Contractor, its subcontractors, or the employees of any of them, the risk of loss shall be borne by the party holding title. If cut commercial volume is to be removed under this contract, risk of loss shall be borne by the party holding title. Risk of loss to Government shall not exceed the value of such commercial volume computed at the prices per unit for the species involved as set forth in Schedule B. Nothing herein shall be construed to relieve either party from liability for any breach of contract or any wrongful or negligent act. As used in this section, the term cut commercial volume refers only to commercial volume which has been felled, bucked, or otherwise severed by direct human activity prior to the date this contract was entered into.

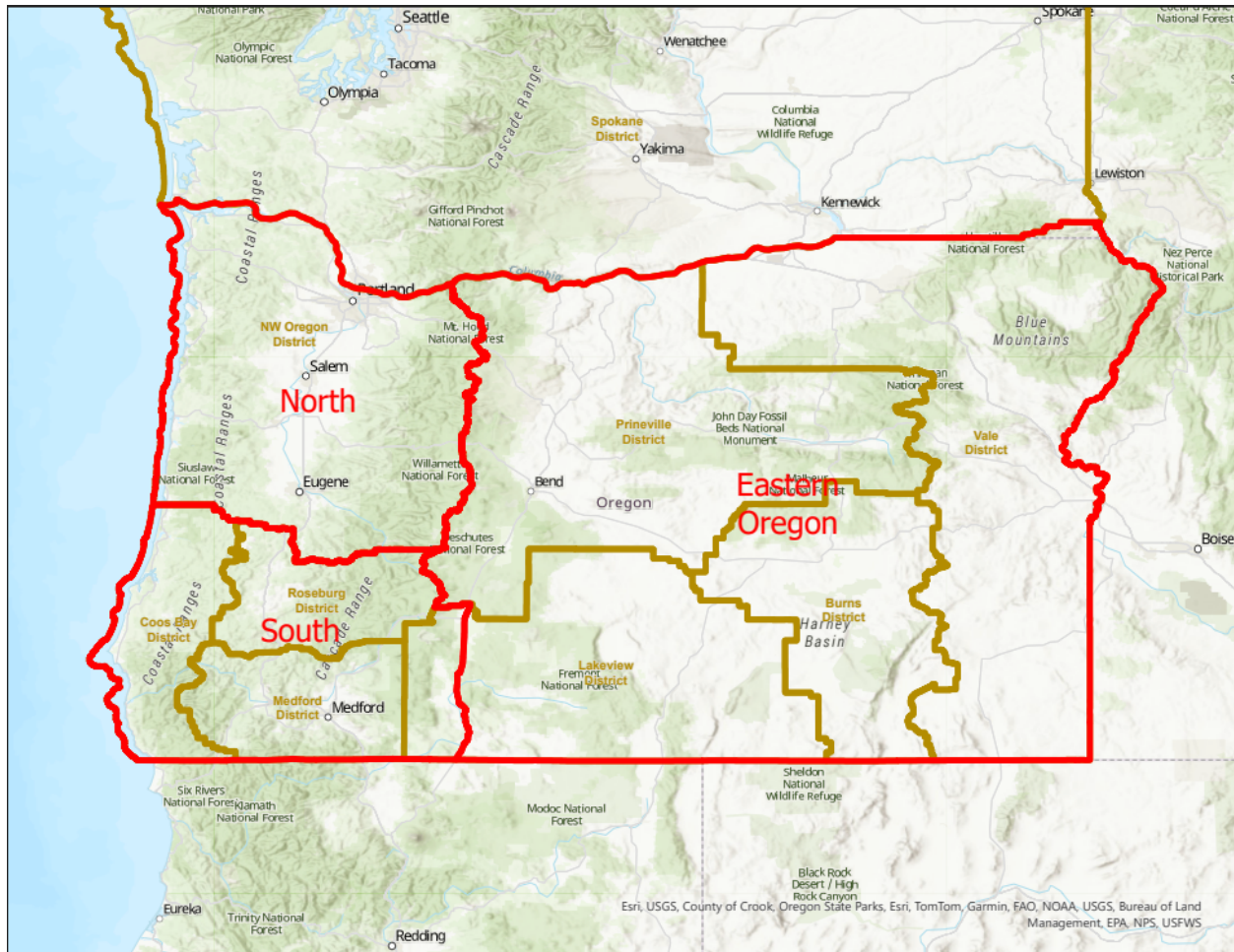
15.3 Resource Protection

- 15.3.1 The Contractor shall, prior to initial move-in to the contract area, steam clean or pressure wash all equipment used in the contract area or on BLM property under this contract. This wash requirement excludes contractor pickups and transport vehicles, low boy trucks delivering equipment, dump trucks and others delivering rock or materials to the contract area. This wash shall remove all soil material that may contain weed seeds from the equipment. The COR/PI or his/her representative must visually inspect and verbally approve the cleaning before the equipment is used in the contract area. Any equipment removed from the contract area during the duration of the contract must be steam cleaned or pressure washed and approved by the COR/PI or his/her representative before it is returned to the contract area.
- 15.3.2 The Contractor shall ensure that petroleum products and other pollutants do not enter the stream channel. Any contaminating material entering the stream shall be cleaned up in accordance with Oregon Department of Environmental Quality (DEQ) requirements.

- 15.3.3 Any equipment which develops leaks of lubricants or fuels shall be removed immediately from the work area. Fuel equipment must be stationed 150 feet from stream channel, or as far away as is practically possible as determined by the COR/PI.
- 15.3.4 Contractor shall immediately discontinue specified construction or wood products harvesting operations upon written notice from the Contracting Officer that:
- (1) threatened or endangered plants or animals, protected under the Endangered Species Act of 1973 as amended, may be affected by the operation, and a determination is made that consultation or reinitiation of consultation is required concerning the species prior to continuing operation;
 - (2) federal proposed, federal candidate, Bureau sensitive or State listed species protected under BLM Manual 6840 - Special Status Species Management - have been identified, and a determination is made that continued operations would affect the species or its habitat;
 - (3) when, in order to comply with an Interior Board of Land Appeals (IBLA) or court order which enjoins operations on the sale or otherwise requires the Government to suspend operations;
 - (4) when, in order to comply with an IBLA or court order, the Contracting Officer determines it may be necessary to modify or terminate the contract; or
 - (5) species have been discovered which were identified for protection and/or in order to protect such species or habitat in accordance with management direction established in the Record of Decision (ROD) and Resource Management Plan (RMP), and the Contracting Officer determines that continued operations would affect the species or its habitat, the Contracting Officer determines it may be necessary to modify or terminate the contract. Those operations necessary for a safe removal of personnel and equipment from the contract area and those directed by the Contracting Officer which are required to leave the contract area in an acceptable condition will be permitted. Discontinued operations may be resumed upon receipt of written instructions and authorization by the Contracting Officer.
- 15.3.5 In the event that operating time is lost as a result of the incorporation of additional contract requirements, or delays due to Endangered Species Act consultation with the U.S. Fish and Wildlife Service or U.S. National Marine Fisheries Service, or court-ordered injunctions, the Contractor agrees that an extension of time, without reappraisal, will constitute a full and complete remedy for any claim that delays due to the suspension hindered performance of the contract or resulted in damages of any kind to the Contractor.
- 15.3.6 The Contractor shall comply with all applicable state and federal laws and regulations pertaining to water quality in connection with any operations under this contract. The Contractor shall take every reasonable precaution not to pollute or obstruct any stream, lake, or reservoir on or near the contract area in connection with any operations under this contract. If the Contractor's operations cause pollution or obstruction of any stream, lake, or reservoir on or near the contract area, the Contractor shall correct the condition to the satisfaction of the COR. The Contractor shall undertake every reasonable measure to minimize erosion and soil damage in connection with any operations under this contract, including but not limited to construction of water bars on yarding and spur roads as designated by the COR. The Contractor shall immediately discontinue any construction or commercial volume harvesting operations under this contract, upon receipt of written notice from the COR that due to weather or soil moisture conditions, such operations will cause excessive damage to the soil. The COR shall notify the Contractor, in writing, when such operations may be resumed.

- 15.3.7 The Contractor shall remove, or otherwise dispose of all garbage, temporary buildings, trash, litter, discarded equipment or parts, waste materials or other refuse resulting from Contractor's operations. Areas for disposal of waste material shall be subject to approval of the COR. Waste materials, such as garbage, trash, oil, grease, chemicals, and similar substances shall be disposed of in a manner that will prevent their entry by drainage, high water, or other means into any river, watercourse, lake, or reservoir in or near the Contractor's operations. Water used to wash down equipment used for petroleum products, industrial chemicals, cement, or other toxic materials shall be disposed of in a manner that will prevent their entry into any watercourse or waterway.
- 15.4 Upon request, the Contractor shall furnish the following records and reports: (1) volume or quantity of commercial volume cut and removed from the contract area; (2) road costs including road use fees paid in connection with removing commercial volume from the contract area; and (3) prices received for lumber or other wood products.
- 15.5 Existing telephone, telegraph and transmission lines, fences, ditches, roads, gates, monuments including corners and brass caps, and all other improvements shall be protected as far as practicable in all phases of Contractor's operations. All such roads and ditches shall be kept free of logs, slash, and debris. Damage to roads, utilities and improvements shall be promptly paid for or repaired to a condition which, in the opinion of the Contracting Officer, is at least as good as the condition just prior to such damage.

STEWARDSHIP VICINITY MAP



(End of Section C)

SECTION E – INSPECTION AND ACCEPTANCE

The following clause is incorporated by reference:

Clause	Title	Date
52.246-4	INSPECTION OF SERVICES – FIXED PRICE	AUG 1996

(End of Section E)

SECTION F – DELIVERIES OR PERFORMANCE

F.1.0 PERIOD OF PERFORMANCE

The contract shall commence from date of award for a period up to 10 years. Performance periods for task orders will be specifically designated in the individual task orders.

The following clauses are incorporated by reference:

Clause	Title	Date
52.242-15	STOP WORK ORDER	AUG 1989

(End of Section F)

SECTION G – CONTRACT ADMINISTRATION DATA

G.1.0 ORDERING

This contract is open to the Bureau of Land Management unless the placement of orders using the Service First Authority is approved by the Contracting Officer. Ordering activities shall follow the procedures of this section when placing an order against this contract pursuant to FAR 16.505. All orders shall comply with the terms and conditions set forth in the contract. The ordering agency is responsible for ensuring all necessary protocols and coordination, as well as proper procuring, administering and terminating warrant authorities, are in place for the issuance, administration and closeout of a task order.

- G.1.1 The Contractor shall participate on all competitive Requests For Proposals (RFP) for new task orders in accordance with clauses 52.216-19 *Ordering* and 52.216-22 *Order Limitations* and shall be given fair opportunity in accordance with FAR 16.505(b)(1) unless excepted by FAR 16.505(b)(2). Streamlined procedures, including oral presentations, may be used. For orders that do not exceed the simplified acquisition threshold (currently \$350,000), the Contracting Officer need not contact each of the multiple awardees under the contract before selecting an order awardee if the Contracting Officer has information available to ensure that each awardee is provided a fair opportunity to be considered for each order. The competition requirements in Part 6 and the policies in [Subpart 15.3](#) do not apply to the ordering process. For orders that exceed the simplified acquisition threshold, a competitive RFP will be issued. Unless otherwise specified in the task order RFP, quality is considered to have been evaluated at the IDIQ level. The following contractors are included under this IDIQ:

[IDIQ award information to be incorporated upon award]

IDIQ No.	Firm	UEI	Address

- G.1.2 **Applicable Rates.** The task order shall utilize price rates of the current ordering period the task order is awarded within given delivery does not exceed the date specified in clause 52.216-22 *Indefinite Quantity*. When a task order RFP is issued, the Contractor may elect to propose competitive pricing to capture bulk or economic pricing discounts but in no event shall exceed the IDIQ unit price rates.
- G.1.3 Award of the task order will be made to the responsible Contractor on the basis of award subject to FAR 16.505(b)(1).
- G.1.4 All task orders shall include a price schedule, statement of work that includes a description of work to be performed, location of work, period of performance, deliverable schedule, applicable performance standards, and any special requirements. To the maximum extent practicable, the agency requirements shall be performance-based statements.
- G.1.5 The ordering agency shall document price reasonableness and any other required justifications prior to award, to include contract action reporting in the Federal Procurement Data System – Next Generation (FPDS-NG) system.
- G.2.0 Oral task orders are authorized under this contract. The Contracting Officer shall ensure funds are available at the time task order is issued and shall obligate funds and confirm oral orders in writing within 24 hours after award.

- G.2.1 Upon award of the task order and modification thereof, the ordering agency shall furnish a copy of the task order award and any modifications to the IDIQ Contracting Officer via email at blm_or_so_952_mail@blm.gov within three (3) days of an award.
- G.2.2 The ordering agency Contracting Officer may elect to designate a Contracting Officer's Representative (COR) from its own activity. In such event, the Contracting Officer shall ensure that all training and certifications are valid prior to designation through the life of the order.
- G.2.3 The ordering agency is responsible for payment and disbursement, to include disputes and claims.
- G.2.4 The ordering agency is responsible for maintaining the task order file and file disposition.
- G.2.5 The ordering agency shall report any litigation, illegal activity, or any other serious criminal or civil matters that arise in the performance of the task order, immediately to the IDIQ Contracting Officer.

The following local clauses are provided in full text:

CONTRACTOR PERFORMANCE ASSESSMENT REPORTING SYSTEM (JULY 2010)

(a) FAR 42.1502 directs all Federal agencies to collect past performance information on contracts. The Department of the Interior (DOI) has implemented the Contractor Performance Assessment Reporting System (CPARS) to comply with this regulation. One or more past performance evaluations will be conducted in order to record your contract performance as required by FAR42.15.

(b) The past performance evaluation process is a totally paperless process using CPARS. CPARS is a web-based system that allows for electronic processing of the performance evaluation report. Once the report is processed, it is available for Government use in evaluating past performance as part of a source selection action.

(c) We request that you furnish the Contracting Officer with the name, position title, phone number, and email address for each person designated to have access to your firm's past performance evaluation(s) for the contract no later than **30 days after award**. Each person granted access will have the ability to provide comments in the Contractor portion of the report and state whether or not the Contractor agrees with the evaluation, before returning the report to the Assessing Official. The report information must be protected as source selection sensitive information not releasable to the public.

(d) When your Contractor Representative(s) (Past Performance Points of Contact) are registered in CPARS, they will receive an automatically-generated email with detailed login instructions. Further details, systems requirements, and training information for CPARS is available at <https://www.cpars.gov/>. The CPARS User Manual, registration for On Line Training for Contractor Representatives, and a practice application may be found at this site.

(e) Within 60 days after the end of a performance period, the Contracting Officer will complete an interim or final past performance evaluation, and the report will be accessible at <https://www.cpars.gov/>. Contractor Representatives may then provide comments in response to the evaluation, or return the evaluation without comment. Comments are limited to the space provided in Block 22. Your comments should focus on objective facts in the Assessing Official's narrative and should provide your views on the causes and ramifications of the assessed performance. In addition to the ratings and supporting narratives, blocks 1 – 17 should be reviewed for accuracy, as these include key fields that will be used by the Government to identify your firm in future source selection actions. If you elect not to provide comments, please acknowledge receipt of the evaluation by indicating "No comment" in Block 22, and then signing and dating Block 23 of the form. Without a statement in Block 22, you will be unable to sign and submit the evaluation back to the Government. If you do not sign

and submit the CPAR within 30 days, it will automatically be returned to the Government and will be annotated: "The report was delivered/received by the contractor on (date). The contractor neither signed nor offered comment in response to this assessment." Your response is due within 30 calendar days after receipt of the CPAR.

(f) The following guidelines apply concerning your use of the past performance evaluation:

(1) Protect the evaluation as "source selection information." After review, transmit the evaluation by completing and submitting the form through CPARS. If for some reason you are unable to view and/or submit the form through CPARS, contact the Contracting Officer for instructions.

(2) Strictly control access to the evaluation within your organization. Ensure the evaluation is never released to persons or entities outside of your control.

(3) Prohibit the use of or reference to evaluation data for advertising, promotional material, preaward surveys, responsibility determinations, production readiness reviews, or other similar purposes.

(g) If you wish to discuss a past performance evaluation, you should request a meeting in writing to the Contracting Officer no later than seven days following your receipt of the evaluation. The meeting will be held in person or via telephone or other means during your 30-day review period.

(h) A copy of the completed past performance evaluation will be available in CPARS for your viewing and for Government use supporting source selection actions after it has been finalized.

(End of clause)

ELECTRONIC INVOICING AND PAYMENT REQUIREMENTS – INVOICE PROCESSING PLATFORM (IPP) (FEB 2021)

Payment requests must be submitted electronically through the U.S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions – Commercial Products and Commercial Services included in commercial products and commercial services contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

1. Invoice billed according to contract line items and rates.

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contract (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 – 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Local Clause)

(End of Section G)

SECTION H – SPECIAL CONTRACT REQUIREMENTS

H.1.0 ACCESS

In the event of a site/facility closure, the Contractor shall not perform or make deliveries to the site/facility until it is reopened by the Government, unless otherwise instructed by the Contracting Officer or their designated representative.

H.2.0 WORK HOURS

Unless otherwise specified in Section C, Specifications, work hours under this contract shall be limited to the time between one-half hour before sunrise to one-half hour after sunset each day. No work will be done on Saturday, Sunday, or Federal holidays unless authorized by the COR.

H.3.0 ENVIRONMENTAL INTERRUPTION OF WORK

H.3.1 Environmental - The Contracting Officer, by issuance of a suspend work order, may direct the Contractor to shut down any work that may be subject to damage due to weather conditions, fire danger, or because it is impracticable to work during the winter season. The Contractor will be given a resume work order which will document the date the work suspension ends. An allowance has been included in the contract time for all environmental delays. The count of contract time will therefore continue during all periods of suspension due to normal weather conditions, including fire danger. The Contractor will not be entitled to additional contract time for any suspensions except to the extent that they are due to unusually severe weather conditions. The Contractor will not be entitled to additional monetary compensation for such suspensions regardless of duration.

H.3.2 Endangered Species - The Government may direct the Contractor to discontinue all operations in the event that listed or proposed threatened or endangered plants or animals protected under the Endangered Species Act of 1973, as amended, or Federal candidate (Category 1 and 2), sensitive or state listed species, identified under BLM Manual 6840, are discovered to be present in or adjacent to the project area.

H.4.0 PRESERVATION OF HISTORICAL AND ARCHEOLOGICAL DATA

H.4.1 Public Law 93-291, May 24, 1974, provides for the preservation of scientific, prehistorical, and archeological data (including relics and specimens) which might otherwise be lost due to alteration of the terrain as a result of any Federal construction project.

H.4.2 The Contractor agrees that should any contractor employee, in the performance of this contract, discover evidence of possible scientific, prehistorical, historical, or archeological data the contractor will notify the Contracting Officer immediately in writing giving the location and nature of the findings.

H.4.3 Where appropriate by reason of discovery, the Contracting Officer may order delays in the time of performance and/or changes in the work. If such delays and/or changes are ordered, the time of performance and contract price shall be adjusted in accordance with the applicable clauses in the Contract Clauses Section of this contract.

H.4.4 The Contractor agrees to insert this requirement in all subcontracts which involve the performance of work on the terrain of the site.

H.5.0 ENVIRONMENTAL IMPACT

All waste materials generated by any work under the contract performed on a Government installation shall at all times be handled, transported, stored, and disposed of by the contractor and by his subcontractors in accordance with all applicable Federal, state, and local laws, ordinances, regulations, court orders, and other types of rulings having the effect of the law, including, but not limited to Executive Order 12088, 13 October 1978, Federal Compliance with Pollution Control Standards; the Federal Water Pollution Control

Act, as amended (33 U.S.C. 1251 ET SEQ); the Clean Air Act as amended (42 U.S.C. Sec 7401 ET SEQ); the Endangered Species Act, as amended (16 U.S.C. Sec 1531, ET SEQ); the Toxic Substances Control Act, as amended (15 U.S.C. Sec 2601, ET SEQ); the National Historic Preservation Act, as amended (16 U.S.C. Sec 470, ET SEQ); the Solid Waste Disposal Act, as amended (42 U.S.C. 6901 ET SEQ); and the Archaeological and Historic Preservation Act, as amended (16 U.S.C. Sec 469, ET SEQ). Should the United States Government be held liable for any neglect or improper actions by the contractor or any subcontractor regarding removal or disposal of any hazardous waste, the contractor shall reimburse the Government for all such liability.

H.6.0 HAZARDOUS MATERIALS

Any material suspected of being hazardous that is encountered during performance of a project shall immediately be brought to the attention of the Contracting Officer, at which time a determination will be made as to whether hazardous material testing shall be performed. If the Contracting Officer directs the contractor to perform tests, and/or the material is found to be of a hazardous nature requiring additional protective measures, a contract modification may be required, subject to equitable adjustment under the terms of the contract. The contractor is advised that friable and/or non-friable asbestos-containing material may be encountered in project areas. Friable asbestos-containing material is any material that contains more than one percent asbestos by weight, and that hand pressure can crumble, pulverize or reduce to powder when dry. Non-friable asbestos containing materials are materials in which asbestos fibers are bound by a matrix material, saturation, impregnation or coating.

Non-friable asbestos-containing materials do not normally release airborne asbestos fiber during routine handling and end-use. However, excessive fiber concentrations may be produced during uncontrolled abrading, sanding, drilling, cutting, machining, removal, demolition, or other similar activities. 29 CFR 1910.1001 shall be referenced in the event asbestos-containing materials are encountered. Friable asbestos-containing materials are not authorized for use in new construction or maintenance projects.

H.7.0 GREEN PROCUREMENT REQUIREMENTS

In the performance of this service or construction contract, the Contractor shall make maximum use of products identified on the mandatory environmental purchasing list at the following links, if applicable:

- U.S. EPA Comprehensive Procurement Guidelines published at www.epa.gov/cpg/products.htm.
- USDA Biobased product listings published at www.biopreferred.gov.
- Energy Star® product listings published at www.energystar.gov/products.
- FEMP Low Standby Power product listings published at <http://energy.gov/eere/femp/covered-product-categories>

Contractor shall comply with all reporting requirements stated in the applicable clause(s):

- 52.223-1 Biobased Product Certification
- 52.223-2 Reporting of Biobased Products under Service and Construction Contracts
- 52.223-4 Recovered Material Certification
- 52.223-9 Estimate of Percentage of Recovered Material Content for EPA Designated Items

H.8.0 RESTORATION OF RESOURCES

- H.8.1 Cleanup - The Contractor is responsible for cleaning up all camp and worksites before leaving the area. Final payment or other alternative deemed feasible may be withheld until the Contractor has complied with this requirement.
- H.8.2 Site and Access Roads – Site and public or private access roads damaged by the Contractor shall be restored to the same condition they were in at the commencement of work, at the expense of the Contractor.

H.9.0 UNAUTHORIZED PERSONNEL

The contractor shall inform all personnel working under his jurisdiction (including subcontractor and visiting supplier personnel) that access to restricted areas outside of the immediate work area; excluding direct haul and access routes, contracting and Civil Engineering offices and points of supply and storage; is prohibited. Circulation of said personnel will be limited to official business only. Persons in violation of the above will be apprehended and appropriately disciplined.

H.10.0 OREGON FARM/FOREST LABOR CONTRACTOR'S LICENSE

If the State of Oregon requires an Oregon Farm/Forest Labor Contractor's License, then the contractor awarded this contract and all first-tier subcontractors shall be required to obtain and maintain, during the term of this contract, such a license. Contractors not having a current license will be required to furnish evidence of having obtained such license within ten (10) days after receipt of written notification of contract award. Failure to obtain, keep and maintain a current license during the term of this contract or the extension thereof shall be a basis for termination for default.

Information on obtaining this license may be obtained from:

Bureau of Labor and Industries
Wage and Hour Division
3865 Wolverine St. NE; E-1
Salem, OR 97305-1268

Contact: Licensing Unit
Telephone: (503) 373-1463
Fax: (503) 373-7636

H.12.0 FIRE DANGER SEASON

If the COR allows the Contractor to continue work during periods of declared fire danger or season, the Contractor shall comply with all applicable state laws relating to fire prevention and with all special conditions of work as directed by the COR and outlined in the attachment at the end of this section

1510-52.222-70 MIGRANT SEASONAL AGRICULTURAL WORKERS PROTECTION ACT REGISTRATION MAINTENANCE

(a) As set forth in Title 29, Part 500 of the Code of Federal Regulations, Migrant and Seasonal Agricultural Worker Protection, the Contractor shall maintain all necessary U.S. Department of Labor registrations during the performance period of this contract. Failure to maintain a valid registration is grounds for termination of this contract.

(b) In compliance with the Migrant and Seasonal Agricultural Worker Protection Act, the Contractor shall provide the following to meet minimum safety and health standards for housing employees when camping on Federal lands:

- (1) A shelter to provide protection from the elements. Where heat adequate for weather conditions is not provided, other arrangements should be made to protect the workers from the cold.
- (2) Sanitary facilities for storing food. Ice chests or coolers, with ice supply made from potable water replenished as necessary, to meet the requirement for storage of perishable food items.
- (3) An adequate and convenient potable water supply, approved by the appropriate health authority, in each camp for drinking and cooking purposes. As an alternative, commercial bottled water may be used.
- (4) Toilet and hand washing facilities adequate for the capacity of the camp, at not less than a 1:15 ratio, supplied with adequate toilet paper. Such facilities shall be maintained in a sanitary condition.

- (5) Fly-tight, rodent-tight, impervious, cleanable or single service containers to be used for the storage of garbage. Such containers shall be kept clean and emptied when full.
- (6) Basic first aid supplies under the charge of a person trained to administer first aid.
- (7) A laundry tray or tub for every 30 workers, or transportation, at least weekly, to a commercial laundromat for all workers.

(End of clause)

FIRE REQUIREMENTS PROCEDURES OUTLINE

This outline covers the fire protection requirements of a contractor or private party who performs service or construction contracts on BLM land. In western Oregon, the BLM allows Oregon Forest Law (ORS) and Oregon Administrative Rules (OAR) to apply to these operations on BLM lands rather than develop similar rules applicable only to BLM lands.

1. CLOSED FIRE SEASON

The closed fire season means that fire season has been declared. ORS 477.505 gives the State Forester the authority to establish the fire season. The authority has been delegated to the District Foresters around the state who issue public notices through the newspapers and radio when fire season will be closed for their individual districts. Closed fire season depends upon the drying of forest fuels, rainfall, and time of year. During the closed fire season, the following requirements must be met:

- Fire tools must be on site;
- Fire extinguisher must be in all vehicles;
- Chainsaws must have a .023-inch mesh screen installed in the exhaust;
- Only unmodified saws are to be used in the forest;
- Approved spark arresters must be on all internal combustion engines;
- Watchman service must be provided for 3 hrs after shutdown of power equipment for the day;
- No smoking is permitted while working or traveling through any operations area in the forest;
- No use of explosives is permitted unless approved by the State Forester's representative;
- Permits to burn are required unless waived by a representative of the State Forester.
- Permits to operate power-driven machinery shall be obtained by the Contractor prior to commencing operations unless waived by a representative of the State Forester (ORS 47.625).

Changes or modifications to the above requirements are possible depending upon changes in State of Oregon law and requirements of the State Districts and Protective Associations.

2. FIRE PRECAUTION LEVELS

There are 4 fire precaution levels that begin with level 1 at the start of the closed fire season and can go through level 4 if conditions warrant. The fire precaution levels restrict certain forest operations as the fire danger increases. It is the responsibility of the individual operating on forest land to know the precaution level for the day and take the correct fire precautions. There are no precaution levels prior to the closed fire season. Each fire precaution level requires adherence to the restrictions applicable to all lower levels in addition to the limits placed by that level.

Level 1 is the lowest level of fire danger usually occurring early in the season and perhaps again after significant rainfall during the season. All requirements listed above apply. Waivers may be issued by the State Districts or Protective Associations and these MUST be approved by the BLM. Waivers will only be considered if the conditions on the work site are not as severe as predicted. The requirements for fire tools on site, screens installed in saws, and fire extinguishers with saws will not be waived.

Level 2 is the partial hootowl where saws can operate from first light in the morning until 1:00 p.m. in the afternoon. From 1:00 p.m. until the end of the day saws are to be shut down. Waivers for operating beyond the 1:00 p.m. shutdown will be evaluated on a site-by-site basis.

Level 3 is the partial shutdown of all forest industrial operations and shuts down contractor operations with few exceptions. Waivers may be issued on a site-by-site basis.

Level 4 is the general shutdown of all contractor operations. Waivers will not be issued. Landowners are permitted entry into their lands.

ORS. 477.066 requires that an operator on forest land take immediate action to control and extinguish a fire on forest land. The contractor shall take this action and notify the BLM and the nearest State of Oregon District office immediately.

OAR. 629-43-030 requires watchmen to be:

- Physically capable and experienced in operating any firefighting equipment on site.
- On duty for 3 hours after the shutdown of the last power-driven equipment for the day.
- Furnished adequate facilities for transportation and communications in order to summon assistance if needed.
- Patrolling and visually inspecting all sites where work was done during the day.

3. FIRE TOOLS REQUIRED DURING CLOSED FIRE SEASON

The operator/contractor shall furnish fire tools to all personnel on site using the following combinations.

	NUMBER OF PERSONNEL										
	1- 4	5	6	7	8	9	10	11	12	13	14
KIND OF TOOLS	NUMBER OF TOOLS REQUIRED										
Pulaskis	1	1	1	1	1	1	2	2	2	2	2
Shovels	2	2	2	3	3	3	3	4	4	5	5
Hazel hoes	1	2	3	3	4	5	5	5	6	6	6

In addition to the above handtools, the operator/contractor must provide a backpack pump can filled with water located with the tool box in a readily available area.

All shovels are to be size 0 or larger, long handled. All tools shall be sharp and ready for service. Fire extinguishers as follows:

For chainsaws - 8 oz. capacity by weight.

For vehicles - UL rating of at least 4 BC.

4. ADDITIONAL WATER SUPPLY

Contractor shall comply with ORS 477.615 during fire season when inside or within one-eighth of one mile of a state forest protection district and furnish additional water supply and equipment for use in fire suppression in conformity with the rules promulgated by the Oregon State Forester, when directed by the Oregon State Forester in writing. When required, all water supply and equipment components shall be maintained and ready for immediate use.

During fire season when operating a stationary internal combustion engine inside or within one eighth of one mile of a state forest protection district, Contractor shall comply with ORS 477.650 and provide a water supply, with equipment for its use in fire suppression for each engine, in conformity with the rules promulgated by the Oregon State Forester. All water supply and equipment components shall be maintained and ready for immediate use.

(End of Section H)

SECTION I – CONTRACT CLAUSES

The following clauses are incorporated by reference:

Clause	Title	Date
52.202-1	DEFINITIONS	NOV 2013
52.203-3	GRATUITIES	APR 1984
52.203-5	COVENANT AGAINST CONTINGENT FEES	MAY 2014
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT	NOV 2021
52.203-7	ANTI-KICKBACK PROCEDURES	MAY 2014
52.203-8	CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY	MAY 2014
52.203-10	PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY	MAY 2014
52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	OCT 2010
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS AND REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS	APR 2014
52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS	JUL 2013
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	OCT 2018
52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE	AUG 2020
52.209-6	PROTECTING THE GOVERNMENT’S INTERESTS WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT	NOV 2021
52.215-8	ORDER OF PRECEDENCE – UNIFORM CONTRACT FORMAT	OCT 1997
52.229-3	FEDERAL, STATE, AND LOCAL TAXES	APR 2003
52.232-1	PAYMENTS	APR 1984
52.232-8	DISCOUNTS FOR PROMPT PAYMENT	FEB 2002
52.232-11	EXTRAS	APR 1984
52.232-17	INTEREST	MAY 2014
52.232-18	AVAILABILITY OF FUNDS	APR 1984
52.232-23	ASSIGNMENT OF CLAIMS	MAY 2014
52.232-25	PROMPT PAYMENT	JUL 2013
52.242-13	BANKRUPTCY	JUL 1995
52.245-1	GOVERNMENT PROPERTY	SEP 2021
52.245-1	GOVERNMENT PROPERTY – ALTERNATE I	APR 2012
52.245-9	USE AND CHARGES	APR 2012
52.246-20	WARRANTY OF SERVICES	MAY 2001
52.253-1	COMPUTER GENERATED FORMS	JAN 1991

The following clauses are provided in full text:

52.203-14 – DISPLAY OF HOTLINE POSTER(S) (NOV 2021)

(a) *Definition.*

United States, as used in this clause, means the 50 States, the District of Columbia, and outlying areas.

(b) *Display of fraud hotline poster(s).* Except as provided in paragraph (c)—

(1) During contract performance in the United States, the Contractor shall prominently display in common work areas within business segments performing work under this contract and at contract work sites—

(i) Any agency fraud hotline poster or Department of Homeland Security (DHS) fraud hotline poster identified in paragraph (b)(3) of this clause; and

(ii) Any DHS fraud hotline poster subsequently identified by the Contracting Officer.

(2) Additionally, if the Contractor maintains a company website as a method of providing information to employees, the Contractor shall display an electronic version of the poster(s) at the website.

(3) Any required posters may be obtained as follows:

Poster(s)	Obtain from
DHS OIG Hotline Poster	https://www.oig.dhs.gov/sites/default/files/DHS_OIG_Hotline-optimized_with_fax.jpg

(Contracting Officer shall insert—

(i) Appropriate agency name(s) and/or title of applicable Department of Homeland Security fraud hotline poster); and

(ii) The website(s) or other contact information for obtaining the poster(s).)

(c) If the Contractor has implemented a business ethics and conduct awareness program, including a reporting mechanism, such as a hotline poster, then the Contractor need not display any agency fraud hotline posters as required in paragraph (b) of this clause, other than any required DHS posters.

(d) *Subcontracts.* The Contractor shall include the substance of this clause, including this paragraph (d), in all subcontracts that exceed the threshold specified in Federal Acquisition Regulation [3.1004](#)(b)(1) on the date of subcontract award, except when the subcontract—

(1) Is for the acquisition of a commercial product or commercial service; or

(2) Is performed entirely outside the United States.

(End of clause)

52.204-15 – SERVICE CONTRACT REPORTING REQUIREMENTS FOR INDEFINITE DELIVERY CONTRACTS (JAN 2014)

(a) *Definition.*

“First-tier subcontract” means a subcontract awarded directly by the Contractor for the purpose of acquiring supplies or services (including construction) for performance of a prime contract. It does not include the Contractor’s supplier agreements with vendors, such as long-term arrangements for materials or supplies that benefit multiple contracts and/or the costs of which are normally applied to a Contractor’s general and administrative expenses or indirect costs.

(b) The Contractor shall report, in accordance with paragraphs (c) and (d) of this clause, annually by October 31, for services performed during the preceding Government fiscal year (October 1-September 30) under this contract for orders that exceed the thresholds established in 4.1703(a)(2).

(c) The Contractor shall report the following information:

- (1) Contract number and order number.
- (2) The total dollar amount invoiced for services performed during the previous Government fiscal year under the order.
- (3) The number of Contractor direct labor hours expended on the services performed during the previous Government fiscal year.
- (4) Data reported by subcontractors under paragraph (f) of this clause.

(d) The information required in paragraph (c) of this clause shall be submitted via the internet at www.sam.gov. (See SAM User Guide). If the Contractor fails to submit the report in a timely manner, the contracting officer will exercise appropriate contractual remedies. In addition, the Contracting Officer will make the Contractor's failure to comply with the reporting requirements a part of the Contractor's performance information under FAR subpart 42.15.

(e) Agencies will review Contractor reported information for reasonableness and consistency with available contract information. In the event the agency believes that revisions to the Contractor reported information are warranted, the agency will notify the Contractor no later than November 15. By November 30, the Contractor shall revise the report or document its rationale for the agency.

(f)

(1) The Contractor shall require each first-tier subcontractor providing services under this contract, with subcontract(s) each valued at or above the thresholds set forth in 4.1703(a)(2), to provide the following detailed information to the Contractor in sufficient time to submit the report:

- (i) Subcontract number (including subcontractor name and DUNS number), and
- (ii) The number of first-tier subcontractor direct-labor hours expended on the services performed during the previous Government fiscal year.

(2) The Contractor shall advise the subcontractor that the information will be made available to the public as required by section 743 of Division C of the Consolidated Appropriations Act, 2010.

(End of clause)

52.212-4 – CONTRACT TERMS AND CONDITIONS – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2023)

(a) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate

consideration for acceptance of nonconforming supplies or services. The Government must exercise its post-acceptance rights-

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(b) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act ([31 U.S.C. 3727](#)). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(c) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(d) *Disputes.* This contract is subject to [41 U.S.C. chapter 71](#), Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause at Federal Acquisition Regulation (FAR) [52.233-1](#), Disputes, which is incorporated herein by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(e) *Definitions.* The clause at FAR [52.202-1](#), Definitions, is incorporated herein by reference.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(g) *Invoice.*

(1) The Contractor shall submit an original invoice and three copies (or electronic invoice, if authorized) to the address designated in the contract to receive invoices. An invoice must include-

(i) Name and address of the Contractor;

(ii) Invoice date and number;

(iii) Contract number, line item number and, if applicable, the order number;

(iv) Description, quantity, unit of measure, unit price and extended price of the items delivered;

(v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;

(vi) Terms of any discount for prompt payment offered;

(vii) Name and address of official to whom payment is to be sent;

(viii) Name, title, and phone number of person to notify in event of defective invoice; and

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision, contract clause (*e.g.*, [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management, or [52.232-34](#), Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(2) Invoices will be handled in accordance with the Prompt Payment Act ([31 U.S.C.3903](#)) and Office of Management and Budget (OMB) prompt payment regulations at 5 CFR Part 1315.

(h) *Patent indemnity.* The Contractor shall indemnify the Government and its officers, employees and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment.-

(1) *Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act ([31 U.S.C.3903](#)) and prompt payment regulations at 5 CFR Part 1315.

(3) *Electronic Funds Transfer (EFT).* If the Government makes payment by EFT, see [52.212-5\(b\)](#) for the appropriate EFT clause.

(4) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(5) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (*e.g.*, duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in [41 U.S.C. 7109](#), which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by [33.211](#) if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see [32.607-2](#)).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR [32.608-2](#) in effect on the date of this contract.

(j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title.* Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty.* The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability.* Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Other compliances.* The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract.

(r) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with [31 U.S.C. 1352](#) relating to limitations on the use of appropriated funds to influence certain Federal contracts; [18 U.S.C.](#)

[431](#) relating to officials not to benefit; [40 U.S.C. chapter 37](#), Contract Work Hours and Safety Standards; [41 U.S.C. chapter 87](#), Kickbacks; [41 U.S.C. 4712](#) and [10 U.S.C. 4701](#) relating to whistleblower protections; [49 U.S.C. 40118](#), Fly American; and [41 U.S.C. chapter 21](#) relating to procurement integrity.

(s) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services.

(2) The Assignments, Disputes, Payments, Invoice, Other Compliances, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) The clause at [52.212-5](#).

(4) Addenda to this solicitation or contract, including any license agreements for computer software.

(5) Solicitation provisions if this is a solicitation.

(6) Other paragraphs of this clause.

(7) The [Standard Form 1449](#).

(8) Other documents, exhibits, and attachments.

(9) The specification.

(t) [Reserved]

(u) Unauthorized Obligations.

(1) Except as stated in paragraph (u)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (u)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(v) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS— COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025)(DEVIATION FEB 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) [52.209-10](#), Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)).

(6) [52.233-3](#), Protest After Award (AUG 1996) ([31 U.S.C. 3553](#)).

(7) [52.233-4](#), Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 ([19 U.S.C. 3805 note](#)))

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

X (1) [52.203-6](#), Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (NOV 2021) ([41 U.S.C. 4704](#) and [10 U.S.C. 4655](#)).

X (2) [52.203-13](#), Contractor Code of Business Ethics and Conduct (NOV 2021) ([41 U.S.C. 3509](#))).

___ (3) [52.203-15](#), Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5).

___ (4) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900\(a\)](#).

X (5) [52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) ([31 U.S.C. 6101 note](#)).

___ (6) [Reserved].

___ (7) [52.204-14](#), Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

X (8) [52.204-15](#), Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

X (9) [52.204-27](#), Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

___ (10) [52.204-28](#), Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) ([Pub. L. 115-390](#), title II).

X (11)(i) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115-390](#), title II).

X (ii) Alternate I (Dec 2023) of [52.204-30](#).

X (12) [52.209-6](#), Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) ([31 U.S.C. 6101 note](#)).

___ (13) [52.209-9](#), Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) ([41 U.S.C. 2313](#)).

___ (14) [Reserved]

___ (15) [52.219-3](#), Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) ([15 U.S.C. 657a](#)).

___ (16) [52.219-4](#), Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) ([15 U.S.C. 657a](#)).

___ (17) [Reserved]

X (18) (i) [52.219-6](#), Notice of Total Small Business Set-Aside (NOV 2020) ([15 U.S.C. 644](#)).

___ (ii) Alternate I (MAR 2020) of [52.219-6](#).

___ (19) (i) [52.219-7](#), Notice of Partial Small Business Set-Aside (NOV 2020) ([15 U.S.C. 644](#)).

___ (ii) Alternate I (MAR 2020) of [52.219-7](#).

X (20) [52.219-8](#), Utilization of Small Business Concerns (JAN 2025) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)).

___ (21) (i) [52.219-9](#), Small Business Subcontracting Plan (JAN 2025) ([15 U.S.C. 637\(d\)\(4\)](#)).

___ (ii) Alternate I (NOV 2016) of [52.219-9](#).

- ___ (iii) Alternate II (NOV 2016) of [52.219-9](#).
- ___ (iv) Alternate III (JUN 2020) of [52.219-9](#).
- ___ (v) Alternate IV (JAN 2025) of [52.219-9](#).
- ___ (22) (i) [52.219-13](#), Notice of Set-Aside of Orders (MAR 2020) ([15 U.S.C. 644\(r\)](#)).
- ___ (ii) Alternate I (MAR 2020) of [52.219-13](#).
- X (23) [52.219-14](#), Limitations on Subcontracting (OCT 2022) ([15 U.S.C. 637s](#)).
- ___ (24) [52.219-16](#), Liquidated Damages—Subcontracting Plan (SEP 2021) ([15 U.S.C. 637\(d\)\(4\)\(F\)\(i\)](#)).
- ___ (25) [52.219-27](#), Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) ([15 U.S.C. 657f](#)).
- ___ (26) (i) [52.219-28](#), Postaward Small Business Program Representation (JAN 2025)
([15 U.S.C. 632\(a\)\(2\)](#))
- ___ (ii) Alternate I (MAR 2020) of [52.219-28](#).
- ___ (27) [52.219-29](#), Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) ([15 U.S.C. 637\(m\)](#)).
- ___ (28) [52.219-30](#), Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) ([15 U.S.C. 637\(m\)](#)).
- ___ (29) [52.219-32](#), Orders Issued Directly Under Small Business Reserves (MAR 2020) ([15 U.S.C. 644\(r\)](#)).
- ___ (30) [52.219-33](#), Nonmanufacturer Rule (SEP 2021) ([15 U.S.C. 637\(a\)\(17\)](#)).
- X (31) [52.222-3](#), Convict Labor (JUN 2003) (E.O.11755).
- ___ (32) [52.222-19](#), Child Labor-Cooperation with Authorities and Remedies (JAN 2025) ([E.O. 13126](#)).
- ___ (33) [Reserved]
- ___ (34) [Reserved]
- X (35) (i) [52.222-35](#), Equal Opportunity for Veterans (JUN 2020) ([38 U.S.C. 4212](#)).
- X (ii) Alternate I (JUL 2014) of [52.222-35](#).
- X(36) (i) [52.222-36](#), Equal Opportunity for Workers with Disabilities (JUN 2020) ([29 U.S.C. 793](#)).
- ___ (ii) Alternate I (JUL 2014) of [52.222-36](#).
- X (37) [52.222-37](#), Employment Reports on Veterans (JUN 2020) ([38 U.S.C. 4212](#)).

X (38) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

X (39) (i) [52.222-50](#), Combating Trafficking in Persons (OCT 2025) ([22 U.S.C. chapter 78](#) and E.O. 13627).

___ (ii) Alternate I (MAR 2015) of [52.222-50](#) ([22 U.S.C. chapter 78](#) and E.O. 13627).

X (40) [52.222-54](#), Employment Eligibility Verification (JAN 2025) ([Executive Order 12989](#)). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR [22.1803](#).)

___ (41) (i) [52.223-9](#), Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) ([42 U.S.C. 6962\(c\)\(3\)\(A\)\(ii\)](#)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

___ (ii) Alternate I (MAY 2008) of [52.223-9](#) ([42 U.S.C. 6962\(i\)\(2\)\(C\)](#)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

___ (42) [52.223-11](#), Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

___ (43) [52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) ([42 U.S.C. 7671](#), *et seq.*).

___ (44) [52.223-20](#), Aerosols (MAY 2024) ([42 U.S.C. 7671](#), *et seq.*).

___ (45) [52.223-21](#), Foams (MAY 2024) ([42 U.S.C. 7671](#), *et seq.*).

X (46) [52.223-23](#), Sustainable Products and Services (MAY 2024) (DEVIATION FEB 2025) ([7 U.S.C. 8102](#), [42 U.S.C. 6962](#), [42 U.S.C. 8259b](#), and [42 U.S.C. 7671l](#)).

___ (47) (i) [52.224-3](#) Privacy Training (JAN 2017) ([5 U.S.C. 552 a](#)).

___ (ii) Alternate I (JAN 2017) of [52.224-3](#).

___ (48) (i) [52.225-1](#), Buy American-Supplies (OCT 2022) ([41 U.S.C. chapter 83](#)).

___ (ii) Alternate I (OCT 2022) of [52.225-1](#).

___ (49) (i) [52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) ([19 U.S.C. 3301 note](#), [19 U.S.C. 2112 note](#), [19 U.S.C. 3805 note](#), [19 U.S.C. 4001 note](#), 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

___ (ii) Alternate I [Reserved]

___ (iii) Alternate II (JAN 2025) of [52.225-3](#).

___ (iv) Alternate III (FEB 2024) of [52.225-3](#).

___ (v) Alternate IV (OCT 2022) of 52.225-3.

___ (50) [52.225-5](#), Trade Agreements (NOV 2023) ([19 U.S.C. 2501](#), *et seq.*, [19 U.S.C. 3301](#) note).

X (51) [52.225-13](#), Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

___ (52) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).).

___ (53) [52.226-4](#), Notice of Disaster or Emergency Area Set-Aside (Nov2007) ([42 U.S.C. 5150](#)).

___ (54) [52.226-5](#), Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov2007) ([42 U.S.C. 5150](#)).

X (55) [52.226-8](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) ([E.O. 13513](#)).

___ (56) [52.229-12](#), Tax on Certain Foreign Procurements (FEB 2021) .

___ (57) [52.232-29](#), Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) ([41 U.S.C. 4505](#), [10 U.S.C. 3805](#)).

___ (58) [52.232-30](#), Installment Payments for Commercial Products and Commercial Services (NOV 2021) ([41 U.S.C. 4505](#), [10 U.S.C. 3805](#)).

X (59) [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management (OCT 2018) ([31 U.S.C. 3332](#)).

___ (60) [52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) ([31 U.S.C. 3332](#)).

___ (61) [52.232-36](#), Payment by Third Party (MAY 2014) ([31 U.S.C. 3332](#)).

___ (62) [52.239-1](#), Privacy or Security Safeguards (AUG 1996) ([5 U.S.C. 552a](#)).

X (63) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).

___ (64) [52.242-5](#), Payments to Small Business Subcontractors (JAN 2017) ([15 U.S.C. 637\(d\)\(13\)](#)).

___ (65) (i) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) ([46 U.S.C. 55305](#) and [10 U.S.C. 2631](#)).

___ (ii) Alternate I (APR 2003) of [52.247-64](#).

___ (iii) Alternate II (NOV 2021) of [52.247-64](#).

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

X (1) [52.222-41](#), Service Contract Labor Standards (AUG 2018) ([41 U.S.C. chapter 67](#)).

X (2) [52.222-42](#), Statement of Equivalent Rates for Federal Hires (MAY 2014) ([29 U.S.C. 206](#) and [41 U.S.C. chapter 67](#)).

X (3) [52.222-43](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) ([29 U.S.C. 206](#) and [41 U.S.C. chapter 67](#)).

___ (4) [52.222-44](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) ([29 U.S.C. 206](#) and [41 U.S.C. chapter 67](#)).

___ (5) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) ([41 U.S.C. chapter 67](#)).

___ (6) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) ([41 U.S.C. chapter 67](#)).

X (7) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 DEVIATION (OCT 2023).

___ (8) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

___ (9) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) ([42 U.S.C. 1792](#)).

___ (10) [52.247-69](#), Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) ([49 U.S.C. 40118\(g\)](#)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR [2.101](#), on the date of award of this contract, and does not contain the clause at [52.215-2](#), Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart [4.7](#), Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial items. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) [52.203-13](#), Contractor Code of Business Ethics and Conduct (NOV 2021) ([41 U.S.C. 3509](#)).

(ii) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)).

(iii) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) [52.204-27](#), Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)(A) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115-390](#), title II).

(B) Alternate I (Dec 2023) of [52.204-30](#).

(viii) [52.219-8](#), Utilization of Small Business Concerns (JAN 2025) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702\(a\)](#) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved]

(x) [Reserved]

(xi) [52.222-35](#), Equal Opportunity for Veterans (JUN 2020) ([38 U.S.C. 4212](#)).

(xi) [52.222-36](#), Equal Opportunity for Workers with Disabilities (JUN 2020) ([29 U.S.C. 793](#)).

(xiii) [52.222-37](#), Employment Reports on Veterans (JUN 2020) ([38 U.S.C. 4212](#)).

(xiv) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [52.222-40](#).

(xv) [52.222-41](#), Service Contract Labor Standards (AUG 2018) ([41 U.S.C. chapter 67](#)).

(xvi) (A) [52.222-50](#), Combating Trafficking in Persons (OCT 2025) ([22 U.S.C. chapter 78](#) and E.O. 13627).

(B) Alternate I (MAR 2015) of [52.222-50](#) ([22 U.S.C. chapter 78](#) and E.O. 13627).

(xvii) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) ([41 U.S.C. chapter 67](#)).

(xviii) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) ([41 U.S.C. chapter 67](#)).

(xix) [52.222-54](#), Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 DEVIATION (OCT 2023).

(xxi) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii)(A) [52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)).

(B) Alternate I (JAN 2017) of [52.224-3](#).

(xxiii) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note)).

(xxiv) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) ([42 U.S.C. 1792](#)). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).

(xxvii) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) ([46 U.S.C. 55305](#) and [10 U.S.C. 2631](#)). Flow down required in accordance with paragraph (d) of FAR clause [52.247-64](#).

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.216-18 – ORDERING (OCT 1995)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 08/31/2026 to 08/30/2036.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) If mailed, a delivery order or task order is considered “issued” when the Government deposits the order in the mail. Orders may be issued orally, by facsimile, or by electronic commerce methods only if authorized in the Schedule.

(End of Clause)

52.216-19 – ORDER LIMITATIONS (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$2,500.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor --

(1) Any order for a single item in excess of \$5M;

(2) Any order for a combination of items in excess of \$5M; or

(3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in subparagraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 10 days after issuance, with written notice stating the Contractor’s intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

52.216-22 – INDEFINITE QUANTITY (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the “maximum.” The Government shall order at least the quantity of supplies or services designated in the Schedule as the “minimum.”

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after 10 years after the contract's effective period.

(End of Clause)

52.216-32 – TASK-ORDER AND DELIVERY-ORDER OMBUDSMAN (SEPT 2019)

(a) In accordance with 41 U.S.C. 4106(g), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task-order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract.

DOI Ombudsman: Tiffany Harvey;
Address: 1849 C ST NW, RM 4247, WASHINGTON DC;
Phone: 202-513-7541
Email: tiffany_harvey@ios.doi.gov

(b) Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

(c) Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution. When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(End of clause)

52.223-2, REPORTING OF BIOBASED PRODUCTS UNDER SERVICE AND CONSTRUCTION CONTRACTS
(MAY 2024) (DEVIATION FEB 2025)

(a) *Definitions.* As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. ([7 U.S.C. 8101](#)) (**7 CFR 4270.2**).

USDA-designated product category means a generic grouping of products that are or can be made with biobased materials—

(1) That are listed by USDA in a procurement guideline available at <https://www.biopreferred.gov/resources/categories.html>; and

(2) For which USDA has provided purchasing recommendations (available at <https://www.biopreferred.gov>) or 7 CFR part 4270.

(b) The Contractor shall report to <https://www.sam.gov>, with a copy to the Contracting Officer, on the product types and dollar value of any biobased products in USDA-designated product categories purchased by the Contractor during the previous Government fiscal year, between October 1 and September 30; and

(c) Submit this report no later than—

(1) October 31 of each year during contract performance; and

(2) At the end of contract performance.

(End of clause)

52.223-10 WASTE REDUCTION PROGRAM (MAY 2024) (DEVIATION FEB 2025)

(a) *Definitions.* As used in this clause-

Recycling means the series of activities, including collection, separation, and processing, by which products or other materials are recovered from the solid waste stream for use in the form of raw materials in the manufacture of products other than fuel for producing heat or power by combustion.

Waste prevention means any change in the design, manufacturing, purchase, or use of materials or products (including packaging) to reduce their amount or toxicity before they are discarded. Waste prevention also refers to the reuse of products or materials.

Waste reduction means preventing or decreasing the amount of waste being generated through waste prevention, recycling, or purchasing recycled and environmentally preferable products.

(b) The Contractor shall establish a program to promote cost-effective waste reduction in all operations and facilities covered by this contract. The Contractor's programs shall comply with applicable Federal, State, and local requirements, specifically including Section 6002 of the Resource Conservation and Recovery Act ([42 U.S.C.6962](#), *etseq.*) and implementing regulations (40 CFR Part 247).

(End of Clause)

52.223-23 SUSTAINABLE PRODUCTS AND SERVICES (MAY 2024) (DEVIATION FEB 2025)

(a) *Definitions.* As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. ([7 U.S.C. 8101](#)) ([7 CFR 4270.2](#)).

Recovered material means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process. ([42 U.S.C. 6903](#)).

Sustainable products and services means

(1) Products containing recovered material designated by the U.S. Environmental Protection Agency (EPA) under the Comprehensive Procurement Guidelines ([42 U.S.C. 6962](#)) ([40 CFR part 247](#)) (<https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products>).

(2) Energy- and water-efficient products that are ENERGY STAR® certified or Federal Energy Management Program (FEMP)-designated products ([42 U.S.C. 8259b](#)) ([10 CFR part 436, subpart C](#)) (<https://www.energy.gov/eere/femp/search-energy-efficient-products> and <https://www.energystar.gov/products?s=mega>).

(3) Biobased products meeting the content requirement of the USDA under the BioPreferred® program ([7 U.S.C. 8102](#)) ([7 CFR part 3201](#)) (<https://www.biopreferred.gov>).

(4) Acceptable chemicals, products, and manufacturing processes listed under EPA's Significant New Alternatives Policy (SNAP) program, which ensures a safe and smooth transition away from substances that contribute to the depletion of stratospheric ozone ([42 U.S.C. 76711](#)) ([40 CFR part 82, subpart G](#)) (<https://www.epa.gov/snap>).

(b) *Requirements.*

(1) The sustainable products and services, including the purchasing program and type of product or service, that are applicable to this contract, and any products or services that are not subject to this clause, will be set forth in the statement of work or elsewhere in the contract.

(2) The Contractor shall ensure that the sustainable products and services required by this contract are—

(i) Delivered to the Government;

(ii) Furnished for use by the Government;

(iii) Incorporated into the construction of a public building or public work; and

(iv) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract (versus costs which are normally applied to the Contractor's general and administrative expenses or indirect costs). This includes services performed by contractors performing management and operation of Government-owned facilities to the same extent that, at the time of award, an agency would be required to comply if an agency operated or supported the facility.

(c) *Resource.* The Green Procurement Compilation (GPC) available at <https://sftool.gov/greenprocurement> provides a comprehensive list of sustainable products and services and sustainable acquisition guidance. The Contractor should review the GPC when determining which statutory purchasing programs apply to a specific product or service.

(End of clause)

52.226-7 DRUG-FREE WORKPLACE (MAY 2024)

(a) *Definitions.* As used in this clause-

Controlled substance means a controlled substance in schedules I through V of section 202 of the Controlled Substances Act ([21 U.S.C.812](#)) and as further defined in regulation at 21 CFR 1308.11 - 1308.15.

Conviction means a finding of guilt (including a plea of *nolo contendere*) or imposition of sentence, or both, by any judicial body charged with the responsibility to determine violations of the Federal or State criminal drug statutes.

Criminal drug statute means a Federal or non-Federal criminal statute involving the manufacture, distribution, dispensing, possession, or use of any controlled substance.

Drug-free workplace means the site(s) for the performance of work done by the Contractor in connection with a specific contract where employees of the Contractor are prohibited from engaging in the unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance.

Employee means an employee of a Contractor directly engaged in the performance of work under a Government contract. "Directly engaged" is defined to include all direct cost employees and any other Contractor employee who has other than a minimal impact or involvement in contract performance.

Individual means an offeror/contractor that has no more than one employee including the offeror/contractor.

(b) The Contractor, if other than an individual, shall within 30 days after award (unless a longer period is agreed to in writing for contracts of 30 days or more performance duration), or as soon as possible for contracts of less than 30 days performance duration-

(1) Publish a statement notifying its employees that the unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance is prohibited in the Contractor's workplace and specifying the actions that will be taken against employees for violations of such prohibition;

(2) Establish an ongoing drug-free awareness program to inform such employees about-

(i) The dangers of drug abuse in the workplace;

(ii) The Contractor's policy of maintaining a drug-free workplace;

(iii) Any available drug counseling, rehabilitation, and employee assistance programs; and

(iv) The penalties that may be imposed upon employees for drug abuse violations occurring in the workplace;

(3) Provide all employees engaged in performance of the contract with a copy of the statement required by paragraph (b)(1) of this clause;

(4) Notify such employees in writing in the statement required by paragraph (b)(1) of this clause that, as a condition of continued employment on this contract, the employee will-

(i) Abide by the terms of the statement; and

(ii) Notify the employer in writing of the employee's conviction under a criminal drug statute for a violation occurring in the workplace no later than 5 days after such conviction;

(5) Notify the Contracting Officer in writing within 10 days after receiving notice under subdivision (b)(4)(ii) of this clause, from an employee or otherwise receiving actual notice of such conviction. The notice shall include the position title of the employee;

(6) Within 30 days after receiving notice under subdivision (b)(4)(ii) of this clause of a conviction, take one of the following actions with respect to any employee who is convicted of a drug abuse violation occurring in the workplace:

(i) Taking appropriate personnel action against such employee, up to and including termination; or

(ii) Require such employee to satisfactorily participate in a drug abuse assistance or rehabilitation program approved for such purposes by a Federal, State, or local health, law enforcement, or other appropriate agency; and

(7) Make a good faith effort to maintain a drug-free workplace through implementation of paragraphs (b)(1) through (b)(6) of this clause.

(c) The Contractor, if an individual, agrees by award of the contract or acceptance of a purchase order, not to engage in the unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance while performing this contract.

(d) In addition to other remedies available to the Government, the Contractor's failure to comply with the requirements of paragraph (b) or (c) of this clause may, pursuant to FAR [26.505](#), render the Contractor subject to suspension of contract payments, termination of the contract or default, and suspension or debarment.

(End of clause)

52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)

(a) *Definitions.* As used in this clause-

"Driving"-

(1) Means operating a motor vehicle on an active roadway with the motor running, including while temporarily stationary because of traffic, a traffic light, stop sign, or otherwise.

(2) Does not include operating a motor vehicle with or without the motor running when one has pulled over to the side of, or off, an active roadway and has halted in a location where one can safely remain stationary.

Text messaging means reading from or entering data into any handheld or other electronic device, including for the purpose of short message service texting, e-mailing, instant messaging, obtaining navigational information, or engaging in any other form of electronic data retrieval or electronic data communication. The term does not include glancing at or listening to a navigational device that is secured in a commercially designed holder affixed to the vehicle, provided that the destination and route are programmed into the device either before driving or while stopped in a location off the roadway where it is safe and legal to park.

(b) This clause implements Executive Order 13513, Federal Leadership on Reducing Text Messaging While Driving, dated October 1, 2009.

(c) The Contractor is encouraged to-

(1) Adopt and enforce policies that ban text messaging while driving-

(i) Company-owned or rented vehicles or Government-owned vehicles; or

(ii) Privately-owned vehicles when on official Government business or when performing any work for or on behalf of the Government.

(2) Conduct initiatives in a manner commensurate with the size of the business, such as-

(i) Establishment of new rules and programs or reevaluation of existing programs to prohibit text messaging while driving; and

(ii) Education, awareness, and other outreach to employees about the safety risks associated with texting while driving.

(d) *Subcontracts*. The Contractor shall insert the substance of this clause, including this paragraph (d), in all subcontracts that exceed the micro-purchase threshold, as defined in Federal Acquisition Regulation 2.101 on the date of subcontract award.

(End of clause)

52.252-2 – CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

Federal Acquisition Regulation: <https://www.acquisition.gov/far/>
Department of the Interior Acquisition Regulation (CFR, Title 48, Chapter 14): http://www.ecfr.gov/cgi-bin/text-idx?SID=46fff09635987db3af784ea3c7efc2e0&mc=true&tpl=/ecfrbrowse/Title48/48cfrv5_02.tpl#1400

(End of clause)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of the Interior Acquisition Regulation (48 CFR Chapter 14) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

1452.201-70 AUTHORITIES AND DELEGATIONS (SEP 2011)

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.

(b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.

(c) The COR is not authorized to perform, formally or informally, any of the following actions:

(1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;

(2) Waive or agree to modification of the delivery schedule;

(3) Make any final decision on any contract matter subject to the Disputes Clause;

(4) Terminate, for any reason, the Contractor's right to proceed;

(5) Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of clause)

1452.203-70 RESTRICTIONS ON ENDORSEMENTS—DEPARTMENT OF THE INTERIOR (JUL 1996)

The Contractor shall not refer to contracts awarded by the Department of the Interior in commercial advertising, as defined in FAR 31.205-1, in a manner which states or implies that the product or service provided is approved or endorsed by the Government, or is considered by the Government to be superior to other products or services. This restriction is intended to avoid the appearance of preference by the Government toward any product or service. The Contractor may request the Contracting Officer to make a determination as to the propriety of promotional material.

(End of clause)

1510-52.211-70 BLM - VARIATION IN ESTIMATED QUANTITY (MAY 1987), 52.211-70 (DEVIATION)

If the quantity of the unit-priced item in this contract is an estimated quantity and the actual quantity of the unit-priced item varies more than 20 percent above or below the estimated quantity, an equitable adjustment in the contract price shall be made upon demand of either party. The equitable adjustment shall be based upon any increase or decrease in costs due solely to the variation above 120 percent or below 80 percent of the estimated quantity. If the quantity variation is such as to cause an increase in the time necessary for completion, the Contractor may request, in writing, an extension of time, to be received by the Contracting Officer within 10 days from the beginning of the delay, or within such further period as may be granted by the Contracting Officer before the date of final settlement of the contract. Upon the receipt of a written request for an extension, the Contracting Officer shall ascertain the facts and make an adjustment for extending the completion date as, in the judgment of the Contracting Officer, is justified.

(End of clause)

(End of Section I)

SECTION J – LIST OF ATTACHMENTS

Attachment No.	Title	Pages
1	Service Contract Act Wage Determination 1977-0079 <i>The latest wage determination shall be incorporated at the time of award.</i>	<u>3</u>

(End of Section J)

SECTION K – REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS OR RESPONDENTS

K.1.0 SIGNATURE EXTENSION

If the Offeror is a partnership or a joint venture, all partners or joint venture representatives are required to sign as contractors. Signatures shall be provided below:

Name: _____

Name: _____

Title: _____

Title: _____

The following provisions are incorporated by reference:

Provision	Title	Date
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS--REPRESENTATION	JAN 2017
52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING	AUG 2020
52.204-19	INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS	DEC 2014
52.225-25	PROHIBITION ON CONTRACTING WITH ENTITIES ENGAGING IN CERTAIN ACTIVITIES OR TRANSACTIONS RELATING TO IRAN—REPRESENTATION AND CERTIFICATION	AUG 2018

The following provisions are provided in full text:

52.201-1 ACQUISITION 360: VOLUNTARY SURVEY (SEP 2023)

(a) All actual and potential offerors are encouraged to provide feedback on the preaward and debriefing processes, as applicable. Feedback may be provided to agencies up to 45 days after award. The feedback is anonymous, unless the participant self-identifies in the survey. Actual and potential offerors can participate in the survey by selecting the following link: <https://www.acquisition.gov/360>.

(b) The Contracting Officer will not review the information provided until after contract award and will not consider it in the award decision. The survey is voluntary and does not convey any protections, rights, or grounds for protest. It creates a way for actual and potential offerors to provide the Government constructive feedback about the preaward and debriefing processes, as applicable, used for a specific acquisition.

(End of provision)

52.203-98, PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS—REPRESENTATION (DEVIATION 2015-02) (FEB 2015)

(a) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Resolution Appropriations Act, 2015 (Pub. L. 113-235), Government agencies are not permitted to use funds appropriated (or otherwise made available) under that or any other Act for contracts with an entity that requires employees or contractors of such entity seeking to report fraud, waste, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or contractors from lawfully reporting such fraud, waste, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(b) The prohibition in paragraph (a) of this provision does not contravene requirements applicable to Standard Form 312, Form 4414, or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(c) *Representation.* By submission of its offer, the Offeror represents that it does not require employees or contractors of such entity seeking to report fraud, waste, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or contractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(End of provision)

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at [52.204-26](#), Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at [52.212-3](#), Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at [52.204-26](#), or in paragraph (v)(2)(ii) of the provision at [52.212-3](#).

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (OCT 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c)

(1) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.209-7 – INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions.* As used in this provision—

“Administrative proceeding” means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceeding at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

“Federal contracts and grants with total value greater than \$10,000,000” means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

“Principal” means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked “has” in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-12 – CERTIFICATION REGARDING TAX MATTERS (OCT 2025)

(a) This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.

(b) If the Offeror is proposing a total contract price that will exceed \$7 million (including options), the Offeror shall certify that, to the best of its knowledge and belief, it

(1) Has ☐ filed all Federal tax returns required during the three years preceding the certification;

(2) Has not ☐ been convicted of a criminal offense under the Internal Revenue Code of 1986; and

(3) Has not ☐, more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End of provision)

52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICE (OCT 2025)(DEVIATION FEB 2025)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed

through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions*. As used in this provision—

"Covered telecommunications equipment or services" has the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with [13 CFR part 127](#), and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#). It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under [6 U.S.C. 395\(b\)](#), applied in accordance with the rules and definitions of [6 U.S.C. 395\(c\)](#).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;

(9) PSC 9620, Minerals, Natural and Synthetic; and

(10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended. "Sensitive technology"—

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern—

(1) (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart [19.14](#)).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in [38 U.S.C. 101](#)(2), with a disability that is service connected, as defined in [38 U.S.C. 101](#)(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in [13 CFR part 121](#) and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at [13 CFR 124.104\(c\)\(2\)](#) after taking into account the applicable exclusions set forth at [13 CFR 124.104\(c\)\(2\)](#); and

(2) The management and daily business operations of which are controlled (as defined at 13.CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

- (1) Directly by a parent corporation; or
- (2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern—

- (1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and
- (2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern—

- (1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and
- (2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with [13 CFR part 127](#)), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#).

(b)

(1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR [52.212-3](#), Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR [4.1201](#)), except for paragraphs _____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.]

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied [part 19](#) in accordance with [19.000\(b\)\(1\)\(ii\)](#). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that—

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of [13 CFR 121.103\(h\)](#) and [13 CFR 125.8\(a\)](#) and [\(b\)](#). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]*

(2) *Veteran-owned small business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* *[Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.]* The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. *[Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

(5) *Small disadvantaged business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents, that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of [13 CFR 127.506\(a\)](#) through [\(c\)](#). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]*

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of [13 CFR 127.506\(a\)](#) through [\(c\)](#). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]*

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that—

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see [13 CFR 126.200\(e\)\(1\)](#)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of [13 CFR 126.616\(a\)](#) through [\(c\)](#). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) [Reserved]

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$200,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate.* (Applies only if the clause at Federal Acquisition Regulation (FAR) [52.225-1](#), Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component, except those listed in paragraph (f)(2) of this provision, is a domestic end product.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. ____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR [part 25](#).

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*. (Applies only if the clause at FAR [52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i) (A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.	Country of Origin

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR [25.105](#)).

Line Item No. ____

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR [part 25](#).

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II*. If Alternate II to the clause at FAR [52.225-3](#) is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Canadian end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at FAR [52.225-3](#) is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms “Korean end product”, “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin

[List as necessary]

(4) *Trade Agreements Certificate.* (Applies only if the clause at FAR [52.225-5](#), Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR [part 25](#). For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals–

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at [9.104-5\(a\)\(2\)](#) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126). [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at [22.1503\(b\)](#).]*

(1) *Listed end products.*

Listed End Product	Listed Countries of Origin

(2) *Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]*

(i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

(ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [*The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.*]

(1) Maintenance, calibration, or repair of certain equipment as described in FAR [22.1003-4](#)(c)(1). The offeror ☐ does ☐ does not certify that—

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR [22.1003-4](#)(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

(2) Certain services as described in FAR [22.1003-4](#)(d)(1). The offeror ☐ does ☐ does not certify that—

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR [22.1003-4](#)(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies—

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* ([26 U.S.C. 6109](#), [31 U.S.C. 7701](#)). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of [31 U.S.C. 7701\(c\) and 3325\(d\)](#), reporting requirements of [26 U.S.C. 6041, 6041A, and 6050M](#), and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government ([31 U.S.C. 7701\(c\)\(3\)](#)). If the resulting contract is subject to the payment reporting requirements described in FAR [4.904](#), the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN).*

TIN: _____.

TIN has been applied for.

TIN is not required because:

Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

Offeror is an agency or instrumentality of a foreign government;

Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization.*

Sole proprietorship;

Partnership;

Corporate entity (not tax-exempt);

Corporate entity (tax-exempt);

Government entity (Federal, State, or local);

Foreign government;

International organization per 26 CFR1.6049-4;

Other _____.

(5) *Common parent.*

Offeror is not owned or controlled by a common parent;

Name and TIN of common parent:

Name _____.

TIN _____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations.

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at [9.108-2\(b\)](#) applies or the requirement is waived in accordance with the procedures at [9.108-4](#).

(2) *Representation.* The Offeror represents that—

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR [25.703-2\(a\)\(2\)](#) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if—

(i) This solicitation includes a trade agreements certification (e.g., [52.212-3\(g\)](#)) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: _____.

Immediate owner legal name: _____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____.

Highest-level owner legal name: _____.

(Do not use a "doing business as" name)

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that—

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at [52.204-16](#), Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: (or mark "Unknown").

Predecessor legal name: _____.

(Do not use a "doing business as" name).

(s) [Reserved].

(t) [Reserved].

(u) (1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation.* By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation.* Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that—

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

52.222-55 MINIMUM WAGES FOR CONTRACTOR WORKERS UNDER EXECUTIVE ORDER 14026
DEVIATION (OCT 2023)

(a) Definitions. As used in this clause-

United States means the 50 states, the District of Columbia, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, the U.S. Virgin Islands, Johnston Island, Wake Island, and the outer Continental Shelf as defined in the Outer Continental Shelf Lands Act (43 U.S.C. 1331, *et seq.*).

Worker-

(1)

(i) Means any person engaged in performing work on, or in connection with, a contract covered by Executive Order 14026, and-

(A) Whose wages under such contract are governed by the Fair Labor Standards Act (29 U.S.C. chapter 8), the Service Contract Labor Standards statute (41 U.S.C. chapter 67), or the Wage Rate Requirements (Construction) statute (40 U.S.C. chapter 31, subchapter IV);

(B) Other than individuals employed in a bona fide executive, administrative, or professional capacity, as those terms are defined in 29 CFR part 541; and

(C) Regardless of the contractual relationship alleged to exist between the individual and the employer.

(ii) Includes workers performing on, or in connection with, the contract whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(c).

(iii) Also includes any person working on, or in connection with, the contract and individually registered in a bona fide apprenticeship or training program registered with the Department of Labor's Employment and Training Administration, Office of Apprenticeship, or with a State Apprenticeship Agency recognized by the Office of Apprenticeship.

(2)

(i) A worker performs *on* a contract if the worker directly performs the specific services called for by the contract; and

(ii) A worker performs *in connection* with a contract if the worker's work activities are necessary to the performance of a contract but are not the specific services called for by the contract.

(b) Executive Order Minimum wage rate.

(1) The Contractor shall pay to workers, while performing in the United States, and performing on, or in connection with, this contract, a minimum hourly wage rate of \$15.00 per hour beginning January 30, 2022.

(2) The Contractor shall adjust the minimum wage paid, if necessary, beginning January 1, 2023,

and annually thereafter, to meet the applicable annual E.O. minimum wage. The Administrator of the Department of Labor's Wage and Hour Division (the Administrator) will publish annual determinations in the Federal Register no later than 90 days before the effective date of the new E.O. minimum wage rate. The Administrator will also publish the applicable E.O. minimum wage on <https://www.sam.gov> (or any successor website), and a general notice on all wage determinations issued under the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, that will provide information on the E.O. minimum wage and how to obtain annual updates. The applicable published E.O. minimum wage is incorporated by reference into this contract.

(3)

(i) The Contractor may request a price adjustment only after the effective date of the new annual E.O. minimum wage determination. Prices will be adjusted only for increased labor costs (including subcontractor labor costs) as a result of an increase in the annual E.O. minimum wage, and for associated labor costs (including those for subcontractors). Associated labor costs shall include increases or decreases that result from changes in social security and unemployment taxes and workers' compensation insurance, but will not otherwise include any amount for general and administrative costs, overhead, or profit.

(ii) Subcontractors may be entitled to adjustments due to the new minimum wage, pursuant to paragraph (b)(2). Contractors shall consider any subcontractor requests for such price adjustment.

(iii) The Contracting Officer will not adjust the contract price under this clause for any costs other than those identified in paragraph (b)(3)(i) of this clause, and will not provide duplicate price adjustments with any price adjustment under clauses implementing the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute.

(4) The Contractor warrants that the prices in this contract do not include allowance for any contingency to cover increased costs for which adjustment is provided under this clause.

(5) A pay period under this clause may not be longer than semi-monthly, but may be shorter to comply with any applicable law or other requirement under this contract establishing a shorter pay period. Workers shall be paid no later than one pay period following the end of the regular pay period in which such wages were earned or accrued.

(6) The Contractor shall pay, unconditionally to each worker, all wages due free and clear without subsequent rebate or kickback. The Contractor may make deductions that reduce a worker's wages below the E.O. minimum wage rate only if done in accordance with 29 CFR 23.230, Deductions.

(7) The Contractor shall not discharge any part of its minimum wage obligation under this clause by furnishing fringe benefits or, with respect to workers whose wages are governed by the Service Contract Labor Standards statute, the cash equivalent thereof.

(8) Nothing in this clause shall excuse the Contractor from compliance with any applicable Federal or State prevailing wage law or any applicable law or municipal ordinance or any applicable contract establishing a minimum wage higher than the E.O. 14026 minimum wage. However, wage increases under such other laws or municipal ordinances are not subject to price adjustment under this subpart.

(9) The Contractor shall pay the E.O. minimum wage rate whenever it is higher than any applicable collective bargaining agreement(s) wage rate.

(10) The Contractor shall follow the policies and procedures in 29 CFR 23.240(b) and 23.280 for treatment of workers engaged in an occupation in which they customarily and regularly receive more than \$30 a month in tips.

(c)

(1) This clause applies to workers as defined in paragraph (a). As provided in that definition-

(i) Workers are covered regardless of the contractual relationship alleged to exist between the contractor or subcontractor and the worker;

(ii) Workers with disabilities whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(c) are covered; and

(iii) Workers who are registered in a bona fide apprenticeship program or training program registered with the Department of Labor's Employment and Training Administration, Office of Apprenticeship, or with a State Apprenticeship Agency recognized by the Office of Apprenticeship, are covered.

(2) This clause does not apply to-

(i) Contracts or subcontracts to which the States of Texas, Louisiana, or Mississippi, including their agencies, are a party;

(ii) Fair Labor Standards Act (FLSA)-covered individuals performing in connection with contracts covered by the E.O., *i.e.* those individuals who perform duties necessary to the performance of the contract, but who are not directly engaged in performing the specific work called for by the contract, and who spend less than 20 percent of their hours worked in a particular workweek performing in connection with such contracts;

(iii) Individuals exempted from the minimum wage requirements of the FLSA under 29 U.S.C. 213(a) and 214(a) and (b), unless otherwise covered by the Service Contract Labor Standards statute, or the Wage Rate Requirements (Construction) statute. These individuals include but are not limited to-

(A) Learners, apprentices, or messengers whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(a) ;

(B) Students whose wages are calculated pursuant to special certificates issued under 29 U.S.C. 214(b); and

(C) Those employed in a bona fide executive, administrative, or professional capacity (29 U.S.C. 213(a)(1) and 29 CFR part 541).

(d) Notice. The Contractor shall notify all workers performing work on, or in connection with, this contract of the applicable E.O. minimum wage rate under this clause. With respect to workers covered by the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, the Contractor may meet this requirement by posting, in a prominent and accessible place at the worksite, the applicable wage determination under those statutes. With respect to workers whose wages are governed by the FLSA, the Contractor shall post notice, utilizing the poster provided by the Administrator, which can be obtained at www.dol.gov/agencies/whd/government-contracts, in a prominent and accessible place at the worksite. Contractors that customarily post notices to workers electronically may post the notice electronically provided the electronic posting is displayed prominently on any Web site that is maintained by the contractor, whether external or internal, and customarily used for notices to workers about terms and conditions of employment.

(e) Payroll Records.

(1) The Contractor shall make and maintain records, for three years after completion of the work, containing the following information for each worker:

- (i) Name, address, and social security number;
- (ii) The worker's occupation(s) or classification(s);
- (iii) The rate or rates of wages paid;
- (iv) The number of daily and weekly hours worked by each worker;
- (v) Any deductions made; and
- (vi) Total wages paid.

(2) The Contractor shall make records pursuant to paragraph (e)(1) of this clause available for inspection and transcription by authorized representatives of the Administrator. The Contractor shall also make such records available upon request of the Contracting Officer.

(3) The Contractor shall make a copy of the contract available, as applicable, for inspection or transcription by authorized representatives of the Administrator. Failure to comply with this paragraph (e) shall be a violation of 29 CFR 23.260 and this contract. Upon direction of the Administrator or upon the Contracting Officer's own action, payment shall be withheld until such time as the noncompliance is corrected.

(4) Nothing in this clause limits or otherwise modifies the Contractor's payroll and recordkeeping obligations, if any, under the Service Contract Labor Standards statute, the Wage Rate Requirements (Construction) statute, the Fair Labor Standards Act, or any other applicable law.

(f) Access. The Contractor shall permit authorized representatives of the Administrator to conduct investigations, including interviewing workers at the worksite during normal working hours.

(g) Withholding. The Contracting Officer, upon his or her own action or upon written request of the Administrator, will withhold funds or cause funds to be withheld, from the Contractor under this or any other Federal contract with the same Contractor, sufficient to pay workers the full amount of wages required by this clause.

(h) Disputes. Department of Labor has set forth in 29 CFR 23.510, Disputes concerning contractor compliance, the procedures for resolving disputes concerning a contractor's compliance with Department of Labor regulations at 29 CFR part 23. Such disputes shall be resolved in accordance with those procedures and not the Disputes clause of this contract. These disputes include disputes between the Contractor (or any of its subcontractors) and the contracting agency, the Department of Labor, or the workers or their representatives.

(i) Antiretaliation. The Contractor shall not discharge or in any other manner discriminate against any worker because such worker has filed any complaint or instituted or caused to be instituted any proceeding under or related to compliance with the E.O. or this clause, or has testified or is about to testify in any such proceeding.

j) Subcontractor compliance. The Contractor is responsible for subcontractor compliance with the requirements of this clause and may be held liable for unpaid wages due subcontractor workers.

(k) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (k) in all subcontracts, regardless of dollar value, that are subject to the Service Contract Labor Standards statute or the Wage Rate Requirements (Construction) statute, and are to be performed in whole or in part in the United States.

(End of clause)

1510-52.222-71 MIGRANT SEASONAL AGRICULTURAL WORKERS PROTECTION ACT REGISTRATION NUMBER

If applicable, a valid U.S. Department of Labor Registration number must be supplied within five (5) days after date of award. Failure to provide such number is grounds for contract termination.

Application for numbers should be made on Form WH-510, Application for a Farm Labor Contractor Certificate of Registration, which should be available at your State Employment Service Offices or your nearest U.S. Department of Labor Office. Further information may be obtained from:

U.S. Department of Labor Telephone: (415) 975-4520
Wage and Hour Division
71 Stevenson Street, Suite 930
San Francisco, CA 94105
Registration Number: _____
(Migrant Seasonal Agricultural Workers Protection Act)

(End of provision)

(End of Section K)

SECTION L – INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS OR RESPONDENTS

- L.1.0 GENERAL. This is a Request For Proposal (RFP). An award notice will be posted on the Contract Opportunities website located at www.sam.gov upon award. The award notice will include the awardee's name and address and total award amount.
- L.1.1 Electronic Response. Electronic quotations will not be accepted through: www.fedconnect.net. The quotation shall be electronically submitted via email to Kevin J. Cochran at kevin_cochran@ios.doi.gov.
- L.1.2 Requests for Information. Questions regarding this solicitation must be submitted in writing to Kevin J. Cochran via e-mail to kevin_cochran@ios.doi.gov at least two business days before the solicitation closes.
- L.2.0 QUOTATION INSTRUCTIONS. The quotation shall be submitted in two parts consisting of a (1) non-price and (2) price section.
- L.2.1 FORMAT AND CONTENT OF NON-PRICE SECTION. The non-price section shall be organized by evaluation factor and sequenced in the below order. The respondent shall address the following factors in sufficient narrative and qualitative detail to be evaluated. If an offeror cannot cover all areas, the Government may still consider the offeror for award.

Evaluation Factors

L.2.1.1 Evaluation factor 1, Technical Capability

The offeror shall provide sufficient information to clearly demonstrate the quality and feasibility of the proposed services in relation to the Stewardship Project. The technical proposal should present a realistic and well-structured technical approach that describes the means and methods necessary to successfully complete all required work within the performance period, including detailed identification of labor, equipment, materials, and a logical sequence of activities with noted interdependencies and expected daily production rates. The offeror shall also submit a comprehensive schedule outlining project milestones, the critical path, and the availability of equipment and crew(s), including crew size and composition, and must explain how timely completion will be achieved in the event of project delays. In addition, the offeror shall provide a clear and thorough narrative describing the proposed quality control and safety management processes, including decision-making procedures when quality issues affect schedule or cost, management of subcontractor quality control (if applicable), identification of potential high-risk activities and mitigation strategies, and the qualifications and staffing plan for both quality control personnel and the safety manager. Collectively, the submission must demonstrate the offeror's capability, preparedness, and commitment to delivering high-quality results in full compliance with project requirements.

L.2.1.2 Evaluation factor 2, Relevant Experience

- (a) Respondent shall demonstrate their specialized experience by furnishing at least three (3) projects of similar scope and magnitude to this requirement that were completed as a Prime Contractor within five (5) years [six (6) years for construction] of the solicitation closing date. Experience information shall include:
- Customer/contracting agency
 - Contract number
 - Contract title with location
 - Identify whether experience was as a Prime or Subcontractor
 - Award date
 - Initial award amount

- Award amount at contract completion
- Contract completion date
- Actual completion date
- Description of project
- Describe relevant experience and any unique conditions and/or challenges

(b) Local Market Knowledge. Respondent shall demonstrate their specialized experience with similar work in project location or locations that have similar conditions to those found in the local area. The local area is defined as [city/county, state or state]. The Respondent, through these projects, must demonstrate knowledge of local weather, transportation complexities, subcontracts and local market conditions.

L.2.1.3 Evaluation Factor 3, Past Performance

Respondent shall submit past performance information on three (3) projects of similar scope and magnitude that were completed as a Prime Contractor within the last three (3) years [six (6) years for construction and A-E] from the solicitation closing date. Past performance information must consist of final performance ratings of the project(s) and/or project references who can provide performance assessments. References shall consist of officials from the issuing contracting agency who oversaw the performance of the project. The Government reserves the right to obtain past performance information from other sources such as the references and the Contractor Performance Assessment Reporting System (CPARS) and other Federal performance assessments systems but is not limited to these sources, pursuant with FAR subpart 42.15. Respondents with no historical record of past performance will be considered neutral. Information required for each project shall include:

- Contracting agency/customer
- Contract number
- Contract title or meaningful description of services and location
- Award date
- Initial award amount
- Award amount at contract completion
- Contract Completion Date
- Actual Completion Date
- Final performance evaluation with rating or reference information (first and last name, title, office, mailing address, telephone number, and email address)
- Address any adverse past performance information and explain the corrective actions taken to achieve a successful outcome.

L.2.2 FORMAT AND CONTENT OF PRICE PROPOSAL

L.2.2.1 Submit the completed Standard Form 1449 and all acknowledged amendments, if any.

L.2.2.2 Evaluation Factor 4 – Price. The Offeror shall remit a completed price schedule (Section B). The Offeror shall enter unit price and extended total for each item listed in Section B. These prices shall include all necessary supervision, management, labor, transportation, equipment, materials, any other direct incidental costs, overhead and profit, unless identified as a separately priced contract line item.

L.2.2.3 The Offeror shall complete and submit all applicable Representations, Certifications and Other Statements of Offerors. In accordance with FAR 4.1201, representations and certifications shall be submitted to the System for Award Management (www.sam.gov) and updated at least annually to ensure they are kept current, accurate, and complete.

The following provisions are incorporated by reference:

Provision	Title	Date
52.204-7	SYSTEM FOR AWARD MANAGEMENT	NOV 2024

52.204-22	ALTERNATIVE LINE ITEM PROPOSAL	JAN 2017
52.207-6	SOLICITATION OF OFFERS FROM SMALL BUSINESS CONCENRS AND SMALL BUSINESS TEAMING ARRANGEMENTS OR JOINT VENTURES (MULTIPLE-AWARD CONTRACTS)	AUG 2024
52.215-1	INSTRUCTIONS TO OFFERORS—COMPETITIVE	NOV 2021
52.222-24	PREAWARD ON-SITE EQUAL OPPORTUNITY COMPLIANCE EVALUATION	FEB 1999
52.237-1	SITE VISIT	APR 1984

The following provisions are provided in full text:

52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a firm fixed-price services type of contract resulting from this solicitation.

(End of provision)

52.216-27 SINGLE OR MULTIPLE AWARDS (OCT 1995)

The Government may elect to award a single delivery order contract or task order contract or to award multiple delivery order contracts or task order contracts for the same or similar supplies or services to two or more sources under this solicitation. The Government estimates awarding seven Multiple Award Indefinite Delivery Indefinite Quantity contracts.

(End of provision)

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

Federal Acquisition Regulation: <https://www.acquisition.gov/far/>
Department of the Interior Acquisition Regulation (CFR, Title 48, Chapter 14): <https://www.acquisition.gov/diar/>

(End of provision)

52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Department of the Interior Acquisition Regulation (48 CFR Chapter 14) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Provision)

1452.215-71 USE AND DISCLOSURE OF PROPOSAL INFORMATION (APR 1984)

(a) Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below:

(1) "Trade Secret" means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.

(2) "Confidential commercial or financial information" means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in proposals include exemption (4), which covers "commercial and financial information obtained from a person and privileged or confidential," and exemption (9), which covers "geological and geophysical information, including maps, concerning wells."

(b) If the offeror, or its subcontractor(s), believes that the proposal contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the proposal shall be marked with the following legend:

"The information specifically identified on pages _____ of this proposal constitutes trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act. The offeror requests that this information not be disclosed to the public, except as may be required by law. The offeror also requests that this information not be used in whole or part by the government for any purpose other than to evaluate the proposal, except that if a contract is awarded to the offeror as a result of or in connection with the submission of the proposal, the Government shall have the right to use the information to the extent provided in the contract."

(c) The offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the proposal on which it appears and shall mark each such page with the following legend:

"This page contains trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this proposal."

(d) Information in a proposal identified by an offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the proposal, except that (i) if a contract is awarded to the offeror as a result of or in connection with submission of the proposal, the Government shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

(e) If a request under the Freedom of Information Act seeks access to information in a proposal identified as trade secret information or confidential commercial and financial information, full consideration will be given to the offeror's view that the information constitutes trade secrets or confidential commercial or financial information. The offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the offeror will be notified of this determination prior to disclosure of the information.

(f) The Government assumes no liability for the disclosure or use of information contained in a proposal if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of Information Act is made for information in a proposal not marked in accordance with paragraphs (b) and (c) of this provision, the offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an offeror to mark information contained in a proposal as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure to mark was due to unusual or extenuating circumstances, such as a showing that the offeror had intended to mark, but that markings were omitted from the offeror's proposal due to clerical error.

(End of provision)

1452.233-2 SERVICE OF PROTEST (DEPARTMENT OF THE INTERIOR (JUL 1996) (DEVIATION)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the General Accounting Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Bureau of Land Management, Oregon State Office, Branch of Procurement Management, 1220 SW 3rd Avenue, Portland, Oregon, 97204.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(c) A copy of the protest served on the Contracting Officer shall be simultaneously furnished by the protester to the Department of the Interior Assistant Solicitor for Procurement and Patents, 1849 C Street, NW, Room 6511, Washington, D.C. 20240.

(d) In accordance with FAR 33.103(d)(4), interested parties may request an independent review of their protest at a level above the contracting officer by notifying the following contact point: Carrie Wakumoto, Chief of the Contracting Office at cwakumoto@blm.gov. This review is available as an alternative to consideration by the contracting officer or is available as an appeal of a contracting officer decision.

(End of provision)

(End of Section L)

SECTION M – EVALUATION FACTORS FOR AWARD

M.1.0 BASIS OF AWARD

This solicitation will result in the award of firm fixed price Multiple Award Indefinite Delivery Indefinite Quantity contracts in accordance with the provisions herein this section. Award will be made on a best-value, trade-off process pursuant to FAR subpart 15.101-1. This process permits tradeoffs among cost or price and non-cost factors and allows the Government to accept other than the lowest priced proposal. The Government may consider award to other than the lowest priced offeror or other than the highest technically rated offeror when it is in the best interest of the Government. Technical (non-cost) evaluation factors, when combined, are significantly more important than price.

The Government intends to award, without discussions, to the responsible Offerors whose proposal complies with the solicitation requirements and is determined to be the best value to the Government. Multiple Awards may be made. The Government will evaluate an offer that can cover all areas more favorably.

M.2.0 EVALUATION FACTORS FOR AWARD There are three (3) non-price/cost evaluation factors along with price. The weights of the non-price/cost evaluation factor is listed in descending order of importance in accordance with the rating criteria below.

M.2.1 Evaluation Factor No. 1, Technical Capability

The Government will assign one of the below confidence ratings, based on the confidence that the offeror understands the requirement:

High confidence. The Government has high confidence that the offeror understands the requirement, proposes a sound approach, and will be successful in performing the contract with little or no government intervention.

Some confidence. The Government has some confidence that the offeror understands the requirement, proposes a sound approach, and will be successful in performing the contract with some government intervention.

Low confidence. The Government has low confidence that the offeror understands the requirement, proposes a sound approach, or will be successful in performing the contract even with government intervention.

M.2.3 Evaluation Factor No. 2, Relevant Experience

The Government will assign one of the below confidence ratings, based on the confidence that the offeror understands the requirement:

High confidence. The Government has high confidence that the offeror understands the requirement, proposes a sound approach, and will be successful in performing the contract with little or no government intervention.

Some confidence. The Government has some confidence that the offeror understands the requirement, proposes a sound approach, and will be successful in performing the contract with some government intervention.

Low confidence. The Government has low confidence that the offeror understands the requirement, proposes a sound approach, or will be successful in performing the contract even with government intervention.

M.2.4 Evaluation Factor No. 3, Past Performance

The Government will assign one of the below confidence ratings, based on the confidence that the offeror will successfully perform the solicitation's requirements:

High confidence. The Government has high confidence that the offeror will be successful in performing the contract with little or no government intervention.

Some confidence. The Government has some confidence that the offeror will be successful in performing the contract with some government intervention.

Neutral confidence. No recent/relevant performance record is available, or the offeror's performance record is so sparse that no meaningful confidence rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.

M.2.4 Evaluation Factor No. 4, Price.

Price will be evaluated for fair and reasonableness, but not rated.

(End of Section M)